

Cbi vs S.K.Pathrella And Ors on 27 April, 2026

CBI V. S.K. Pathrella & Ors.

CC No. 260/2019

OLDEST MATTER
IN THE COURT OF SPECIAL JUDGE, PC ACT (CBI-04),
ROUSE AVENUE DISTRICT COURTS, NEW DELHI

CNR No. DLCT11-001578-2019

CC No. 260/2019

R.C.1(E)/97

PS: SIU(X) (BS&FC)/SPE/CBI/New Delhi

Under Section: 120B IPC r/w Section 420/467/468/471 IPC
& 13 (2) read with 13 (1) (d) of Prevention of Corruption
Act, 1988

CENTRAL BUREAU OF INVESTIGATION
(CBI)

VERSUS

1. Suresh Kumar Pathrella
S/o late Mani Ram
the then Chief Manager, Oriental
Bank of Commerce, New Friends Colony Branch,
New Delhi

R/o 16/11, Railway Colony, Sarojni Nagar
New Delhi.
(Proceedings qua Accused postponed on account of Mental
Condition vide order dated 01.03.2025)

2. Ghanshyam Kakkar
S/o K.R Kakkar
Partner M/s Red Cat Agencies
R/o I-1623, C.R Park, New Delhi
(Declared P.O vide order dt. 17.04.2010)
3. Joginder Singh Logani
S/o Sardar Ishwar Singh

1

CBI V. S.K. Pathrella & Ors.

CC No. 260/2019

Partner, M/s Red Cat Agencies
R/o 229, Mandakini Enclave
Alaknanda, New Delhi

(Proceedings qua accused quashed vide
order dated 04.09.2015 by Hon'ble Delhi High Court)

4. Sh. Harsimran Dhingra
S/o Sh. Amrik Singh Dhingra
Proprietor, M/s Pimco Overseas
R/o 229, Mandakini Enclave
Alaknanda, New Delhi

5. Rajesh Batra
S/o P.S Batra
Proprietor M/s Batra Traders
R/o N-8, Kalkaji, New Delhi

6. Naveen Kakkar
S/o K.R Kakkar
Proprietor M/s Agronica Overseas
(Declared Proclaimed Offender vide order dt. 17.04.2010)

7. Sanjeev Arora
S/o Jagdish Rai Arora
Proprietor M/s Ashok Industries
R/o D-20, Sector-26 Noida, U.P

8. Vikram Arora
S/o Sh. J.A Arora,
Proprietor M/s Ganpati Enterprises
R/o D-20, Sector-26 Noida, U.P

Date of Institution	08.07.2005
Date of Start of Arguments	16.10.2025

CBI V. S.K. Pathrella & Ors.	2	CC No. 260/2019
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Date of Conclusion of Arguments	27.03.2026
Date of Judgment	27.04.2026

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allegations against A-1 U/s 13 (1) (d) r/w 13 (2) of PC Act.

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Annexures (Containing Chart of Witnesses Examined and Documents Got Exhibited) in terms of Judgment of Hon'ble Supreme Court in case titled Manojbhai Jethabhai Parmar (Rohit) V. State of Gujarat, Criminal Appeals No.2973/2023 dated 15.12.2025

JUDGMENT :

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1. This judgment shall decide the case filed by the Central Bureau of Investigation (CBI), bearing R.C.1(E)/97 registered on source information at SIU (X) Branch of CBI, New Delhi on 30.04.1997 against accused persons under Section 120B IPC r/w Section 420/467/468/471 IPC & 13 (2) read with 13 (1) (d) of Prevention of Corruption Act, 1988.

(I) FACTUAL MATRIX OF THE CASE

(i) Allegations in the FIR/RC

2. It is alleged in the FIR that during the year 1994 onwards, A-1 Suresh Kumar Pathrella (hereinafter CBI V. S.K. Pathrella & Ors. CC No. 260/2019 referred as "S.K. Pathrella'), Chief Manager, Oriental Bank of Commerce (hereinafter in short 'OBC'), New Friends Colony, New Delhi (hereinafter referred as "NFC, New Delhi."), entered into a criminal conspiracy with A-2 Ghanshyam Kakkar (since P.O) and A-3 Joginder Singh Logani (hereinafter referred in short as "J.S Logani"), both partners in M/s Red Cat Agency, Narender Kapoor, Proprietor of M/s Navyug Trader, A-5 Rajesh Batra, Proprietor of M/s Batra Traders, A-4 Harsimran Dhingra, Proprietor of M/s Pimmco Overseas and A-6 Naveen Kumar, Proprietor of M/s Agronica Overseas, to cheat OBC, NFC Branch, New Delhi and others.

2.1 In pursuance of the said criminal conspiracy, A-1 S.K. Pathrella abused his official position in exercise of the discretionary powers vested in him. A-1 discounted/ purchased cheques/bills in the accounts of above-said firms which were returned unpaid. A-1 also allowed overdraft in other accounts and to adjust the same, he further purchased cheques which were too returned unpaid. As a result, a wrongful loss of more than Rs. 1.64 crores approximately was caused to OBC.

2.2 It is further alleged that Narender Kapoor and A-5 Rajesh Batra were the employees of A-3 J.S Logani, while CBI V. S.K. Pathrella & Ors. CC No. 260/2019 A-6 Naveen Kakkar is a relative of A-2 Ghanshyam Kakkar. A-1 S.K. Pathrella unauthorisedly gave credit facility to all the firms of accused persons and amounts were credited in the accounts of said firms exceeding his powers. A-1 did not obtain sanction from his Senior Officers and without obtaining security to safeguard the interest of the bank, the aforesaid credit facility was sanctioned.

(ii) Result of Investigation 2.3 The investigation revealed that A-1 was posted and functioned as Branch Manager of OBC, NFC, New Delhi during the period 16.04.1994 to 15.11.1995. He was suspended from the bank on 21.12.1995 and was removed from service on 28.05.1998. The New Friends Colony Branch of OBC was categorised as 'Scale IV Branch'.

2.4 It is further alleged that in pursuance of the aforesaid criminal conspiracy, five current accounts in the name of aforesaid firms viz; CA No.2607 of M/s Red Cat Agencies, CA No.2695 of M/s Batra

Traders, CA No.2845 of M/s Navyug Trader, CA No.2783 of M/s Pimco Overseas and CA No.2846 of M/s Agronica Overseas were opened by aforesaid private accused persons with New Friends Colony Branch, New Delhi of OBC (hereinafter referred as Beneficiary Accounts). A-1 allowed opening of all the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 aforesaid bank accounts. Thereafter, all the said private persons either themselves or their proxies opened accounts in various places viz; Amritsar, Jalandhar, Hapur, Dutai, Faridabad and New Delhi and procured the cheque books. (hereinafter referred as Fictitious Accounts). The said accounts were opened with sole intention to cheat OBC and procure cheque books. There were no routine transactions in the said accounts. The cheques were issued from these accounts favouring the aforesaid five current account holders maintained with OBC, New Friends Colony, New Delhi and got the same purchased as "DD" in criminal conspiracy with A-1 S.K. Pathrella, the then Branch Manager. The proceeds of the cheque amounts were misappropriated by said private persons. The said purchased cheques when sent in for clearing by OBC, NFC, New Delhi, all of them returned unrealised due to 'insufficient funds'. The funds so availed by the said private persons were not paid.

(iii) Discussion qua the Individual Beneficiary Accounts Investigation qua Current A/c No. 2607/CC 1724 of M/s Red Cat Agencies

3. The investigation qua the said account revealed that M/s Red Cat Agency is a partnership firm of A-3 J.S Logani and A-2 Ghanshyam Kakkar. The current account No. 2607 was opened in CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the name of said firm . The account was allowed to be opened by A-

1. On 31.3.95 current Account No. 2607 was converted into CC A/C No. 1724.

3.1 The investigation also revealed that from 3.10.94 to 30.9.95 a total of 20 cheques amounting to Rs. 73.60 lacs and 4 bills amounting to Rs. 25.85 lacs were purchased by A-1 in CA No. 2607/CC Ac No. 1724 of M/s Red Cat Agencies. The amount of the said four bills was later on adjusted against three cheques and therefore, no loss could be caused to the bank in the purchase of said four bills. Out of the said 20 cheques, 18 cheque amounting to Rs. 66.35 lacs were returned unpaid due to insufficient funds as per the details mentioned below:-

Sl. Cheque Amt (In Rs.) Date of Drawn on Date of Fictitious Co./Firm No. No. & Purchase Return & Account Number Date of cheque 1 171005 3.70 lacs 6.10.94 OBC, 29.10.94 A-8 Vikram Arora 6.10.94 as DD Faridabad in the name of M/s 362 (NIT) Carda (India Electronics) in CA No. 6089 2 149775 3.60 lacs 6.10.94 Syndicate 29.10.94 A-7 Sanjeev Arora, 6.10.94 as DD Bank Dutai proprietor of M/s 363 Ashoka Industries , Account No.13.

3 253428 6.60 lacs 31.10.94 State Bank 3.12.94 A-8 Vikram Arora , 28.10.94 as DD of Patiala, Proprietor of M/s 457 Hapur Ganpati Enterprises, CA No.224

4 02003 614,328.25/- 6.1.95 OBC, 31.3.95 A-3 J.S Logani, 6.1.95 as DD Faridabad Proprietor of M/s 717 (NIT) Gold Exports, CA No. 6199 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 5 020019

632,435.35/- 2.2.95 OBC, 21.2.95 A-3 J.S Logani, 2.2.95 as DD Faridabad Proprietor of M/s 851 (NIT) Gold Exports, CA No. 6199 6 049002 349,250/- 24.2.95 Central 25.9.95 A-4 H.S Dhingra, 24.2.95 as DD Bank of Proprietor of M/s 968 India, Gold Exports, CA Amritsar No. 4378 7 035729 376,641/- 17.4.95 Central 15.5.95 A-4 H.S Dhingra, 15.4.95 as DD 84 Bank of Proprietor of M/s India, Gold Exports, CA Majith No. 4378 Mandi, Amritsar 8 035728 376,186/- 17.4.95 Central -do- A-4 H.S Dhingra, 8.4.95 as DD 85 Bank of Proprietor of M/s India, Gold Exports, CA Majith No. 4378 Mandi, Amritsar 9 035727 385,250/- 17.4.95 Central -do- A-4 H.S Dhingra, 10.4.95 as DD 86 Bank of Proprietor of M/s India, Gold Exports, CA Majith No. 4378 Mandi, Amritsar 10 035732 201,250/- 21.8.95 Central 25.9.95 A-4 H.S Dhingra, 21.8.95 as DD Bank of Proprietor of M/s 761 India, Gold Exports, CA Majith No. 4378 Mandi, Amritsar 11 035735 165,754/- 21.8.95 Central -do- A-4 H.S Dhingra, 21.8.95 as DD Bank of Proprietor of M/s 762 India, Gold Exports, CA Amritsar No. 4378 12 20011 275,406/- 21.8.95 OBC, -do- A-3 J.S Logani, 21.8.95 as DD Faridabad Proprietor of M/s 763 (NIT) Gold Exports, CA No. 6199 13 20010 265,406/- 21.8.95 OBC, -do- A-3 J.S Logani, 21.8.95 as DD Faridabad Proprietor of M/s CBI V. S.K. Pathrella & Ors. CC No. 260/2019 764 (NIT) Gold Exports, CA No. 6199 14 935266 1.20 lacs 24.8.95 PNB, Patel -do- Jagat Bhushan, 24.8.95 as DD Nagar, Director of M/s 795 Dehradun Bhushan Mineral Industries Pvt Ltd., C.A No. 964 (To adjust the amount, Fresh cheque mentioned at Sr. No.17 was issued) 15 035740 565,989/- 25.9.95 Central 1.11.95 A-4 H.S Dhingra, 20.9.95 as DD Bank of Proprietor of M/s 1059/95 India, Gold Exports.

Majith Mandi, Amritsar 16 035741 553,857/- 25.9.95 Central -do- A-4 H.S Dhingra, 20.9.95 as DD Bank of Proprietor of M/s 1060/95 India, Gold Exports, CA Majith No. 4378 Mandi, Amritsar 17 714028 122,836/- 25.9.95 Punjab & -do- A-4 H.S Dhingra, 19.9.95 as DD Singh Proprietor of M/s 1061/95 Bank, Gold Exports, CA Lajpat No. 4378 Nagar, Jalandhar 18 331556 50,000/- 30.9.95 Union 6.10.95 M/s Sachdeva 29.9.95 as DD Bank of Offset and Packing 1137/95 India, Industries Pvt Ltd Okhla Ind. CA No. 29061 Area, New Delhi 3.2 The investigation revealed that the proceeds on account of purchase of above-said 18 cheques were credited in the account of M/s Red Cat Agencies which was utilised by A-2 Ghanshyam Kakkar (since P.O) and A-3. It is thus alleged that A-2 (since P.O) CBI V. S.K. Pathrella & Ors. CC No. 260/2019 and A-3 alongwith other fictitious account holders cheated OBC, NFC, New Delhi to the tune of Rs.50,59,522.60 through account of M/s Red Cat Agencies in conspiracy with A-1.

Investigation qua CA No. 2695 of M/s Batra Traders :-

4. The investigation revealed that CA No.2695 was opened on 01.02.1995 by A-5 Rajesh Batra in the name of M/s Batra Traders as its proprietor. The said account was introduced by Sh. R.P. Bhargava which was allowed to be opened by A-1. The investigation further revealed A-5 was an employee of M/s Red Cat Agency used to visit the bank frequently and collect payment on behalf the said firm. The investigation further revealed that a total of 7 cheques and 2 bills were purchased by A-1 as detailed below:

S. Cheque Amt. (In Date of Drawn on DATE OF Fictitious N No. & Rs.) Purchase
RETURN Co./Firm & Date of Account Number Cheque 1 714002 386,196/- 24.2.95
Punjab & No Entry A-4 Harsimran 24.2.95 as DD Sind Dhingra ,Propri 969 Bank,

etor of M/s Sun Jalandhar Exports, Jalandhar

2 20009 296,985/- 21.8.95 OBC, 17.11.95 A-3 J.S Logani, 21.8.95 as DD Faridabad, Proprietor of 765/95 NIT M/s Gold Exports, CA No. 6199 3 20024 389,489/- 21.8.95 -do- -do- A-3 J.S Logani, 21.8.95 as DD Proprietor of 766/95 M/s Gold Exports, CA No. 6199 4 49036 318,764/- 21.8.95 Central - do- A-4 H.S CBI V. S.K. Pathrella & Ors. CC No. 260/2019 21.8.95 as DD Bank of Dhingra, Prop.

			767/95	India, Guru Bazar Amritsar Punjab National Bank, Alknanda, New Delhi		M/s Sun Exports, CA No.1398 J.S Logani, Prop. Of M/s Sun Glow Travels & Tours Operator, CA No.1230
5	154528 13.10.95	337,400.5/- 13.10.95	13.10.95 as DD 1322/95	21.10.95		
6	049004 06.04.95	345,115/-	08.04.95 as DD 49/95	Central Bank of India, Guru Bazar, Amritsar	18.04.95	A-4 H.S Dhingra, Prop. M/s Sun Exports, CA No.1398
7	049003 06.04.95	360,135/-	08.04.95 as DD 50/95	Central Bank of India, Guru Bazar, Amritsar	-do-	A-4 H.S Dhingra, Prop. M/s Sun Exports, CA No.1398

S Bill No. & Date	Amount (In Rs.)	Date of Purchase of Bill	Drawn on	Date of Reversal	Fictitious Co./Firm & Account Number
1 Invoice No. 009 dated 01.02.95	7.07 lacs	02.03.95 as BP 57/95	Gold Exports Amritsar	16.02.96	A-4 Harsimran Dhingra of Gold Exports, Amritsar
2 Invoice No. 009 dated 01.02.95	775,550/-	02.03.95 as BP	-do-	-do-	A

4.1 The investigation revealed that the proceeds of above

mentioned 07 cheques and two bills were credited in the said account of M/s Batra Traders which was subsequently withdrawn CBI V. S.K. Pathrella & Ors. CC No. 260/2019 by A-5 Rajesh Batra. Out of which, an amount of Rs.4.95 lacs were transferred to the SB account of A-2 (since P.O). The investigation further revealed that no limit or any credit facility was sanctioned to M/s Batra

Traders at OBC, NFC, New Delhi. The total loss caused on account of purchase of said cheques and bills in the said account amounts to Rs.38,16,634/-.

Investigation qua CA No. 2845 of M/s Navyug Traders:-

5. The investigation revealed that the said account was opened in the name of M/s Navyug Traders on 06.09.1995 showing Narender Kapoor as its Proprietor. The said account was allowed to be opened by A-1 who verified specimen signature of Narender Kapoor. Further investigation revealed that said Narender Kapoor joined M/s Red Cat Agency in April 1994 as Peon. At the time of his joining, his two photographs and an application were collected by owners namely A-3 J.S Logani and A-2 Ghanshyam Kakkar. The investigation also disclosed that Narender Kapoor was a semi literate person. He had neither opened the said account nor signed any document. The CFSL after comparing the writings opined that signatures on documents i.e accompanying form, SS Cards and cheques issued in the said accounts are not of Narender Kapoor and his signatures were forged by A-5 Rajest Batra .A total loss to the bank on account of said purchase of instruments was Rs.

18,32,169.90/-.

CBI V. S.K. Pathrella & Ors.

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5.1 As per the investigation, following one cheque and two bills were purchased in the said account:

S. No.	Cheque No. & Date	Amount (IN Rs.)	Date of Purchase of Cheque	Drawn on	Date of Return	Fictitious Co./Firm & Account Number
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1 140444 340,569.9/- 13.10.95 Hong Kong 21.10.95 M/s Jimmy as DD & Sanghai Crown 1326 Banking Enterprises, Corp. CA No. Chandni 052-01979-

Delhi

SL. No.	Bill No. & Date	Amount (In Rs.)	Date of Purchase of Bill	Drawn By	Date of Reversal	Fictitious Co./Firm & Account Number
3	001 dated 06.09.95	767,150/-	25.09.95 as BP 62/95	Sun Exports Jalandhar	20.11.95	A-4 Proprietor of M/s Sun Exports, Jalandhar
4	002 dated 06.09.95	724,450/-	25.09.95 as BP 63/95	-do-	-do-	A-4 Proprietor of M/s Sun

CA No. 2783 of M/s Pimco Overseas :-

6. The investigation qua the said account revealed that the same was opened in the name of M/s Pimco Overseas by A-4 H.S Dhingra on 30.05.1995. The account was introduced by A-2 Ghanshyam Kakkar (since PO) partner of M/s Red Cat Agency. The said account was allowed to be opened by A-1 S.K. Pathrella.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 The details of three cheques and two bills purchase in the said account by A-1 are as under:

Sl. Cheque Amount (In Date of Drawn Date of Fictitious No. No & Rs.) Purchase Return Co./Firm & Date of the Account Number cheque 1 049013 368,188/- 01.06.95 Central 19.10.95 A-4 01.06.95 as DD 277 Bank of Proprietor of India, Guru M/s Sun Bazar, Exports, Amritsar Amritsar , CA No. 1398 2 049014 373,062/- 01.06.95 -do- -do- A-4 01.06.95 Proprietor of M/s Sun Exports, Amritsar , CA No. 1398 3 154530 345,972.1/- 16.10.95 PNB, 21.10.95 JS Logani , 13.10.95 Alaknanda Proprietor of Branch, M/S Sun Glow New Delhi Travels ,CA No.1230 S. Bill No. Amount Date of Drawn On Date of Fictitious Co./Firm & No & Date (In Rs.) Purchase Reversal Account Number of the Bill 1 193 737080/- 01.06.95 Sun 20.11.95 A-4 Proprietor of dated as BP Exports, M/s Sun Exports 13.05.95 14/95 Amritsar 2 199 768200/- 01.06.95 Gold 17.11.95 A-4 Proprietor of dated as BP Export , M/s Gold Exports , 13.05.95 15/95 Amritsar CBI V. S.K. Pathrella & Ors. CC No. 260/2019 6.1 It was revealed in the investigation that the proceeds of above mentioned purchased three cheques and two bills were credited in CA 2783 of M/s Pimco Oversea which caused a total loss of Rs.25,92,502.10 to OBC, New Friends Colony, New Delhi CA No. 2486 of M/s Agronica Overseas :-

7. The investigation qua the aforesaid CA revealed that the same was opened on 06.01.1995 in the name of M/s Agronica Overseas by A-6 Naveen Kakkar (Since PO) as its proprietor which was allowed to opened by A-1. The account was introduced by A-5 Rajesh Batra of M/s Batra Traders. A-6 was the younger brother of A-2. The details of two cheques and two bills as were purchased by A-1 in the said account are as under:

Sl. Cheque Amount Date of Drawn On Date of Fictitious No. and Date (IN Rs.) Purchase Return Co./Firm & of of the Account Number Purchase Cheque 1 714019 743,950/- 10.10.95 Punjab & - A-4

07.10.95 as DD Sindh Bank, Proprietor of 1271 Lajpat M/s Sun Nagar, Exports , CA Jalandhar no. 2099 2 140445 347,615/- 16.10.95 Hongkong 21.10.95 Meneka 12.10.95 as DD & Shanghai Kakkar (wife 1341 Banking of A-2) Corp., Proprietor Chandni M/s Jimmy Chowk, Crown New Delhi

Enterprises CBI V. S.K. Pathrella & Ors. CC No. 260/2019 S Bills No. Amount Date of Drawn on Date of Beneficiary/ N and Date (IN Rs.) Purchase Reversal Co./Firm & of the Account Number Bills 1 001 761,940/- 28.09.95 Sun Exports 20.11.95 A-4 Proprietor of dated as BPM Jalandhar M/s Sun Exports 27.09.95 64 CA 2099 2 002 732,757/- 29.09.95 -do- -do- A-4 Proprietor of dated as BPM M/s Sun Exports 27.09.95 73 CA 2099 7.1 The investigation revealed that the proceeds of said two cheques and two bills which were purchased in this account were credited in C.A No. 2846 of M/s Agronica Oversea from where an amount of Rs.2.35 lacs was withdrawn in cash, while amount of Rs.6.60 was transferred to M/s Altos Enterprises of A-3 J.S Logani and A2 Ghanshyam Kakkar. Further, an amount of Rs.7.27 lacs was transferred to account of M/s Subnit Enterprises of A-7 Sanjeev Arora. A total loss of Rs.25,86,080 was caused in the account due to purchase of aforesaid two cheques and two bills.

8. The investigation further revealed that the bills/cheques purchased in the above-mentioned five beneficiary current accounts at OBC, NFC, New Delhi were issued from the following 'Fictitious Accounts':

Current A/c No. 4378 of M/s Gold Exports, Prop. H.S. Dhingra at Central Bank of India, Majith Mandi Br., Amritsar. 8.1 Investigation has further revealed that CA no. 4378 in the name of M/s Gold Exports was opened by A-4 H. S. Dhingra as its CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Prop. on 31.1.95 at Central Bank of India, Majith Mandi Br., Amritsar. Cheque book from Sl. No. 035726 to 035750 was issued to him. The said a/c was opened by initial cash deposit of Rs.

1,000/- and there was no transaction in the said a/c and the maximum balance in the a/c during the period 31.1.95 to 9.9.96 was Rs.1,000/-.

CA no. 1398 of M/s Sun Exports, Prop. H.S. Dhingra, Central Bank of India, Guru Bazar, Amritsar.

8.2 Investigation has further revealed that CA no. 1398 was opened on 30.1.95 in the name of M/s Sun Exports By A-4 H.S. Dhingra as its Proprietor at Central Bank of India, Guru Bazar, Amritsar. Cheques from Sl. No. 049001 to 049050 were issued to him on 30.1.95. The a/c was opened by initial cash deposit of Rs.500 and thereafter no transaction was made therein. The said amount of Rs. 500/- was exhausted on account of debit to the account due to return of cheque/bills and incidental charges. On 21.03.1996, there was no balance in the said account.

CA No.2099 of M/s Sun Exports, Prop. H.S.Dhingra, Punjab & Sindh Bank, Lajpat Nagar, Jalandhar.

8.3 It was further disclosed that CA no. 2099 was opened on 2.2.95 in the name of M/s Sun Exports by A-4 H.S. Dhingra as its Proprietor at Punjab & Sindh Bank, Lajpat Nagar, Jalandhar. The a/c was opened by an initial deposit of Rs.1500/- and thereafter there was no transaction in the said a/c. The a/c was closed on CBI V. S.K. Pathrella & Ors. CC No. 260/2019 19.12.95. The maximum balance in the said a/c during the period 2.2.95 to 19.12.95 was never more than Rs. 1500/-. Cheque book from Sl. No. 714001 to 714050 was issued to A-4 H.S. Dhingra in the said a/c on 02.02.1995.

Current a/c no. 6199 of M/s Gold Exports, Prop. J.S. Logani at OBC, NIT, Faridabad.

8.4 Investigation has further revealed that current a/c no. 6199 in the name of M/s Gold Exports was opened on 27.12.94 at OBC, NIT, Faridabad by A-3 J.S. Logani as its Proprietor. The account was opened with an initial cash deposit of Rs.1000/- and thereafter there was no transaction in the said account.

Current a/c no. 29061 of M/s Sachdeva Offset and Packaging Industries Pvt. Ltd. at Union Bank of India, Okhla Indus. Area Branch, New Delhi.

8.5 It was further transpired during investigation that current a/c no. 29061 was opened on 9.11.90 at Union Bank of India, Okhla Industrial Area Branch, New Delhi in the name of M/s Sachdeva Offset and Packaging Industries Pvt. Ltd.

Current A/c no. 052-01979-001 of M/s Jimmy Crown Ent. Prop. Mrs. Menka Kakkar at Hongkong Bank, Daryaganj, Delhi.

8.6 It was revealed that current a/c no. 052-01979-001 was opened on 4.2.88 in the name of M/s Jimmy Crown Ent. with Mrs. Menka Kakkar at its Proprietor (wife of A-2). A-2 Ghanshyam CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Kakkar was given Power of Attorney to sign as authorised signatory by Mrs. Menka Kakkar who is wife of A-3.

Current a/c no. 224 of M/s Ganpati Enterprises, Prop. Vikram Arora at State Bank of Patiala, Hapur.

8.7 It was disclosed during investigation that current a/c no. 224 was opened at State Bank of Patiala, Hapur, U.P on 16.9.94 in the name of M/s Ganpati Enterprises by A-8 Vikram Arora as its Proprietor. Cheque book from serial no. 253426 to 253450 was issued to A-8. The a/c was opened with the initial cash deposit of Rs.1000 and thereafter there was only one credit of Rs. 1.50 lacs on 28.10.94. The maximum balance in this a/c between 7.11.94 to 12.12.94 was Rs.40,990/-.

Current a/c no. 13 of M/s Ashoka Industries, Prop. Sh. Sanjeev Arora at Syndicate Bank, Dutai, Tehsil Garh Mukteshwar, Distt. Ghaziabad.

8.8 Investigation further disclosed that current a/c no.13 in the name of M/s Ashoka Industries was opened on 16.9.94 by A-7 Sanjeev Kr. Arora as its Proprietor. The said a/c was opened with an initial cash deposit of Rs.1000 and thereafter there was no cash transaction in the a/c. The a/c was closed on 19.2.96. The balance in the a/c during the said period was never more than Rs.1000.

Current a/c no. 1230 of M/s Sun Glow Travels & Tour Operator, Prop. Sh. Joginder Singh Logani at Punjab National Bank, ASC, Alaknanda Branch, New Delhi.

8.9 Investigation has disclosed that current a/c no. 1230 in the

name of M/s Sun Glow Travels & Tour Operator was opened on 15.7.93 by A-3 J.S. Logani as its Proprietor. The a/c was opened with an initial cash deposit of Rs. 5000. The balance in the a/c during the said period from 15.7.93 to 31.3.96 was never more than Rs.34,654/-.

Current a/c no. 964 of M/s Bhushan Mineral Industries Pvt. Ltd., Director Sh. Jagat Bhushan at Punjab National Bank, Patel Nagar, Dehradun.

8.10 Investigation has disclosed that current a/c no. 964 in the name of M/s Bhushan Mineral Industries Pvt. Ltd. was opened on 22.12.94 with S/Sh. M.R. Batra, Bharat Bhushan, Jagat Bhushan and Chander Bhushan as Directors. The said a/c was opened with an initial cash deposit of Rs.1000.

9. Thus, in the end, it is concluded that A-1, the then Branch Manager, Oriental Bank of Commerce, NFC, New Delhi and A-2, A-3 (proceedings quashed by Hon'ble High Court), A-4, A-5, A-6, A-7 and A-8 in a criminal conspiracy with each other cheated the OBC, by way of aforesaid fraudulent purchase of a total number of 31 cheques and 8 bills amounting to Rs.1,58,86,908.60. Investigation also revealed that A-1 exceeded his discretionary powers in terms of the Circular No. HO/ADV/28/91-92/85 dated CBI V. S.K. Pathrella & Ors. CC No. 260/2019 01.07.1991 issued by General Manager (Operation) OBC and applicable for the relevant period.

9.1 A-1 was authorised to purchase third party cheque upto Rs.7.5 lacs only in a single account. Further, he was only authorised to purchase third party cheques upto 30 lacs collectively in allied/sister/associate concern. However, A-1 abused his official position as public servant. Further, there was no sanctioned limit for purchase of third party cheques in the aforesaid accounts, even then A-1 continued to allow the purchase of cheques despite the fact that the accounts were showing outstanding.

9.2 Thus, the investigation disclosed commission of offences under Section 120B IPC r/w Section 420/467/468/471 IPC & Sec. 13 (2) r/w Sec 13 (1) (d) of PC Act and substantive offence under Section 420 IPC against accused persons.

10. During the course of proceedings, A-2 Ghanshyam Kakkar and A-6 Naveen Kakkar were declared Proclaimed Offenders vide order dated 17.04.2010. The proceedings against A- 3 Joginder Singh Logani stands quashed vide order dated 04.09.2015 by Hon'ble Delhi High Court.

10.1 The proceedings against A-1 S.K. Pathrella also stands postponed vide order dated 01.03.2025 u/s 368 of BNSS 2023 on account of his Mental Condition.

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(II) CHARGE

11. The cognizance of the offence was taken on 08.02.2007 and accused persons were, accordingly, summoned. After supplying the copies and hearing the arguments on charge, charges were framed against accused persons (A-1, A-4, A-5 & A-7) on 21.07.2012 & against A-8 on 28.05.2022 as follows:

Charge Number	Under Section	Qua Accused Person
Charge No.1	120B IPC r/w Sections 420/467/468/471 IPC and	A-1 S.K. Pathrella, A-3 Joginder Singh Logani

Section 13(2) r/w 13 (1) (d) (proceedings quashed vide r/w 13 (1) (d) of PC Act order dated 409.2015), A-5 1988 Rajesh Batra, A-7 Sanjeev Arora and A-8 Vikram Arora.

Charge No.2 420 IPC r/W Section 120B A-1 S.K. Pathrella IPC Charge No.3 13 (2) r/w 13 (1) (d) of PC A-1 S.K. Pathrella Act 1988 Charge No.4 420 IPC r/w 120B IPC A-1 S.K. Pathrella & A-3 J.S Logani Charge No.5 420 IPC r/w 120B IPC A-1 S.K. Pathrella & A-5 Rajesh Batra Charge No.6 420 IPC r/w 120B IPC A-1 S.K. Pathrella & A-3 J.S Logani Charge No.7 420 IPC r/w 120B IPC A-1 S.K. Pathrella, A-3 J.S Logani, A-7 Sanjeev Arora & A-8 Vikram Arora Charge No.8 468 IPC & 467 IPC r/w A-5 Rajesh Batra Section 420 & 120B IPC CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Main 120B r/w 420/467/468/471 A-4 Harsimran Dhingra Charge/Subs IPC & 13 (2) r/w 13 (1) (d) tantive of PC Act 1988 & 420 IPC Charge r/w 120B IPC 11.1 The accused persons pleaded not guilty and claimed trial for the charges framed.

(III) Prosecution Evidence

12. The prosecution in order to prove its case examined 60 witnesses following which statement of accused under Section 313 Cr.P.C was recorded in which only A-4 and A-5 chose to lead evidence in defence.

(i) Bank Witnesses related to Beneficiary Accounts with Oriental Bank of Commerce, NFC, New Delhi and Fictitious Accounts with Other Banks

13. PW-1 K.D Grover is retired Manager from Oriental Bank of Commerce, New Friends Colony. He was posted at New Friends Colony Branch in 1997 and worked under S.K. Pathrella (A-1) who was the Senior Manager. He identified the signatures of A-1 and other bank officials namely V.K. Sehgal, Sh. Balbir Singh Godara, Sh. D.P. Dhingra, and Sh. A.K Khanna on various documents and proved the same. He got exhibited account opening form of current account no. 2783 (D-178) of M/s Pimco Overseas Ex.PW-1/A, specimen signatures card (D-179) Ex.PW-1/B, credit voucher CBI V. S.K. Pathrella & Ors. CC No. 260/2019 through which bill no. 14/95 and 15/95 were purchased Ex.PW-1/C (D-181) and credit voucher of commission qua the aforesaid bill Ex.PW-1/D (D-182), Debit Voucher Ex.PW/E (D-183), Bill of Exchange Ex.PW-1/F (D-184), its transport receipt

Ex.PW1/G and invoice Ex.PW1/H, Credit Voucher in favour of M/s Pimmco Overseas, Ex.PW1/I (D-190), Debit Cheque Ex.PW1/J (D-191), another Debit Cheque Ex.PW1/K (D-192), Bearer Cheque of M/s Pimmco Overseas drawn in favour of Ram Gopal as Ex.PW1/L (D-

193), Bearer Cheque of M/s Pimmco Overseas in favour of Sh. Bobby Ex.PW1/M (D-194), Credit Voucher in favour of M/s Pimco Overseas as Ex.PW1/N ((D-195), Credit Voucher related to the commission Ex.PW1/O (D-196), Debit Voucher related to purchase of above DD as Ex.PW1/P (D-197), Pay-in-Slip related to above DD (D-198) (not exhibited as per evidence), self cheque drawn by M/s Pimmco Overseas Ex.PW1/Q (D-199), Debit Voucher in favour of M/s Pimmco Overseas Ex.PW1/R (D-200), Credit Voucher related to interest charged by the bank Ex.PW1/S (D-201), Credit Voucher related to purchase of DDs Ex.PW1/T (D-202), Debit Voucher Ex.PW1/U (D-203), Agreement regarding bill purchase between the bank and M/s Pimmco Overseas Ex.PW1/V (D-212), Agreement of Guarantee executed by the Guarantor G.D Kakkar and the bank Ex.PW1/W (D-213), Agreement of Guarantee between Sh. S.Banerjee and the Bank Ex.PW1/X (D-214), Agreement regarding bill purchased executed between the bank and the party CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW1/Y (D-218) and Agreement for Cash Credit/Overdraft executed between the bank and the party Ex.PW-1/Z (D-219).

14. PW-2 C.M Khurana was posted as Chief Manager at Karol Bagh, New Delhi in the year 1994. He explained the procedure for processing/ sanctioning of loan/ advance including purchasing of third party cheques and bills in detail. He identified the Circular dated 01.07.1991 (D-3) issued by General Manager (Operations) relating to revision in discretionary powers of loans and advances as Ex.PW2/A . He further stated New Friends Colony Branch of the bank was a Scale IV Branch in the year 1994-95 and Suresh Pathrella was the Manager at that time.

15. PW-3 K.L Bhutiani was posted as Dy. Chief Manager, Oriental Bank of Commerce at Head Office, Connaught Place, New Delhi. He got proved the seizure memo dated 29.09.1997 as Ex.PW3/A (D-2) through which he had handed over circular Ex. PW2/A to Inspector CBI .

16. PW-4 K.C Sharma was working as Special Assistant at OBC, Daultabad Faridabad in the year 1997. He proved the account opening form Ex.PW4/A (D-85) and specimen signature card Ex.PW4/B (D-86) of M/s Gold Exports, Anaz Mandi, Old Faridabad, Proprietor Sh. Joginder Singh Logani. He further proved the statement of account of the said account from 1.1.1996 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 to 06.10.1997, 1.01.1994 to 1.10.1995 and 1.1.1995 to 1.1.1996 as Ex.PW4/C1 to C3 (D-87). The maximum balance during the period 27.12.1994 to 06.10.1997 in the said account was Rs.1000/-.

17. PW-5 Ishwar Singh was posted as Officer at NIT Branch, Faridabad, Oriental Bank of Commerce in the year 1997. He proved the entry regarding Cheque Book issued to Sh. Logani with numbers 20001 to 20025 as Ex.PW5/A (D-28) and ABC/IBC Clearing Register as Ex.PW5/B (D-88). He proved another ABC/IBC Clearing register maintained at NIT, Faridabad branch of OBC as Ex.PW5/C (D-89).

17.1 PW-5 further proved the Dispatch Register Ex.PW5/D (D-

90). After referring to Cheque no. 20019 (D461) in the sum of Rs. 6,32,435.35 (Ex.PW5/F), he stated that the same was drawn on Gold Export, NIT Branch in favour of Red Cat Agencies was purchased by New Friends Colony and sent to NIT Branch for collection by DD No.851/95.

18. PW-6 Jagjit Singh Dang was posted as Manager at Punjab & Sind Bank, Lajpat Nagar, Jalandar, Punjab during 1994-96. He proved the current account opening form of M/s Sun Exports got opened by Harsimran Singh (A-4) as Ex.PW6/A1 (D-93). He further stated cheque book from 714001 to 714050 was issued to M/s Sun Exports. He further proved the specimen signature card of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 aforesaid current account bearing signatures of Harsimran Singh Ex.PW6/A2 (D-94), Cheque Book Issue register as Ex.PW6/B (D-

77) and Inward Bills for Collection (IBC) register Ex.PW6/C (D-

76). He identified the entries in the said register qua bill no.74/95, 63/95, 63/95, 64/95, 65/95 and 73/95. All the bills were returned unpaid.

18.1 He also identified the letter of OBC, NFC Ex.PW6/D whereby two bills were forwarded vide Ex.PW6/D (D-300). The documents received alongwith the said bills are Ex.PW6/E . He also identified the another letter of OBC, NFC, New Delhi, Ex.PW6/F (D-336) forwarding bill No.001/95/96 and the entry of the same being recorded in the register.

18.2 He also identified the another letter of OBC, NFC, New Delhi, Ex.PW6/H (D-337) forwarding bill No.73/95 and the entry of the same being recorded in the register. He also identified the documents received with the said bill as Ex.PW6/J. He also proved the ledger sheet of M/s Sun Exports as Ex.PW6/K (D-98), seizure memo Ex.PW6/L (D-78) and Ex.PW6/M (D-74). He further identified and proved various cash vouchers, Manager's cheque etc vide Ex.PW6/L1 to Ex.PW6/L5 (D-79 to D-83). He also proved the cheque returning register Ex.PW6/M1 (D-75) and explained various entries in the said returning register qua the cheques return relating to M/s Sun Exports. He also identified and proved the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 cheque bearing No. 714019 (D-357) in favour of M/s Agronica Overseas vide Ex.PW6/N and return memo Ex.PW6/N1 (D-360). He also identified and proved another cheque bearing No. 714028 (D-586) in favour of M/s Red Cat Agencies vide Ex.PW6/O and return memo Ex.PW6/O1 (D-616). He also proved the letters written by the Chief Manager of their Branch to OBC, GT Road, Jalandhar vide Ex.PW6/P and Ex.PW6/Q (D-101). He also identified and proved the letter of their Manager to OBC, NFC, New Delhi, Ex.PW6/R and addressed to A-4 the Proprietor of M/s Sun Exports Ex.PW6/S, T and U (Part of D-101).

19. PW-7 Avtar Singh Narang was posted as Sr. Manager, Branch Office, Lajpat Nagar, Jalandhar, Punjab & Sind Bank in the year 1997. He proved the seizure memo Ex.PW7/A (D-92) through which he had handed over documents to CBI related to Current Account No.2099 in the name of M/s Sun Exports of Sh. H.S Dhingra (A-4).

19.1 He also proved certified copy of Bill Collection Register Ex.PW7/B (D-95), Cheque Returning Register as Ex.PW7/C (D-

96), Cheque Book Issue Register Ex.PW7/D (D-97), Original Voucher regarding collection of returning bill charges Ex.PW7/E (D-99), letter dated 08.03.1996 Ex.PW7/F (D-100) written by OBC to their bank related to returning charge on account of bill collection. He proved one file (D-101) containing correspondence CBI V. S.K. Pathrella & Ors. CC No. 260/2019 with OBC by their bank with regard to the bills purchased and operation of account of M/s Sun Exports. He identified his signatures various documents contained in the said file as Ex.PW7/G1 to PW7/G10. Lastly, he proved the certified copy of Manager Check Register Ex.PW7/H (D-102).

20. PW-8 Subhash Chandra Bambi is the official from Union Bank, Zonal Office, Shaheed Bhagat Singh Marg, Gole Market, New Delhi and proved the account opening form of M/s Sachdeva Offset and Packaging Industries Pvt Ltd which was opened by Ms. Promila Sachdeva and Mohinder Kumar Sachdeva. The account number allotted to M/s Sachdeva Offset and Packaging was 29061 and cheque book no.83701 to 83725 was issued in the said account under his signatures. He proved the documents of the said account as Ex.PW8/A1 (D-17).

21. PW-9 Malvinder Singh Gujral is the official from Punjab and Sind Bank, at Lajpat Nagar Branch, Jalandhar. The witness after referring to Ex.PW7/B (D-95) stated that it had his signatures at all relevant entries related to bills received from OBC, NFC, New Delhi for collection. The said bills were accompanied by goods receipt, forwarding letter etc. The said bills were returned unpaid. PW-9 thereafter referred to various documents Ex.PW6/D, Ex.PW6/E, Ex.PW6/F, Ex.PW6/G, Ex.PW6/H, Ex.PW6/J (collectively) and Ex.PW7/B. CBI V. S.K. Pathrella & Ors. CC No. 260/2019

22. PW-10 Balbir Singh is the Sr. Manager, Punjab & Sind Bank at Lajpat Nagar branch Jalandhar . He proved and identified the documents concerning cheques returned as Unpaid issued on behalf of M/s Sun Exports vide document Ex.PW7/C. He also proved the remaining documents i.e cheque book issuance register Ex.PW7/D, Ledger Leaf of M/s Sun Exports Ex.PW6/K. The cash deposit slip, debit voucher, credit voucher issued from the account of M/s Sun Exports were proved as Ex.PW6/L1 to Ex.PW6/L5 and Ex.PW7/E. He also proved the various letters written by their Bank to A-4 being proprietor of M/s Sun Exports or OBC regarding dishonour of the cheques as referred earlier in the version of PW-6 and PW-7.

23. PW-12 Ramesh Chand Raheja was posted as Manager at OBC, NFC, New Delhi where S.K. Pathrella (A-1) was the Chief Manager. He proved the debit voucher dated 25.04.1995 Ex.PW12/A (D-455) through which the bank had charged Rs.3158/- as VPL charges (Value Paid Letter) in the account of M/s Red Cat Agencies. He further stated that the said debit voucher related to two bills bearing BP No.51/95 and 48/95. He further got exhibited the debit vouchers dated 13.07.1995 and 09.08.1995 as Ex.PW12/B (D-609) and Ex.PW12/C (D-610) for Rs.3839/- and Rs.3471/ respectively charged by the bank towards VPL charges debiting the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 account of M/s Red Cat Agencies. He also identified the signature of S.K. Pathrella as well as V.K. Seghal on the said vouchers.

24. PW-13 B.S Kataria Officer with Punjab National Bank, Alakhnanda Branch, New Delhi who proved the account opening form Ex.PW13/A (D-32) submitted by J.S Logani as proprietor of M/s Sun Glow Travels and Tour Operators. He further got exhibited the specimen signature card as

Ex.PW13/A2 (D-33), original current account ledger sheet and another sheet showing status of account as inoperative as Ex.PW13/A3 (D-34/1 and 2).

24.1 He after referring to register of cheque return and relevant entries from 20.10.1995, 21.10.1995 and 25.10.1995, stated that the said entries related to returning of cheques 'unpaid' of M/s Sun Glow Tours and Travels. He got exhibited the relevant entries as Ex.PW13/D (Part of D-35).

25. PW-14 Anil Mehra is an official from Central Bank of India (CBI), Majith Mandi, Amritsar. He proved the account opening form as Ex.PW14/A (D-115) in respect of current account in the name of M/s Sun Exports by its proprietor Har Simran Dhingra. He also got exhibited specimen signature card as Ex.PW14/B (D-112), specimen signature slip Ex.PW14/C (D-113) and form as Mark P14/A (D114).

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26. PW-15 Ashok Verma was posted as Chief Manager,

Personnel Department, Head office, OBC in the year 1998. He proved the seizure memo as Ex.PW15/A (D-163) through which he handed over various documents to CBI. Further, he also proved the appointment, joining, relieving etc., Ex.PW15/A3 (D-166), letter dated 16.04.1994 Ex.PW15/A4 (D167) addressed to S.K. Pathrella whereby he was posted as incumbent Incharge, New Friends Colony Branch, another letter dated 14.11.1994 Ex.PW15/A5 (D-

168) promotion to Sr. Manager, letter dated 15.11.1995 Ex. PW15/A6 (D-169) advising Sh. Bahman to take over charge from S.K. Pathrella. He also proved letter dated 15.11.1995 Ex.PW15/A7 (D-170) reliving S.K. Pathrella from his duties at New Friends Colony Branch.

27. PW-16 J.L Behl was posted as Scale-II Manager at Putli Ghar Branch of OBC, Amritsar where Sh.R.S Kang was the Sr. Manager at the relevant time. He identified the signature of Sh. R.S Kang on document Mark P16/1 (Part of D-173). He stated that there were four cheques purchased in the year 1998 and Sh. R.S Kang exercising his discretionary powers allowed crediting of the amount of the said cheques in account of concerned party. The said cheques were returned unpaid and therefore, were shown as outstanding in the account of the party.

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28. PW-17 Reeta Chhabra is the official from Oriental Bank of Commerce who was posted in New Friends Colony Branch as Clerk when A-1 Sh. Pathrella was the Branch Manager from April 1994 to 1995 .She was posted in Dispatch Section of the branch. She explained that her duty/job was to make entry of all the letters which are sent to outside parties from bank in a register. After referring to dak dispatch register from 12.04.1994 to 09.01.1995, 01.08.1995 to 11.01.1996 and 02.01.1995 to 28.12.1995, she identified the signatures of Sh. P.C Bahman, Branch Manager and got marked the copies of dispatch register Mark P-17/A1 to A3. She also identified her writings with respect to entries qua purchase of various cheques as referred in documents Mark P-17 A-1 (D-4) and Mark

P-17/A-3 (D-6).

29. PW-18 R.C Agarwal was posted in PNB GK-II Branch in the year 1998. He proved the seizure memo Ex.PW18/A through which he had handed over certain documents to the Investigating Officer. He identified his signatures document viz; Specimen Signature Card { Ex.PW.11/B (D-50)} concerning account of M/s Sehgal Developers, Statement of Account as Ex.PW18/B (D-51), cheque issue register Ex.PW18/C (D-52) having series from 141851 t 141900 and cheque returning register as Ex.PW-18/D (D-53).

30. PW-19 S.S Kataria was posted as Assistant Manager at Central Bank of India, Guru Bazar, Amritsar Branch from CBI V. S.K. Pathrella & Ors. CC No. 260/2019 November 1992 to August 1995. He proved the document Ex.PW14/B the specimen signature card of current account No.1398 in the name of M/s Sun Exports, Proprietorship of H.S Dhingra (A-4). He also proved the proprietorship form as Ex.PW19/A, statement of account of current account No.1398 of M/s Sun Exports for the period 30.1.1995 to 21.03.1996 as Ex.PW19/B, copy of cheque book delivery register as Ex.PW.19/C, bill received register (Sundry) Ex.PW19/D, VPL register Ex.PW19/E, deposit slip Ex.PW19/F, Debit Vouchers Ex.PW19/G, letters claiming VPL charges Ex.PW19/H1 and H2, letter written to OBC, NFC, New Delhi Ex.PW19/J1, covering letter Ex.PW19/J2, intimation sent to M/s Sun Exports Ex.PW19/J3. He also proved the return of BP Misc. No. 11/95 with drawee M/s Gold Export vide documents Ex.PW19/K1 to K3 (D-148/1 to D-148/3). He also proved the return of BP Misc. No. 51/95 with drawee M/s Sun Export vide documents Ex.PW19/L1 and L2 (D-149/1 and D-149/2). He also proved the return of BP Misc. No. 48/95 with drawee M/s Sun Export vide documents Ex.PW19/M-1 & M2 (D- 150/1 and D-150/2). He also proved the return of BP Misc. No. 47/95 with drawee M/s Sun Export vide documents Ex.PW19/N1 to N3 (D-151/1 to D-151/3). He also proved the return of two cheques on account of 'insufficient funds' drawn from the account of M/s Sun Exports vide Ex.PW19/O-1 to Ex.PW19/O-3 (D-238 and D-239). He also proved the return of cheques on account of reason 'Referred to Drawer' vide memo Ex.PW19/P-1 and CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW19/P-2 (D-145). He also proved the entry about return of bill MFP 006,94-95 with the drawee M/s Gold Exports as Ex.PW19/D (D-118/3). He also proved the entry with regard to return of B.P Misc. 11/95 with the drawee M/s Gold Exports as Ex.PW19/D (D-118/4). He also proved the entry with regard to return of B.P Misc. 14/95 with the drawee M/s Sun Exports as Ex.PW19/D (D- 118/5).

31. PW-20 P.C Bahman was posted as Chief Manager, OBC, NFC, New Delhi and had taken the charge from S.K. Pathrella who was the Chief Manager of the bank before him.

31.1 He further delivered certain documents to CBI vide seizure memo Ex.PW20/A. He further stated that he had certified documents, i.e., Dak Dispatch Register (of the concerned period), Bill Purchase Register (of the concerned period), Authority Register (of the concerned period) and copy of DD/Cheque Purchase Registers (of concerned periods), which were handed over to the CBI through Ex.PW20/A and proved the concerned registers as Ex.PW20/A1 to Ex.PW20/A10.

32. PW-21 Jagdish Kumar Saxena was posted as Manager, OBC, NFC, New Delhi from 1995 to 2000. He further stated that he had handed over certain documents i.e Cheque Book Register

Ex.PW21/1 (D-23) to the I.O vide seizure memo dated 14.01.1999 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW21/A (D-22). He further handed over another register i.e Cheque Book Issue Register Ex.PW21/B1 vide seizure memo dated 06.01.1999 Ex.PW21/B (D-24).

32.1 He further handed over the set of documents vide seizure memo dated 12.08.1997 Ex.PW21/C (D-177). The documents handed over by him are the account opening form (PW- 1/A) of M/s Pimco Overseas (of A-4) , Specimen Signature Card (PW-1/B), Statement of Account (PW-21/C-1), Credit Transfer Vouchers dated 01.06.1995 (PW-1/C to Ex.PW1/D), Debit Transfer Voucher dated 01.06.1995 (Ex.PW1/E), Bill of Exchange dated 30.05.1995 (Ex.PW1/F), Transport Receipt dated 13.05.1995 (Ex.PW1/G), Invoice No. 0092 dated 30.05.1995 (Ex.PW1/H), Letters of Central Bank of India dated 26.06.1995, 25.11.1995 and 11.11.1995, Manjit Mandi Amritsar regarding return of bills (Ex.PW21/C-2 to Ex.PW21/C-4 respectively), Credit Transfer voucher dated 03.06.1995 (Ex.PW1/I), cheques dated 03.06.1995, 02.06.1995, 06.06.1995 and 15.06.1995 (Ex.PW1/J to Ex.PW1/M respectively), Two Credit Transfer Vouchers dated 16.10.1995 (Ex.PW1/N to Ex.PW1/O respectively), Debit Transfer Vouchers dated 16.10.1995 (Ex.PW-1/P), cheque deposit slip (Ex.PW21/C5), again cheque dated 13.10.1995 (Ex.PW1/Q), debit clearing voucher dated 19.10.1995 (Ex.PW1/R), credit clearing vouchers dated 19.10.1995 (Ex.PW1/S & Ex.PW1/T respectively), debit clearing voucher dated 21.10.1995 (Ex.PW1/U), Credit Clearing Voucher CBI V. S.K. Pathrella & Ors. CC No. 260/2019 dated 21.10.1995 (Ex.PW21/C-6), cheque returning memo of PNB, Alaknanda dated 20.10.1995 (Ex.PW13/B), Debit clearing voucher dated 26.10.1995 (Ex.PW1/C-7), sole proprietorship letter dated 01.06.1995 (Ex.PW1/C-8), agreement regarding bill purchased/bill discounted dated 01.06.1995 (Ex.PW1/V), Agreements of Guarantee of G.D Kakkar and Saibal Banerjee dated 01.06.1995 (Ex.PW1/W & PW1/X) and Property documents of Saibal Banerjee dated 01.06.1995 (Ex.PW21/C-9 to Ex.PW21/C-10).

32.2 Further, PW-21 handed over the documents through the seizure memo dated 14.08.1997 Ex.PW21/D (D-222). The documents handed over by him and proved are the account opening form (PW-21/D1) of M/s Batra Traders(of A-5) , Specimen Signature Card (PW-21/D2), Statement of Account (PW-21/D-3), Cheque dated 24.02.1995 (Ex.PW21/D-4), Credit Transfer Vouchers dated 02.03.1995 (Ex.PW21/D-5), Credit Transfer Vouchers of BP No. Misc. 57/95 and 58/95 (Ex.PW21/D-6), Debit Transfer Voucher of said B.P Misc. Bill No. 57/95 and 58/95 (Ex.PW21/D-7), two Cash Payment Cheques, both dated 02.03.1995 (Ex.PW21/D-8 & D-9 respectively), Another Cash Payment Cheque dated 09.03.1995 (Ex.PW21/D-10), Debit Cash Voucher dated 02.05.1995 (Ex.PW21/D-11), Credit Transfer Vouchers, both dated 20.05.1995 (Ex.PW21/D-12 & D-13), Debit Transfer Voucher dated 20.05.1995 (Ex.PW21/D-14), Cheque returning memo, OBC, Katra Ahluwalia, Amritsar dated 18.4.1995 (Ex.PW21/D-15), Cheque returning CBI V. S.K. Pathrella & Ors. CC No. 260/2019 memo of Central Bank of India, Guru Bazar, Amritsar (Ex.PW19/O1), Cheques dated 06.04.1995 (Ex.PW19/O2 & PW19/O3), Cash Order Application Form dated 31.03.1995 (Ex.PW21/D-16), Cheque dated 31.03.1995 (Ex.PW21/D-17), Credit Transfer Voucher dated 08.04.1995 (Ex.PW21/D-18), Cash Payment Cheque (Ex.PW21/D-19), Debit Transfer Voucher dated 19.10.1995 (Ex.PW21/D-20), Credit Transfer Vouchers dated 19.10.1995 (Ex.PW21/D-21 & D-22), Debit Transfer Voucher dated 21.08.1995 (Ex.PW21/D-23), Credit Transfer Vouchers dated 21.08.1995 (Ex.PW21/D-24 & 25), Cheque Deposit Slips dated 21.08.1995 (Ex.PW21/D-26, D-27 and D-28 respectively), another Cheque Deposit Slip dated 18.05.1995

(Ex.PW21/D-29), Cheque dated 18.05.1995 (Ex.PW21/D-30), Cash Payment Cheques dated 22.08.1995 and 21.08.1995 (Ex.PW21/D-31 & D-32 respectively), Deposit Slip dated 30.09.1995 (Ex.PW21/D-33 and 34), Cash Payment Cheque dated 30.09.1995 (Ex.PW21/D-35), Cash Payment Cheque dated 28.10.1995 (Ex.PW21/D-36), Credit Transfer Voucher dated 13.10.1995 (Ex.PW21/D-37), Another Credit Vouchers dated 13.10.1995 (Ex.PW21/D-38 & D-39), Cash Deposit Slip dated 13.10.1995 (Ex.PW21/D-40), Debit Clearing Voucher dated 24.10.1995 (Ex.PW21/D-42), Cheque Returning Memo dated 24.10.1995 of OBC, NFC, New Delhi (Ex.PW21/D-

43), Cheque Returning Memo of PNB, Alaknanda dated 21.10.1995 (Ex.PW21/D-44), Cash Payment Cheque dated 13.10.1995 (Ex.PW21/D-45), the letter "Sole Proprietary Letter CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (LD-1), dated 02.03.1995 (Ex.PW21/D-46), Agreement regarding Bill Purchase/Bill Discounted Advances in course of collection (LD-15) dated 02.03.1995 (Ex.PW21/D-47), Agreement for Guarantee (LD-28) dated 22.03.1995 (Ex.PW21/D-48) and Document Letter of Deposit of Title Deed (Annexure-B) dated 02.03.1995 along with Perpetual Lease Deed, Site Plan, GPA and Agreement to Sell (Ex.PW21/D-49 to Ex.D-53).

32.3 Further, PW-21 handed over the documents through the seizure memo dated 13.08.1997 Ex.PW21/E (D-278). The documents handed over by him and proved are the account opening form of M/s Navyug Traders (Ex.PW21/E-1), Specimen Signature Card (Ex.PW21/E-2), Statement of Account for the period 6.09.1995 to 30.12.1995 (Ex.PW21/E-3), Sole Proprietorship Letter dated 25.09.1995 submitted N. Kapoor (Ex.PW21/E-4), Agreement for Cash Credit/Overdraft dated 25.09.1995 (Ex.PW21/E-5), Agreement regarding Bills Purchased/Bills discounted and Advances against Bills in Course of Collection dated 25.09.1995 (Ex.PW21/E-6), Agreement of Guarantee dated 09.11.1995 (Ex.PW21/E-7), Agreement of Guarantee dated 25.09.1995 (Ex.PW21/E-8), Credit Transfer Vouchers dated 13.10.1995 Credit Transfer Voucher (Ex.PW21/E-9 & E-10), Debit Transfer Voucher Dated 13.10.1995 (Ex.PW21/E-11), Cheque Deposit Slip dated 13.10.1995 (Ex.PW21/E-12), Debit Clearing Voucher dated 24.10.1995 (Ex.PW21/E-13), Cheque Returning letter of OBC, CBI V. S.K. Pathrella & Ors. CC No. 260/2019 NFC dated 24.10.1995 (Ex.PW21/E-14), Cheque Returning memo dated 21.10.1995 (Ex.PW21/E-15), Cheque dated 12.10.1995 (Ex.PW21/E-16), Cash Payment Cheques dated 13.10.1995 (Ex.PW21/E-17 & D-18), Debit Transfer Voucher Dated 25.09.1995 (Ex.PW21/E-19), Credit Transfer Vouchers dated 25.09.1995 (Ex.PW21/E-20 & E-21), Bill Purchased Forwarding Letter dated 25.09.1995 (Ex.PW6/D), Copies of Insurance Policy dated 26.09.1995 (Ex.PW6/E (colly)), Letter dated 06.09.1995 (Ex.PW6/E-22), Cash Payment Cheque dated 25.09.1995 (Ex.PW6/E-24), Cash Payment Cheques, both dated 04.09.1995 (Ex.PW6/E-25 & E-26) and Letter of M/s Navyug Traders dated 21.09.1995 (Ex.PW6/E-27).

32.4 PW-21 also handed over the documents through the seizure memo dated 13.08.1997 Ex.PW21/F (D-315). The documents handed over by him and proved are the account opening form of M/s Agronica Overseas (of A-6 since PO) (Ex.PW21/F-

1), Specimen Signature Card (Ex.PW21/F-2), Statement of Account for the period 06.09.1995 to 20.11.1995 (Ex.PW21/F-3), Credit Transfer Vouchers, all dated 28.09.1995 (Ex.PW21/F-4 to F-7 respectively), Debit Transfer Voucher Dated 28.09.1995 (Ex.PW21/F-9), Credit Transfer Voucher dated 28.09.1995 (Ex.PW21/F-10), Debit Transfer Voucher Dated 29.09.1995 (Ex.PW21/F-11),

Credit Transfer Vouchers, all dated 29.09.1995 (Ex.PW21/F-12 to 15 respectively), Credit Deposit Slip dated CBI V. S.K. Pathrella & Ors. CC No. 260/2019 28.09.1995 (Ex.PW21/F-16), Cash Order/Demand Draft/ Transfer Pay Order/ Telegraphy Transfer Application Form dated 29.09.1995 (Ex.PW21/F-17), Account Payee Cheque dated 28.09.1995 (Ex.PW21/F-18), Debit Transfer Cheque dated 28.09.1995 (Ex.PW21/F-19), Cash Payment (Bearer) Cheque dated 02.03.1995 (Ex.PW21/F-20), Forwarding Schedule related to Bill Purchase/AG/001/95-96 dated 28.09.1995 (Ex.PW6/F), Another Forwarding Schedule related to Bill Purchase Misc. 7395 dated 29.09.1995 (Ex.PW6/H), various documents (Ex.PW6/G) & Ex.PW6/J (collectively), Cheque dated 23.08.1995 (Ex.PW21/F-

21), Credit Deposit Slip dated 30.09.1995 and cheque dated 30.09.1995 (Ex.PW21/F-22 & F-23 respectively), request letter dated 27/09.1995 of M/s Agronica Overseas (Ex.PW21/F-24), Debit Transfer Vouchers, both Dated 10.10.1995 (Ex.PW21/F-25 & F-26 respectively), Cheque/Draft/Cash Deposit Slip dated 09.10.1995 (Ex.PW21/F-27), Cheque dated 07.10.1995 (Ex.PW6/N), Carbon Copy of Forwarding Schedule of DD No. 1271 dated 10.10.1995 (Ex.PW21/F-28), Cheque Returning Memo dated 14.10.1995 (Ex.PW6/N1), Credit Transfer Voucher dated 16.10.1995 (Ex.PW21/F-30), Debit Transfer Voucher Dated 16.10.1995 (Ex.PW21/F-31), Credit Clearing Voucher dated 21.10.1995 (Ex.PW21/F-32), Cheque Returning Memo dated 20.10.1995 (Ex.PW21/F-33), Debit Clearing Voucher dated 27.10.1995 (Ex.PW21/F-34), Cheque Returning Forwarding Schedule OBC, NFC, New Delhi (Ex.PW21/F-35), Cheque CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Returning Memo of HSBC dated 26.10.1995 (Ex.PW21/F-36), Cash Payment Cheque (Bearer) dated 10.10.1995 (Ex.PW21/F-37), Demand Draft/Cash Voucher/Transfer Pay Order/Telegraphic Transfer Application Form dated 10.10.1995 (Ex.PW21/F-38), Cheque dated 10.10.1995 (Ex.PW21/F-39), Debit Clearing Voucher dated 21.10.1995 (Ex.PW21/F-40), Cheque/Cash/Draft Deposit Slip dated 17.10.1995 (Ex.PW21/F-41), Cheque dated 12.10.1995 (Ex.PW21/F-42), Cash Payment Cheque (Bearer) dated 13.10.1995 (Ex.PW21/F-43), Demand Draft/Cash Voucher/Transfer Pay Order/Telegraphic Transfer Application Form dated 16.10.1995 (Ex.PW21/F-44), another Demand Draft/Cash Voucher/Transfer Pay Order/Telegraphic Transfer Application Form dated 16.10.1995 (Ex.PW21/F-46), Credit Transfer Voucher dated 14.10.1995 (Ex.PW21/F-47), Pay Order dated 670450 dated 10.10.1995 (Ex.PW21/F-48), Application for cancellation of pay order (Ex.PW21/F-49).

32.5 PW-21 further handed over the documents through the seizure memo dated 18.08.1997 Ex.PW21/G (D-382). The documents handed over by him and proved are the account opening form of M/s Red Cat Agencies (of A-2 & JS Logani) (Ex.PW21/G-1), Specimen Signature Card (Ex.PW21/G-2), unattested photocopy of Partnership Deed P21/1, Statement of Account for the period 31.03.1995 to 09.02.1996 (Ex.PW21/G-3), Cash Deposit Slip dated 31.10.1994 (Ex.PW21/G-4), Cash Payment CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Cheque (Bearer) dated 05.10.1994 (Ex.PW21/G-5), Debit Clearing Cheque dated 03.10.1994 (Ex.PW21/G-6), Credit Transfer Vouchers, both dated 03.10.1994 (Ex.PW21/G-7 & G-8), Debit Transfer Voucher Dated 03.10.1994 (Ex.PW21/G-9), Cheque Deposit Slip (Ex.PW21/G-10), Credit Transfer Vouchers, both dated 06.10.1994 (Ex.PW21/G-11 & G-12), Debit Transfer Voucher Dated 06.10.1994 (Ex.PW21/G-13), Cheque Deposit Slip dated 6.10.1994 (Ex.PW21/G-14), Cheque Deposit Slip dated 06.10.1994 (Ex.PW21/G-15), Debit Clearing Cheque dated 05.10.1994 (Ex.PW21/G-16), Cash

Payment Cheque (Bearer) dated 31.10.1994 (Ex.PW21/G-17), Cash Payment Cheque (Bearer) dated 02.11.1994 (Ex.PW21/G-18), Cash Payment Cheque (Bearer) dated 7.11.1994 (Ex.PW21/G-19), Debit Clearing Cheque dated 29.11.1994 (Ex.PW21/G-20), Debit Transfer Voucher Dated 03.12.1994 (Ex.PW21/G-21), Credit Transfer Vouchers, both Dated 03.12.1994 (Ex.PW21/G-22 & G-23), Credit Transfer Vouchers, both Dated 23.12.1994 (Ex.PW21/G-24 & G-25), Debit Transfer Voucher Dated 23.12.1994 (Ex.PW21/G-26), Cheque Deposit Slip dated 8.12.1994 (Ex.PW21/G-27), Cash Payment Cheque (Bearer) dated 23.12.1994 (Ex.PW21/G-28), Debit Clearing Cheques, all dated 16.12.1994 (Ex.PW21/G-29, G-30 and G-31 respectively).

32.6 Further, PW-21 proved the M/s Red Cat Agencies' documents i.e Cash Payment Cheque (Bearer) dated 06.01.1995 (Ex.PW21/G-32), Credit Transfer Vouchers, both dated 06.01.1995 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (Ex.PW21/G-33 & G-34 respectively), Credit Transfer Vouchers, all dated 06.01.1995 (Ex.PW21/G-35, G-36 & G-37 respectively), Credit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-38), Debit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-39), Cheque Deposit Slip Dated 06.01.1995 (Ex.PW21/G-40), Credit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-41), Debit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-42), Credit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-43), Debit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-44), Credit Transfer Voucher dated 06.01.1995 (Ex.PW21/G-45), Credit Transfer Vouchers, both dated 31.03.1995 (Ex.PW21/G-46 & G-47), Cheques both dated 06.01.1995 (Ex.PW21/G-48 & G-49), Cheque dated 10.01.1995 (Ex.PW21/G-50), Cheque dated 01.01.1995 (Ex.PW21/G-51), Cheque dated 12.01.1995 (Ex.PW21/G-52), Cheque dated 06.01.1995 (Ex.PW21/G-53), Cheque dated 17.01.1995 (Ex.PW21/G-54), Draft/Cash Order/TPO printed application form dated 18.01.1995 (Ex.PW21/G-55), Cheques, both dated 21.01.1995 (Ex.PW21/G-56 & G-57), Debit Transfer Voucher dated 18.01.1995 (Ex.PW21/G-58), Credit Transfer Vouchers both dated 18.01.1995 (Ex.PW21/G-59 & G-60), Credit Transfer Vouchers, both dated 21.01.1995 (Ex.PW21/G-61 & G-62), Credit Transfer Voucher dated 21.01.1995.

32.7 Further, PW-21 proved the M/s Red Cat Agencies' documents i.e Debit Transfer Voucher dated 21.01.1995

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(Ex.PW21/G-63), Credit Transfer Vouchers, all dated 21.01.1995 (Ex.PW21/G-64, G-65 & G-66), Debit Transfer Voucher dated 21.01.1995 (Ex.PW21/G-67), Credit Transfer Vouchers, both dated 30.05.1995 (Ex.PW21/G-67 & G-68), FDR dated 21.01.1995 (Ex.PW21/G-70), Debit Cash Voucher dated 25.04.1995 (Ex.PW21/G-71), Cheque dated 25.01.1995 (Ex.PW21/G-72), Credit Transfer Vouchers, both dated 02.02.1995 (Ex.PW21/G-73 & G-74), Debit Transfer Voucher dated 02.02.1995 (Ex.PW21/G-

75), Cash/Cheque Deposit Slip dated 02.02.1995 (Ex.PW21/G-76), Cheque dated 02.02.1995 (Ex.PW5/F), Debit Transfer Voucher dated 21.02.1995 (Ex.PW21/G-77), Credit Transfer Vouchers both dated 21.02.1995 (Ex.PW21/G-78 & G-79), Copy of Outward Schedule for cheque dated 02.02.1995 (Ex.PW21/G-80), Draft/Cash Order Application dated 02.02.1995 (Ex.PW21/G-81), Copy of draft dated 02.02.1995 (Ex.PW21/G-82), Cheque dated 02.02.1995 (Ex.PW21/G-83), Cheques dated 02.02.1995 (Ex.PW21/G-84 & G-85), Cheque dated 03.02.1995 (Ex.PW21/G-

86), Cheque dated 05.02.1995 (Ex.PW21/G-87), Cheque dated 14.02.1995 (Ex.PW21/G-88), Cash/Cheque Deposit Slip dated 17.02.1995 (Ex.PW21/G-89), Cheque dated 17.02.1995 (Ex.PW21/G-90), Cheque dated 17.02.1995 (Ex.PW21/G-91), Cheque dated 06.02.1995 (Ex.PW21/G-92), Cheque dated 20.02.1995 (Ex.PW21/G-93), Cheque dated 22.02.1995 (Ex.PW21/G-94), Cheque dated 24.02.1995 (Ex.PW21/G-95), Cheque dated 25.02.1995 (Ex.PW21/G-96), Cheque dated CBI V. S.K. Pathrella & Ors. CC No. 260/2019 15.02.1995 (Ex.PW21/G-97), Cheque dated 25.02.1995 (Ex.PW21/G-98), Cheque dated 31.03.1995 (Ex.PW21/G-99), Credit Transfer Voucher dated 31.03.1995 (Ex.PW21/G-100), Debit Transfer Voucher dated 31.03.1995 (Ex.PW21/G-101).

32.8 Further, PW-21 proved the M/s Red Cat Agencies' documents i.e Printed Demand Draft/Cash Order/TPO Application form dated 31.03.1995 (Ex.PW21/G-102), Cheque dated 15.04.1995 (Ex.PW21/G-103), Cheques, all dated 03.04.1995 (Ex.PW21/G-104, G-105, G-106 and G-107), Cheques both dated 15.04.1995 (Ex.PW21/G-108 & G-109), Credit Transfer Vouchers all dated 17.04.1995 (Ex.PW21/G-110, G-111 & G-112), Debit Transfer Voucher dated 17.04.1995 (Ex.PW21/G-113), Cash/Cheque Deposit Slip dated 15.04.1995 (Ex.PW21/G-114), Cash/Cheque Deposit Slips, all dated 17.04.1995 (Ex.PW21/G-115, G-116 & G-

117), Cash/Cheque Deposit Slip dated 17.04.1995 (Ex.PW21/G-

118), Cheque dated 15.04.1995 (Ex.PW21/G-119), Cheque dated 08.04.1995 (Ex.PW21/G-120), Cheque dated 10.04.1995 (Ex.PW21/G-121), Debit Transfer Voucher dated 09.05.1995 (Ex.PW21/G-122), printed application form for draft/cash order/TPO dated 04.05.1995 (Ex.PW21/G-123), Debit Transfer Vouchers both dated 10.05.1995 (Ex.PW21/G-124 & G-125), Credit Transfer Vouchers, all dated 15.05.1995 (Ex.PW21/G-126, G-127 & G-128), printed application form for draft/cash order/TPO dated 22.04.1995 (Ex.PW21/G-129), Cheque dated 22.04.1995 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (Ex.PW21/G-130), Cheques all dated 26.04.1995 (Ex.PW21/G-131, G-132 & G-133), Cheque dated 27.04.1995 (Ex.PW21/G-

134), Cheques both dated 30.05.1995 (Ex.PW21/G-135 & G-136), Cash/Cheque Deposit Slip dated 30.05.1995 (Ex.PW21/G-137), Cheques both dated 30.06.1995 (Ex.PW21/G-138 & G-139), Cheque dated 14.07.1995 (Ex.PW21/G-140), Cheques both dated 21.08.1995 (Ex.PW21/G-141 & G-142).

32.9 Further, PW-21 proved the M/s Red Cat Agencies' documents i.e Credit Transfer Vouchers, both dated 21.08.1995 (Ex.PW21/G-143 & G-144), Debit Transfer Voucher dated (Ex.PW21/G-145), Cheque/Cash Deposit Slips all dated 21.08.1995 { (Except Ex.PW21/G-148 having dated NIL), (Ex.PW21/G-146, G-147, G-149, G-150, G-151 & G-152) }, Debit Transfer Voucher dated

18/20.08.1995 (Ex.PW21/G-153), Credit Transfer Vouchers both dated 18/20.08.1995 (Ex.PW21/G-154 & G-155), Cash Payment Cheques (Bearer), all dated 24.08.1995 (Ex.PW21/G-156, G-157 & G-158), Cheque dated 24.08.1995 (Ex.PW21/G-159), Pay Order/Draft Application Form favouring M/s Carda India Electronics (Ex.PW21/G-160), Cheque dated 24.08.1995 (Ex.PW21/G-161), Pay Order/Draft Application Form favouring M/s Subnit Enterprises (Ex.PW21/G-162), Pay Order/Draft Application Form favouring M/s Plight Plastic Industries (Ex.PW21/G-163), Cheques both dated 24.08.1995 (Ex.PW21/G-164 & G-165), Pay Order/Draft Application Form CBI V. S.K. Pathrella & Ors. CC No. 260/2019 favouring M/s Subnit Enterprises (Ex.PW21/G-166), Credit Transfer Voucher both dated 24.08.1995 (Ex.PW21/G-167 & G-

168), Debit Transfer Voucher dated 24.08.1995 (Ex.PW21/G-169), Cheque Deposit Slip dated 24.08.1995 (Ex.PW21/G-170), Cheque dated 24.08.1995 (Ex.PW21/G-171), Cash Payment Cheque (Bearer) dated 26.08.1995 (Ex.PW21/G-172), Cash Payment Cheque (Bearer) dated 29.08.1995 (Ex.PW21/G-173), Cheque dated 29.08.1995 (Ex.PW21/G-174).

32.10 Further, PW-21 proved the M/s Red Cat Agencies' documents i.e Pay Order Application Forms, both dated 29.08.1995 (Ex.PW21/G-175 & G-177), Cheque dated 29.08.1995 (Ex.PW21/G-176), Cheque dated 29.08.1995 (Ex.PW21/G-178), Cash Payment Cheque (Bearer) dated 29.08.1995 (Ex.PW21/G-

179), Cheque dated 16.09.1995 (Ex.PW21/G-180), Cash Payment Cheque (Bearer) dated 06.09.1995 (Ex.PW21/G-181), Cash Payment Cheques (Bearer) both dated 18.09.1995 (Ex.PW21/G- 182 & Ex. PW21/G-183), Debit Clearing Cheque dated 18.09.1995 (Ex.PW21/G-184), Cash Payment Cheque (Bearer) dated 25.09.1995 (Ex.PW21/G-185), Cash Payment Cheque (Bearer) dated 28.09.1995 (Ex.PW21/G-186), Cash Payment Cheque (Bearer) dated 30.09.1995 (Ex.PW21/G-187), Credit Transfer Vouchers all dated 25.09.1995 (Ex.PW21/G-188, G-189 and G-190), Debit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-191), Cheque Deposit Slip Dated 'Nil' for Rs.565989 (Ex.PW21/G-192), Cheque dated 29.09.1995 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (Ex.PW21/G-193), Debit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-194), Credit Transfer Vouchers all dated 25.09.1995 (Ex.PW21/G-195, G-196, G-197 and G-198), Debit Transfer Voucher dated 'Nil' for Rs.122836/- (Ex.PW21/G-199), Cheque Deposit Slip dated 'Nil' for Rs.122836/- (Ex.PW21/G-200), Cheque dated 19.09.1995 (Ex.PW6/O), Credit Transfer Vouchers all dated 25.09.1995 (Ex.PW21/G-201, G-202 & G-203), Debit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-204), Cheque Deposit Slip dated 'Nil' for Rs.553857/- (Ex.PW21/G-205), Cheque dated 29.09.1995 (Ex.PW21/G-206), Debit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-207), Credit Transfer Voucher dated dated 25.09.1995 (Ex.PW21/G-208).

32.11 Further, PW-21 proved the M/s Red Cat Agencies' documents i.e Letter dated 22.09.1995 of M/s Sun Exports to Chief Manager, OBC, NFC, New Delhi (Ex.PW21/G-209), another letter dated 20.09.1995 of M/s Sun Exports to Chief Manager, OBC, NFC, New Delhi (Ex.PW21/G-210), Debit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-211), Credit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-212), Letter dated 26.12.1995 of Canara Bank Jaipur addressed to OBC, NFC, New Delhi (Ex.PW21/G-

213), Letter dated 22.09.1995 & 19.09.1995 of M/s Sun Exports addressed to Chief Manager, OBC, NFC, New Delhi (Ex.PW21/G- 214 & G-215), Credit Transfer Voucher both dt. 30.09.1995 (Ex.PW21/G-216 & G-217), Debit Transfer Voucher dated CBI V. S.K. Pathrella & Ors. CC No. 260/2019 30.09.1995 (Ex.PW21/G-218), Debit Clearing Cheque dated 29.09.1995 (Ex.PW21/G-219), Debit Transfer Voucher dated 01.11.1995 (Ex.PW21/G-220), Credit Transfer Vouchers both dated 01.11.1995 (Ex.PW21/G-221 and G-222), Debit Cash Voucher dated 13.07.1995 (Ex.12/B), Debit Cash Voucher dated 09.08.1995 (Ex.12/C), Debit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-

223), Credit Transfer Voucher dated 25.09.1995 (Ex.PW21/G-224), Cheque returning memo dated 08.02.1995 (Ex.PW5/D), Carbon copy of cheque forwarding schedule (Ex.PW21/G-225), Cheque returning memo dated 30.08.1995 (Ex.PW21/G-226), Cheque returning memo dated 06.10.1995 (Ex.PW6/N1), letter through which cheque of Rs.565989 and Rs.553857 of Central Bank of India, Majith Mandi, Amritsar were returned (Ex.PW21/G-227), Cheque returning memo dated 07.10.1995 (Ex.PW21/G-228), another Cheque returning memo dated 07.10.1995 (Ex.PW21/G-

229), Cheque returning memo dated 06.10.1995 (Ex.PW21/G-230), again Cheque returning memo dated 29.04.1995 (Ex.PW21/G-231), Cheque forwarding Schedule dated 29.08.1995 (Ex.PW21/G-232), Cheque Deposit Slips both dated 29.08.1995 (Ex.PW21/G-233 & G-234), Cash Deposit Slip dated 25.09.1995 (Ex.PW21/G-235), Cash Deposit Slip dated 29.09.1995 (Ex.PW21/G-236), Agreement regarding bill purchase/bill discounting & advance (LD15) dated 06.10.1994 (Ex.PW21/G-237), Agreement for cash credit/overdraft (LD9) dated 31.03.1995 (Ex.PW21/G-238), Agreement of hypothecation of goods (LD11) dated 31.03.1995 (Ex.PW21/G-

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239), the letter in the printed form dated 03.04.1995 alongwith map of property (Ex.PW21/G-240), Letter of request addressed to Chief Manager OBC, NFC, New Delhi qua temporary cash credit facility to M/s Red Cat Agencies (Ex.PW21/G-241), and one perpetual lease of DDA dated 15.05.1992.

33. PW-22 R.K. Chhabra was posted as Computer Operator in Okhla Branch of Indian Overseas Bank. He handed over certain documents to CBI and identified his signature on seizure memo dated 07.10.1997 as Ex.PW22/A. He proved four documents concerning account holder M/s Sachdeva Offset and Packaging Pvt Ltd as Ex.PW8/A-1, PW8/A-2, PW22/A-1 and Ex.PW22/A-2 (D-70 to D-73 respectively).

33.1 He also proved the seizure memo dated 27.11.1997 as Ex.PW22/B vide which the documents Ex.PW22/B-1 (D-65 Cheque Book Issue Register), Letters Ex.PW22/B-2, B-3 (D-66 and D-67) and statement of account Ex.PW22/B-4 (D-68) were handed over during the investigation.

34. PW-23 Narender Kumar Chaudhary was posted as Cashier- cum-Clerk at Hapur Branch of State Bank of Patiala. He proved the current account opening form as Ex.PW23/A1 in the name of M/s Ganpati Enterprises by its proprietor Vikram Arora (A-8), Specimen Signature Card as

Ex.PW23/A2, cheque book issue register as CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW23/B and the relevant entry Ex.PW23/B1, statement of account Ex.PW23/C, the cheque referred and return register Ex.PW23/D and Ex.PW23/D1 respectively.

35. PW-25 B.S Saini was posted as Manager, NIT, Faridabad Branch, OBC. He identified the signatures of O.P Dawara, Manager and proved the account opening form Ex.PW25/A1 in the name of M/s Carda (India) Electronics (of A-8 Vikram Arora) at NIT Faridabad Branch on 17.08.1994. He further proved the statement of account certified by O.P. Dawara as Ex.PW25/B.

36. PW-27 Chander Mohan Kapoor was posted as Manager, Syndicate Bank, Dutai Branch, Garh Mukteshwar, District Ghaziabad, U.P during the relevant period. He had handed over certain documents to CBI vide seizure memo Ex. PW27/A relating to the account of M/ Ashoka Industries (Proprietor A-7 Sanjeev Arora). He also proved the specimen signature card of M/s Ashoka Industries, Letter for return of cheque book, courier receipt for return of the cheque to OBC and Dispatch Register Ex.PW27/A-1 to Ex.PW27/A-4 respectively (D38 to D-40). He also proved the seizure memo Ex.PW27/B (D-42) vide which he ad provided the current account opening form of Ashoka Industries Ex.PW27/B-1, Cheque Book Issue Register Ex.PW27/B-2, statement of account Ex.PW27/B-3 and Register of Return of Cheque being unpaid CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW27/B-4 and relevant entries Ex.PW27/B-4/1 and Ex.PW27/B-5 (D-43 to D-47).

37. PW28 Ashok Kumar Jain was posted as Branch Manager at Hapur Branch of State Bank of Patiala and had handed over certain documents to I.O relating to current account no.224 of M/s Ganpati Enterprises. He proved seizure memo Ex.PW28/A, Account Opening form Ex.PW23/A-1 and A-2 (D-58), Cheque Book Register Ex.PW23/B (D-60) and Statement of Account Ex.PW23/C (D-59) concerning current account of M/s Ganpati Enterprises opened by A-8 Vikram Arora. He further proved the letter Ex.PW28/A1 (D-61) written to M/s Ganpati Enterprises informing them that its cheques were being repeatedly bouncing because of insufficient funds. He also proved the cheque book return register Ex.PW23/D (D-63).

38. PW-29 Jagjit Singh Bagga was posted as Manager in Punjab National Bank, Patel Nagar Branch, Dehradun in 1994. He proved the account opening form for the current account no. 964 in the name of M/s Bhushan Mineral Industries Pvt Ltd as Ex.PW29/A (D-16) , specimen signature card as Ex.PW29/B (D-16), statement of account as Ex.PW29/C (D-19), cheque book register as Ex.PW29/D (D-21) and relevant entry Ex.PW29/D1 and an extract of the cheque book returning register Ex.PW-29/E (D-20).

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39. PW-30 Jagdish Singh was posted as Manager with Syndicate Bank, Dutai, Garh in the year 1994. He identified his signatures on account opening form PW27/B1 (D-43) of M/s Ashoka Industries, its proprietor Sanjeev Kumar (A-7). He further proved letter Ex.PW27/B5 (D-47) written by him to proprietor of M/s Ashoka Industries regarding issuing cheques without maintaining sufficient funds.

40. PW-32 S.K. Gupta was posted as Manager, Punjab National Bank, Patel Nagar Branch, Dehradun in Feb.1998. He proved the seizure memo as Ex.PW32/A (D-15) whereby he handed over some documents (Ex.PW29/A, Ex.PW29/B, PW29/DX-1, Mark P29/X-2, Ex.PW29/C and Ex.PW29/E) related to account M/s Bhushan Mineral Industries Ltd. to the I.O. He also proved one document as Ex.PW32/B (D-18 already referred Mark PW29/X-2).

41. PW-35 S.B. Mathur is the official from OBC, NFC Branch. At that time, S.K. Pathrella was the Sr. Manager of the Branch. He identified his signatures on various cheques passed by him vide Ex.PW-21/G-131 (D-516), Ex.PW-21/G-132 (D-517), Ex.PW-21/G-134 (D-519), Ex.PW-21/G-131/35 (D-518), Ex.PW- 21/G-106 (D-491), and Ex.PW-21/G-107 (D-492). However, his deposition never concluded.

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42. PW-36 V.K. Chandila is the retired Sr. Manager, OBC. He stated that he remained posted as Sr. Manager at OBC, NFC, New Delhi. He proved the seizure memo as Ex.PW36/A (D-84) whereby he handed over several documents to CBI. (He did not appear again for the deposition after his part testimony).

43. PW-37 Sh. Balbir Singh Godara deposed that he was posted at New Friends Colony Branch, OBC twice. He further stated that at that time, Mr. Kamboj was the Manager, Sh. Raja Mohan was the Chief Manager and Mr. Suresh Pathrella was the Branch Manager. He was posted in the Bills department of the branch. The bills produced by the parties used to be sent to S. K. Pathrella (A-1) for discounting /purchase who would authorise the purchase of the said bills. In compliance of Sh. S. K. Pathrella's authorization of cheques / bills, he alongwith the clerk used to prepare the credit vouchers for the purchase /discount of bills / cheques. After preparing the voucher, the amount used to be credited to the account of the party. Thereafter, the clerk used to dispatch the bill / cheque for encashment to the Banker's of the drawer.

43.1 He further stated that dispatch Register,Bill Discount/purchase Registers were maintained in their branch. Further, the Authority Register was maintained to record authorization given by the Branch Manager. He thereafter proved CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the debit voucher for purchase of DD No.758 to 764/95 Ex.PW21/G-145 (D-530), Credit Voucher for DD No.763 and 764 PW21/G-201 (D-587), Credit Transfer Voucher in respect of DD No. 763 and 764/95 PW21/G-202 (D-588), Credit Transfer Voucher in respect of commission for DD No.758 to 764/95 PW21/G-143 (D-528), Credit Transfer Voucher PW21/G-144 (D-529) for DD No. 758 to 764/95, Credit Transfer Voucher PW21/G-110 for DD No. 84 and 86/95, Credit Transfer Voucher PW21/G-112 for DD No. 82 to 86/95, Cheque No. 035729 Ex. PW21/G-119, Cheque No.035727 Ex.PW21/G-120, Cheque No. 35728 Ex.PW21/G-121 and Dak Register Ex.PW20/A-3 (D-6).

43.2 He thereafter proved various credit vouchers, cheques, transfer vouchers etc. regarding purchase of cheques/bills as Ex.PW21/G-212, Ex.PW21/G-167, Ex.PW21/G-169,Ex.PW21/G-188,Ex.PW21/G-189 to Ex.PW21/G-199, Ex.PW21/G-203, Ex.PW21/G-204,Ex.PW21/G-206 to Ex.PW21/G-208,Ex.PW21/G- 216 to Ex.PW21/G-219, Ex.PW21/G-223 & Ex.PW21/G-224. He also

proved the other bank documents concerning the said five beneficiary accounts maintained by the accused persons with OBC, NFC, New Delhi as Ex.PW21/E-9, Ex.PW21/E-10, Ex.PW21/E-11, Ex.PW21/E-20, Ex.PW21/E-21, Ex.PW39/2 to Ex.PW39/5, Ex.PW21/D-14, Ex.PW21/D-20 to Ex.PW21/D-25, Ex.PW21/D-37 to Ex.PW21/D-39, Ex.PW21/D-41, Ex.PW1/R, Ex.PW1/S, Ex.PW1/T, Ex.PW1/C, Ex.PW1/D, Ex.PW1/E, Ex.PW1/F, CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW1/G, Ex.PW1/N, Ex.PW1/O, Ex.PW1/P, Ex.PW21/F-4 to Ex.PW21/F-15, Ex.PW21/G-17 to Ex.PW21/G-19, Ex.PW21/G-111, Ex.PW21/G-113, Ex.PW6/G, Ex.PW6/J, Ex.PW6/N, Ex.PW21/F-25, Ex.PW21/F-26, Ex.PW21/F-29 to Ex.PW21/F-31.

44. PW-39 Binay Kumar was posted at OBC, NFC, New Delhi, during the relevant years, where he used to do miscellaneous work. At that time, Balbir Singh Godra was the Officer Incharge of the Bill Section and Sh. S.K. Pathrella was the Branch Manager. Thereafter, he explained the procedure of cheque purchase as well as the procedure of cheque dishonour in the bank. He further stated that final authority to take action against the dishonour of cheque was with the Branch Manager. He identified the signatures of S.K. Pathrella, the then Branch Manager on Ex. PW21/G-1, Ex. PW21/G2, Ex.PW21/E1, Ex. PW21/E2, Ex. PW21/D1, Ex. PW21/D2, Ex. PW1/A, Ex. PW1/B, Ex. PW21/F1, Ex.PW21/F2 and Ex.PW21/E27.

44.1 He after referring to Ex.PW6/D and Ex.PW6/E (collectively) further deposed that the same were the bills purchase memo prepared by him in pursuance of forwarding letter Ex. PW21/E27. The said documents bear the initials of Balbir Singh Godra which were purchased on the written orders of A-1 S.K. Pathrella. As per this bill purchase memo, the drawer is Navyug Traders and the drawee is Sun Exports Jalandar (of A-4). He also got exhibited the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 relevant entries as Ex. PW39/1 (D-9). The total amount of bills was Rs. 14,91,600/- which was credited in the beneficiary account of M/s Navyug Traders. He further proved the bills of transport as Ex. PW39/2 and PW39/3 (D-305 and D-306). He also identified stamp of the bank and signatures of Balbir Singh Godra on back of documents part of Ex. PW6/E (colly) and got exhibited the same as Ex. PW39/4 and Ex.PW39/5 (D-304 and D-307) respectively. Thereafter, he also referred to the Bill of Exchange Ex.PW1/F, document Ex.PW20/A-7 (D-10), Ex.PW20/A-4 (D-8), transfer voucher Ex.PW1/C (D-181), Ex.PW1/D (D-182), Ex.PW1/E (D-

183), Transport receipt Ex.PW1/G (D-185), Invoice No.0092 Ex.PW1/H, Bill Returning Memo Ex.PW21/C-2, Bill of Exchange No.73/95 Ex.PW6/J alongwith its transport receipts.

45. PW40 Sh. Ashok Kumar Khanna is an official of Oriental Bank of Commerce who was posted at New Friends Colony Branch of OBC from 1991 to 1997. He worked in the Bills Department. A-1 S.K. Pathrella, was the Branch Manager at that time who was authorised to purchase the cheques. He identified the signature of A-1 on cheques drawn by M/s Gold Exports in favour of M/s Red Cat Agencies Ex.PW21/G-119 to Ex.PW21/G-121 and Cheque Returning Memo Ex.PW21/G-231.

46. PW-41 Madhu Goswami was posted at New Friends Colony branch of OBC during 1995-96. A-1 was posted with her CBI V. S.K. Pathrella & Ors. CC No. 260/2019 at New Friends Colony branch as Branch Manager. She was posted as Hall Incharge and Sr. Manager at that time. The incoming daks in the branch were directly received by the Branch Manager in his cabin and she used to sort out the

daks and the daks which were required to be disposed off were sent by her to clerk. The clerk used to enter those daks in the register and send it to the concerned department.

46.1 On a specific question put to her as to show A-1 got to know about the daks, especially in case of cheques/bills returning unpaid, she answered that the unpaid cheques and bills used to be received through registered post, whereas the other communication through normal course. A-1 used to keep the daks with him, which he intended to keep with him and the remaining were sent by him to the clerk.

47. PW-42 Sh. Vipin Aggarwal, Chief Manager, Oriental Bank of Commerce deposed that the Branch Manager Mr. K. K. Bhan handed over certified true copies of documents to CBI in the present case including the Outward Clearing Register. He identified the signatures of Mr. K. K. Bhan and proved the said register as Ex.PW42/A (D-175).

48. PW-45 Sh. Vijay Kumar Sehgal is the official from OBC, NFC, New Delhi during the relevant period from the year 1991 to CBI V. S.K. Pathrella & Ors. CC No. 260/2019 1996. He identified his signatures and that of A-1 on various transfer vouchers, credit vouchers, cheques etc passed by their branch.

49. PW-46 Satish Kumar Sharma was posted as Chief Manager at GT Road branch, Jalandhar City of OBC between 1997 to 1999. He handed over certain documents to the IO in the present case vide seizure memo dated 11.11.1998 Ex. PW46/1 (D-122). He further identified the documents as Ex.PW46/2 (D-123) (seven pages) which included the copies of clearing register showing return of cheques being uncleared on account of 'want of funds' handed over to I.O through Ex.PW 46/1. He further got exhibited one letter written by the witness to the I.O as Ex.PW46/3 (D-176).

50. PW-47 Sh. S. K. Chawla was posted at Lodhi Road, New Delhi branch of State Bank of Saurashtra between 12.08.98 to June 2003.

50.1 He further further deposed that he was called at CBI office, CGO Complex, New Delhi in connection with the present case. He went there to witness the specimen handwriting and signatures of persons involved in the present case. He identified his signatures and got exhibited the specimen handwriting and signatures of A-5 as Ex.PW47/1 {(colly) (D-645) }.

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51. PW-50 Mrs. Neelam Chopra was posted at New Friends Colony branch of OBC from 1991 to 1996. A-1 S.K. Pathrella was also posted in the said branch. She identified her signatures on various cheques passed by her which were issued by Red Cat Agencies vide Ex.PW50/1 to Ex.PW50/19. She also proved the credit and debit vouchers Ex. PW50/20 to Ex.PW50/22.

51.1 PW-50 further identified her signatures on cheques issued by Red Cat Agency Ex.PW21/G29, Ex.PW21/G30, PW21/G-32, Ex. PW21/G-48, Ex. PW21/G-51 Ex.PW21/G52, Ex. PW21/G-53, Ex. PW21/G-54, Ex.PW21/G-55, Ex.PW21/G-56 Ex. PW21/G- 57,Ex.PW21/G-72, Ex. PW21/G-83, Ex.

PW21/G-84, Ex. PW21/G-85, Ex. PW21/G-86, Ex. PW21/G-87, Ex. PW21/G-88, Ex. PW21/G-90, Ex. PW21/G-94, Ex. PW21/G-95, Ex. PW21/G-96, Ex. PW21/G-97, Ex. PW21/G-98, Ex. PW21/G-99, Ex. PW21/G-

102. She further stated that the said cheques were passed by her.

51.2 She also identified her signatures on cheques issued by Rajesh Batra(A-5) Ex. PW21/D4, Ex. PW21/D-8, Ex. PW21/D-9, Ex. PW21/D-10, Ex. PW21/D-19, Ex. PW21/D-17 and Ex. PW21/F-20. She further stated that the said cheques were passed by her as a Passing Officer. Lastly, she identified her signatures on DD application form Ex. PW21/D-16.

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52. PW-51 Sh. Pradeep Kumar Malhan is also retired official from OBC. He deposed that OBC, NFC Branch was under

their region. He explained the process of loan proposal and putting them before the Competent Authority.

52.1 He further stated that he knew A-1 who was the Branch Head of OBC, NFC. He was authorized to sanction limit as per the power chart of OBC. If the Branch Head exceeds his powers for purchasing cheques/bills, then he had to seek approval in writing of the Competent Authority. He further explained that the Competent Authority either accords sanction/approval or declines, or seeks further clarification from the branch. STM41B is a statement for seeking action confirmation from Competent Authority in case the sanctioning limit is beyond discretionary powers of the Branch Manager. STM41C is a statement for seeking action confirmation from competent authority in case the cheques/bills is beyond the discretionary powers of the Branch Manager.

52.2 He proved the letters of the Chief Manager, NFC Branch addressed to the Dy. General Manager, Regional Office and of DGM to the Chief Manager during the relevant period qua the loans/purchase of bills in question vide Ex. PW51/1 to Ex. PW51/6.

53. PW-52 Sh. Ved Kumar Grover was posted as Deputy Manager, PNB, Alaknanda branch, New Delhi in 1998 for two years CBI V. S.K. Pathrella & Ors. CC No. 260/2019 and proved the seizure memo dated 29.01.1998 as Ex. PW-52/A. He had handed over the documents as mentioned in the chargesheet to the I.O.

54. PW-53 Surinder Kumar Lakhina was Regional Head of New Delhi OBC Branches from 1991 to 1996. The New Friends Colony branch of OBC was one of the said branches under his charge as Regional Head. A-1 was Chief Manager of New Friends Colony branch during 1994-95. He was empowered with discretionary powers to

grant loans etc. and had powers to grant secured loan upto Rs. 30 lacs only. If the loan amount was beyond his powers, then he was required to seek prior sanction from regional or head office.

54.1 He further stated that he attended CBI office in connection with the present case where he was shown relevant documents and his statement was recorded. He identified his signature on letter dated 25.05.1995 Ex.PW51/2 (D-695) seeking an explanation from A-1 for granting loan beyond his powers. He also identified the reply given by A-1 to the said letter as Ex. PW53/A(part of D695) .

He further identified his signatures on letter Ex. PW51/3 (D694) seeking explanation of A1 regarding advances granted by him beyond his powers and asked him to get the account adjusted immediately. He proved the letter as Ex.PW53/B (Part of D695) whereby A-1 was asked to stop the said practice immediately. He CBI V. S.K. Pathrella & Ors. CC No. 260/2019 further identified his signatures on documents Ex.PW51/3 and Ex.PW51/4. He got exhibited another letter as Ex. PW53/C(D694) whereby A1 had falsely claimed before AGM that A-1 had taken his verbal permission regarding grant of loan. PW53 further stated that he never gave any sanction for granting loan to M/s Pimco Overseas, M/s Agronica Overseas, Batra Traders and M/s Navyug Traders.

55. PW-54 Krishan Kumar Bhan remained Sr. Manager at OBC, Branch Katra Ahluwalia,Amritsar from the period 1998 to May, 2000. He had handed over the documents to the CBI. He exhibited the letter dated 12.11.1998 as Ex.PW54/A whereby he had handed over certified copy of Outward Clearing Register Ex.PW42/A (D175).

56. PW-55 Devender Pal Dhingra remained posted at OBC New Friends Colony Branch from June 1991 to 1997. During the period 1994 to December, 1995, S.K. Pathrella was the Branch Manager. He explained about his duty and procedure of cheque/bill purchase. He was working in the Loan Department and doing other miscellaneous work. He further deposed that in case of cheque/bill purchase, the same used to be put up by concerned official with the Branch Manager who used to authorise its purchase. Sometimes, the Branch Manager being the Competent Authority used to authorise the purchase/cheque on the pay-in-slip. In case of any CBI V. S.K. Pathrella & Ors. CC No. 260/2019 discrepancy in the bill/cheque purchased or it being over and above the limit sanction, the Bill Incharge used to put the same before the Branch Manager for approval. After the approval, the same was returned to bills department who used to enter the same in Bill/Cheque Register. Thereafter, the memo is prepared by the Bill Clerk for collection of the amount which is certified the Incharge (Bills Department) and then sent to dispatch section. The bill clerk used to prepare the debit and credit voucher of the cheque/bill and after deducting the commission, the credit voucher is prepared and is presented to the account of party concern. In case of non- realization of amount of bill/cheque from the Collecting Bank, the bills department prepares the voucher for debit to collect the same from the account of party concerned.

56.1 He also explained about the STM-41 which is the monthly statement regarding bill/cheque purchase or authorities used for overdraft. The STM-41 A for the bill/cheque purchased or overdraft

within the power of the Branch Manager and STM -41 B concerns the authority used by the Manager beyond his powers. STM -41 A is for reporting purpose and STM -41 B is for the confirmation/action.

56.2 Thereafter, he also proved the signatures of A-1 on the account opening form of M/s Red Cat Agencies Ex.PW21/G-1 and its account statement Ex.PW21/G-3. He also proved the signatures of A-1 on the account opening in the name of M/s Agronica CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Overseas Ex.PW21/F-1 and on the Specimen Signature (SS) Card Ex.PW21/F-2, of M/s Navyug Traders vide Ex.PW21/E-1, SS Card being Ex.PW21/E-2, of M/s Pimco Overseas vide Ex.PW1/A and SS Card Ex.PW1/B, of M/s Batra Traders Ex.PW21/D-1 and SS Card Ex.PW21/D-2. He also proved the signature of A-1 and other officials of OBC, NFC, New Delhi, on various credit vouchers, debit vouchers, cheque deposit slips, internal credit vouchers, cheques concerning the above-referred five current accounts.

56.3 He also proved the signatures of A-1 on the Bill Purchase Register Ex.PW20/A-6, Authority Register Ex.PW55/6, Specimen Handwriting and Signature of A-1 and Rajesh Batra (A-5) Ex.PW55/5 and Ex.PW55/4. He expressed his ignorance of the relationship between A-1 and partners of Red Cat Agencies.

57. PW-56 Rashpal Singh Kang worked as Senior Manager with Oriental Bank of Commerce, Putalighar, GT Road, Amritsar from 11.10.1998 to September 2002. He identified his signatures on letter dated 12.11.1998 as Ex.PW56/1 whereby he informed the CBI regarding the collection of the cheques bearing nos. 035741, 035737, 035740, 049013 and 049014, sent by the New Friends Colony, Delhi Branch of OBC. However, the cheques qua the date of purchase dated 28.02.1995 of Rs.3,49,250/- and date of purchase dated 21.08.1995 of Rs.3,18,764/- were not traceable and there were no entries in the Inward Bill Collection Register.

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(ii) Other Witnesses (Private Persons, Investigation Witnesses & FSL Witnesses).

58. PW-11 Sh. Vinod Kumar Nagpal deposed that he had a bank account at PNB, GK-II. He had introduced the account of Mr. Surinder Kumar who was the proprietor of M/s Sehgal Developers. He got exhibited the account opening form as Ex.PW11/A (D-49).

59. PW-24 Bharat Bhushan Kansal deposed that he was the General Secretary of Association of Transporters of Ghaziabad in the name of 'Ghaziabad Goods Transport Association' during the period 1986 to 2004-2005. He further deposed that there was no transport company with the name of M/s S.I Transport Corporation of India in the Association.

60. PW-26 Sandeep Gupta deposed that knew A-8 Vikram Arora and A-7 Sanjeev Arora as they were introduced to him by Sh. Pathrella (A-1), the Manager of the bank. He introduced their account at OBC, NIT Branch, Faridabad. The said account was opened in the name of M/s Carda (India) Electronics. He identified his signature on the account opening form of M/s Carda (India)

Electronics Ex.PW25/A (D-27) and Authority Letter Ex.PW5/A (D-28).

61. PW-31 Gautam Sachdeva deposed that he was running the firm M/s Sachdeva Offset Packaging Industries Pvt Ltd. He CBI V. S.K. Pathrella & Ors. CC No. 260/2019 further stated that the said company had an account with Union Bank of India at Okhla. Thereafter, he identified signatures of his mother on account opening form Ex.PW8/A1 (D-70) and specimen signature card related to the said account as Ex.PW31/A (D-71). He further identified the cheque (D-605) of the said account signed by him in favour of M/s Red Cat Agencies which was a builder company owned by J.S Logani. He deposed that his father wanted to get an AC installed at his flat and therefore, he had contacted Sh. Logani. He further deposed that on the asking of his father, he had signed the said cheque, but the same was blank at that time. His further testimony concerns JS Jogani against whom the proceedings stands quashed by the Hon'ble HC vide order dated 04.09.2015.

62. PW-33 Shiv Ram Khanna expressed his ignorance regarding any firm, namely Red Carpet Agency, and turned hostile qua the role of Ghanshyam Kakkar or Joginder Singh Logani.

The witness was declared hostile and was cross- examined at length by Ld. Public Prosecutor.

63. PW-34 Surjeet Singh deposed that he is a Govt Contractor with HUDA and proprietor of M/s Surjeet Singh Builders. He identified his signatures as Introducer on account opening form of Current Account No.6199 of M/s Gold Exports and got exhibited the same as Ex.PW34/A (D-85). He stated that he signed the Form at the instance of Bank Manager. He further stated that he did not CBI V. S.K. Pathrella & Ors. CC No. 260/2019 know Joginder Singh Logani, Proprietor of M/s Gold Exports and he (J.S Logani) was not present at the bank at the time when he (the witness) signed Ex.PW34/A.

64. PW-38 Jagat Bhushan Batra deposed that M/s Bhushan Minerals Industries Pvt Ltd was incorporated in 1990's. He became Managing Director of the company after partition between him and his brothers around the year 2002.

64.1 He further deposed that one current account of the company was maintained with PNB, Patel Nagar, Dehradun. He identified his signatures as well as the signatures of his brothers and father on account opening form Ex.PW29/A . He also proved the copy of resolution as Ex.PW38/1 for opening the deposit account. He identified his signatures as well as of his father and brothers on signature card Ex. PW29/B. The said account was closed vide letter dated 14.12.1996 signed by his brother Chandra Bhushan.

PW-38 further deposed about the role of Mr J.S. Logani against whom the proceedings stands quashed.

65. PW-43 Virender Singh deposed that he knew Prince @ Harsimaran Dhingra(A-4), who was the brother of his friend Vicky. He identified the photograph of A-4 Harsimran Dhingra on account

opening form Ex.PW6/A1 of M/s Sun Exports of Punjab and Sind Bank, Lajpat Nagar, Jalandhar and specimen signature CBI V. S.K. Pathrella & Ors. CC No. 260/2019 card of Harsimran Singh Ex.PW6/A2. He further identified the specimen signature card Ex.PW14/B of Harsimran Singh with Central Bank of India, Guru Bazar, Amritsar and photograph of on specimen card of M/s Gold Exports with Central Bank of India, Majith Mandi, Amritsar as Ex. PW43/1(D-104). 65.1 He further stated that Prince used to reside with his maternal uncle at Delhi and used to only visit his parents at Amritsar. He never saw any firm in the name of 'Sun Exports' or 'Gold Exports' running in his neighbourhood.

66. PW-44 Sh. R.P. Bhargav stated that he had an account in the name of Firm Raj Hans with OBC, NFC, New Delhi. He deposed that S.K. Pathrella was the Chief Manager in the bank at that time, and he had introduced the account Ex. PW21/D1 at the request of the then Chief Manager Sh. S.K. Pathrella.

67. PW-48 Sh. K.K. Diwan is retired bank official from Syndicate Bank, Bhambni Khera, Distt. Palwal, Haryana and he identified the signature of one accused namely A-8 Vikram Arora on specimen signature memo and exhibited the same as Ex. PW48/1 (colly) (10 pages D-648).

68. PW-49 Sh. S. C. Dandriyal is the Investigating Officer who deposed that the investigation of the present case was assigned to him on 30.4.1997. He identified and proved the FIR of the same CBI V. S.K. Pathrella & Ors. CC No. 260/2019 date alongwith its annexures Ex.PW-49/1 (colly). He further deposed that during investigation, he collected relevant documents and examined witnesses. He also obtained specimen signatures of accused persons and other persons concerned, which were forwarded to GEQD for obtaining the expert opinion. After completion of investigation, he filed the chargesheet. However, the original documents sent to GEQD were not received back, the Hon'ble Court consigned the file to Record Room. Thereafter, he was transferred from the department.

68.1 He proved the seizure memo dated 29.09.1997 Ex.PW3/A (D-2), seizure memo dated 22.09.1999 Ex.PW-20/A (D-14) , seizure memo dated 26.02.1998 Ex.PW-32/A (D-15), seizure memo dated 14.01.1999 Ex.PW-21/A (D-22), seizure memo dated 21.12.1998 Ex.PW-49/2 (D-26), seizure memo dated 29.01.1998 Ex.PW-52/A (D-31), seizure memo dated 27.01.1998 Ex.PW-27/A (D-37), seizure memo dated 09.01.1998 Ex.PW-27/B (D-42), seizure memo dated 23.01.1998 Ex.PW-18/A (D-48), seizure memo dated 27.01.1999 Ex.PW-49/3 (D-54), seizure memo dated 29.12.1997 Ex.PW-28/A (D-57), seizure memo dated 05.01.1999 Ex.PW-28/B (D-62), seizure memo dated 27.11.1997 Ex.PW-22/B (D-64), seizure memo dated 07.10.1997 Ex.PW-22/A (D-69), seizure memo dated 27.10.1997 Ex.PW-6/L (D-73), seizure memo dated 17.11.1997 Ex.PW-6/M (D-74), seizure memo dated 08.10.1997 Ex.PW-36/A (D-84), seizure memo dated 08.10.1997 Ex.PW-7/A CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (D-92), seizure memo dated 07.10.1997 Ex.PW-49/4 (D-103), seizure memo dated 07.10.1997 Ex.PW-49/5 (D-111), seizure memo dated 12.01.1999 Ex.PW-49/6 (D-120), seizure memo dated 11.11.1998 Ex.PW-46/1 (D-122), seizure memo dated 15.10.1997 Ex.PW-49/7 (D-124), seizure memo dated 28.12.1998 Ex.PW-49/8 (D-127), seizure memo dated 28.12.1998 Ex.PW-49/9 (D-129), seizure memo dated 15.10.1997 Ex.PW-49/10 (D-133), seizure memo dated 28.11.1997 Ex.PW-49/11 (D-155), seizure memo dated 29.05.1998 Ex.PW-15/A (D-163), seizure memo dated 12.08.1997 Ex.PW-21/C (D-177), seizure memo dated

14.08.1997 Ex.PW-21/D (D-221), seizure memo dated 13.08.1997 Ex.PW-21/E (D-278), seizure memo dated 13.08.1997 Ex.PW-21/F (D-315) and seizure memo dated 18.08.1997 Ex.PW-21/G (D-382) vide which the documents were seized from various banks.

68.2 He also proved the letters addressed to Director CFSL dated 11.01.1999, 28.09.1999 and 29.09.1999 as Ex.PW-49/12, Ex.PW-49/13 and Ex.PW-49/14 (D-634, D-635 and D-636 respectively) seeking their opinion as to the handwriting and signatures on the various documents collected in the matter.

68.3 He also identified the documents concerning specimen signatures/handwriting of A-5 Rajesh Batra as S-165 to S-172 Ex.PW55/3 (D-645), S-173 to S-194 Ex.PW49/17, S-195 to S-204 Ex.PW49/18, S-205 to S-214 Ex.PW49/19 (colly), S-215 to S-271 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex.PW55/4 (colly), S-272 to S-357 Ex.PW49/20 (colly), S-279 to S-484 Ex.PW49/21 (colly), S-494 to S-528 Ex.PW47/1 (colly).

68.4 He also identified the documents concerning specimen signatures/handwriting of A-4 Harsimran Singh Dhingra, S-358 to S-373 Ex.PW49/22 (D-646), S-374 to S-381 Ex.PW49/23.

68.5 He also identified the documents concerning specimen signatures/handwriting of A-8 Vikram Arora , S-423 to S-332 Ex.PW48/1 (colly) (D-648) and S-433 to S-442 Ex.PW49/25 (colly).

68.6 He also identified the documents concerning specimen signatures/handwriting of accused Sanjeev Arora (A-7), S-443 to S- 456 Ex.PW49/26 (colly) (D-649).

68.7 He also identified the documents concerning specimen signatures/handwriting of Narender Kapoor, S.K. Pathrella (A-1), J.S Logani(A-3), Ghanshyam Kakkar(A-2) , Menka Kakkar and Jagat Bhushan Batra.

68.8 Lastly, he identified and proved the seizure memo dated 15.04.1998 Ex.PW49/30, seizure memo dated 20.03.1998 Ex.PW49/31, four STM-A Registers Ex.PW49/32 (colly) seized vide seizure memo Ex.PW49/30 and Register containing CBI V. S.K. Pathrella & Ors. CC No. 260/2019 confirmation of the cheques bill purchased Ex.PW49/33 seized vide seizure memo Ex.PW49/30.

69. PW-57 Ms. Alka Gupta, Sr. Scientific Assistant, CFSL appeared on behalf of CFSL Expert Dr. S. C. Mittal (being not available), who was Principal Scientific Officer in the document division. She assisted him in many cases, and therefore, she identified his signature as well as his handwriting. She identified signature of Director CFSL on forwarding letter dated 03.11.1999 and signature of CFSL Expert Dr. S.C Mittal on report as Ex. PW57/1 (Colly). She further identified signatures of Director CFSL on forwarding letter dated 07.02.2000 and signatures of Dr. S.C Mittal on report dated 31.01.2000 as Ex. PW57/2 (Colly.) Lastly, she identified signatures of the then Director CFSL on forwarding letter dated 29.03.2000 as well as of Dr. S.C Mittal on report dated 28.03.2000 as Ex. PW57/3 (Colly.)

70. PW-58 Sh. Bijay Kumar Pradhan is the Second Investigating Officer who in the present case re-submitted the charge sheet which had earlier been consigned to Record Room by the court of Ld. Special Judge, CBI, Tis Hazari Courts, Delhi due to want of documents.

70.1 He further deposed that the case was investigated by Sh. S. C.Dandriyal, the then Inspector and after completion of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 investigation, he filed a charge-sheet against Sh. S. K. Pathrella and seven others in the court of Ld. Special Judge, CBI, Delhi. However, the documents and the relied upon the statement of witnesses were not filed with the charge-sheet as some of the documents were sent to CFSL for opinion and it was consigned to Record Room by Ld. Court. In pursuance of the directions of the Court and instructions of SP, CBI, he had prepared the charge sheet on the basis of the earlier chargesheet. The chargesheet was filed alongwith the CFSL report and the documents.

71. PW-59 Sh. Komal Singh is an Assistant I.O who conducted part investigation as an Assistant Investigating Officer on the instruction of Sh. S.C. Dandriyal, main IO of the case. During the investigation, he examined three witnesses namely Y. Nageshwar Rao, Senior Manager, G.T.B. Bank, Ram Kishan Raheja, Transporter and Bharat Bhushan Kansal.

72. PW-60 Sh. Ajay Kumar is also Assistant I.O who also conducted part investigation and collected some documents and also examined some witnesses.

72.1 He identified his signatures and proved seizure memo dated 15.10.1997 Ex. PW49/7 and stated that he had seized documents from Sh. Gurdial Chand Sharma, Special Assistant, Central Bank of India, Amritsar. He further identified the original CBI V. S.K. Pathrella & Ors. CC No. 260/2019 pay-in-slip dated 31.01.1995 & certified copy of Ledger Sheet of M/s. Gold Export maintained with the bank as Ex.PW60/1 (collectively). He further stated that these documents were seized from Sh. Gurdial Chand Sharma through Seizure Memo Ex. PW49/7.

72.2 He further identified his signatures on Seizure Memo dated 15.10.1997 Ex. PW49/10 through which he seized 21 documents from Sh. S. P. Salwan, Assistant Manager, Central Bank of India. He also got exhibited account opening form, specimen card, certified copy of IBC Register and other supporting documents as Ex.PW60/2 (collectively).

(IV) STATEMENT OF ACCUSED PERSONS

73. After completion of the prosecution evidence, the statement of the accused persons was recorded under Section 313 Cr.P.C (now corresponding to Section 351 of BNSS). The entire incriminating evidence produced by the prosecution was put to the accused persons in the form of detailed questionnaires.

74. The accused no. 4 Harsimran Dhingra claimed that he is innocent and has been falsely implicated. He further claimed that the cheques were issued by him in favour of M/s Red Cat Agenciies for supply of material to him. The cheques were post dated and as CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the goods were not supplied, therefore the cheques were not honoured. After

the registration of the case, he requested and pressurized co-accused J.S. Logani partner of M/s Red Cat Agencies to deposit the amount in the account of OBC against the cheques issued by him and purchased by the bank. Accordingly, a settlement was arrived between J.S. Logani and OBC. The amount was paid. The bank issued the letter Mark-A4 having received the entire amount along with interest and based on the same the FIR was quashed by the Hon'ble High Court against Mr J.S. Logani. At the time of incident, he was only 18 years old and had no intention to cheat the bank nor to fabricate any document.

75. Accused no. 5 Rajesh Batra also claimed innocence and further stated the he has deposited all the amount which was due towards him. Due to loss in business, he could not deposit or return the amount to the bank in time. He had no intention to cheat the bank nor had fabricated or prepared false document with the view to cause loss to the bank and gain for himself.

76. A-7 Sanjeev Arora also claimed innocence and stated that he had no intention to cheat the bank or no false or fabricated documents were presented to the bank for obtaining the loan. He further claimed that the party to whom he had issued the cheque in advance did not supply the goods to them and accordingly the payment of the cheques was got stopped. In the meantime without CBI V. S.K. Pathrella & Ors. CC No. 260/2019 their knowledge and consent, the cheques issued by him were purchased by the Bank. A-3 J.S. Logani owner of M/s Red Cat Agencies had since cleared all the due to the bank. He is not the beneficiary of any loan extended to A-3 by the bank.

77. Similarly A-8 too claimed innocence and stated that he had no intention to cheat the bank or no false and fabricated documents were presented to the bank for obtaining the loan. His defence is similar to that of his brother A-7 Sanjeev Arora. He further claimed that he is not the beneficiary of any facility extended to A-3 by the bank and his name is not mentioned in the FIR.

(V) DEFENCE EVIDENCE

78. The defence evidence was led on behalf of the accused no. 4 Harsimran Dhingra and A-5 Rajesh Batra. During the defence evidence, statement of DW-1 Vijay Kumar Bairwa was partly recorded on 28.09.2025 and was deferred for want of records.

78.1 In the mean-time, an application u/s 294 Cr.P.C was moved by A-4 for bringing on record the certified copy of the no objection certificate/ no dues certificate dated 27.09.2007 issued by OBC, New Friends Colony Branch, New Delhi and judgment of Hon'ble Delhi High Court in quashing petition of A-3 J.S. Logani in Crl. MC No. 3400/2015. The application was disposed off vide order dated CBI V. S.K. Pathrella & Ors. CC No. 260/2019 24.09.2005. As far as quashing petition order is concerned, the said document being judicial document and part of the record, it was accordingly held to be per se admissible.

78.2 The second document i.e, NOC/No dues Certificate of Oriental Bank o f Commerce being an admitted document of both the parties was taken on record as 'Ex. A1'.

After the admission of the said document, the defence evidence was closed on behalf of the accused persons.

(VI) ARGUMENTS OF CBI

79. The Ld. Senior (Sr.) Public Prosecutor (PP) for CBI argued that the origin of the present case concerns the criminal conspiracy involving the accused named herein whereby which they cheated Oriental Bank of Commerce, New Friends Colony Branch, New Delhi during the period 1994-1995. It is argued that during the said period Branch Manager at the said bank was A-1, who was integral part of the said criminal conspiracy involving the private individuals named in the charge sheet.

79.1 It is further argued that in pursuance to the criminal conspiracy by the accused persons, five current accounts were opened in the said branch in the names of firms M/s Red Cat CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Agencies, M/s Batra Traders, M/s Navyug Traders, M/s Pimco Overseas and M/s Agronica Overseas.

79.2 It is further argued that simultaneously the aforesaid persons who opened the above referred current accounts, also got opened various bank accounts at far-off places either by themselves or through their proxies in the name of fake firms and procured the cheque books. The cheque books were issued from the bank located in far-off places and were thereafter utilized for cheating purposes. The said cheques were issued for non-existing business transactions in favour of above referred five firms. Apart from cheques, fake bills were issued by them. A-1, the then Branch Manager, OBC, New Friends Colony Branch, New Delhi purchased the said cheques/bills and the amount used to be credited in the above referred five firms's account. Later, when the said cheques were sent for clearing by OBC, New Friends Colony Branch, New Delhi, all of them returned unrealized due to insufficient funds. Thus it is argued that the bank was cheated to the tune of Rs 1,58,86,908.68/-.

79.3 It is further argued that though the trial against A-1 has been deferred on account of his mental illness, however the evidence on record proves his involvement in the criminal conspiracy.

79.4 It is further argued that the main players in the present case were J.S. Logani and accused Ghanshyam Kakkar, the partners of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 M/s Red Cat Agencies. The other accused were either their employees or relatives. A-5 Rajesh Batra, Proprietor of M/s Batra Traders, was their employee, while A-4 Harsimran Dhingra, Proprietor of M/s Pimco Overseas, is a close relative of J.S. Logani. Similarly, A-6 Naveen Kakkar, Proprietor of M/s Agronica Overseas, is the brother of A-2 Ghanshyam Kakkar, partner of M/s Red Cat Agencies.

79.5 It is further argued that all the above referred five accounts were allowed to be opened by A-1 at New Friends Colony Branch of OBC in pursuance of the criminal conspiracy of cheating the bank.

79.6 Further, it is argued that a total of 20 cheques for amount to Rs 73.6 lacs and four bills amounting to Rs 25.85 lacs were purchased in the current account of M/s Red Cat Agencies during the period i.e. 03.10.1994 to 30.09.1995. All the cheques and bills were purchased by A-1 being the

branch Manager.

79.7 It is further argued that out of the said purchased cheques, 18 cheques of Rs 66.35 lacs returned unpaid due to insufficient funds. The cheques issued purchased in the account of M/s Red Cat Agencies were issued against bogus transactions by the fictitious firms of A-4 Harsimran Dhingra (M/s Gold Export, M/s Sun Export), A-8 Vikram Arora (M/s Ganpati Enterprises and M/s Carda CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (India) Electronics), A-7 Sanjeev Kumar Arora (M/s Ashoka Industries) and few other entities including one firm of J.S. Logani (M/s Gold Export).

79.8 It is further argued that similarly in the current account of M/s Batra Traders, 7 cheques and 2 bills were purchased by A-1 during the aforesaid period, which all got dishonored. Again in the said account, the cheques/bills were drawn/issued by the fictitious firms of A-4 (M/s Sun Export), firms of J.S. Logani (M/s Gold Export and M/s Sun Glow Travel and Tour Operator).

79.9 That as far as current account of M/s Navyug Traders through its Proprietor Narender Kapoor is concerned, it is argued that in fact Narender Kapoor never opened the said account. Rather his signatures were forged by A-5 Rajesh Batra. The said fact has been proved by the FSL report Ex. PW57/1 dated 03.11.1999. The said Narender Kapoor was Peon with M/s Red Cat Agencies and accordingly his particulars as well as photographs were misutilized in opening the current account of M/s Navyug Traders by forging his signatures. The said account was opened by A-1 only. In the said account, one cheque and two bills were purchased which were issued against bogus transactions by M/s Sun Export of A-4 and M/s Jimmy Crown Enterprises, Proprietor Meena Kakkar (wife of A-2).

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79.10 It is further argued that the 4th current account of M/s

Pimco Overseas was opened by A-4 as a Proprietor and the said account was introduced by Ghanshyam Kakkar (A-2). In the said account, three cheques and two bills were purchased, out of which two were issued by M/s Sun Exports (owned by A-4 only) and one by A-3 J.S. Logani proprietor M/s Sun Glow Travels & Tour Operators. Two bills purchased were issued by M/s Sun Exports and Gold Exports, Amritsar (owned by A-4 himself). Thus, A-4 himself issued bogus cheques of his bogus firms located at Amritsar and got the said cheques purchased in the current account opened at OBC, New Friends Colony in conspiracy with A-1 and other accused persons.

79.11 It is further argued that current account of M/s Agronica Overseas was opened by Naveen Kakkar (A-6) (since P.O) which was introduced by A-5. Again, in the said account, two cheques and two bills were purchased, one cheque was that of M/s Sun Export, Jalandhar (owned by A-4) and other of M/s Jimmy Crown Enterprises (owned by wife of A-2). Two bills which were purchased, were issued by A-4 of M/s Sun Exports, Jalandhar. All the said cheques and bills were bogus instruments without any genuine business transaction.

79.12 It is, thus, argued that all the above referred transaction which have been proved by the prosecution witnesses CBI V. S.K. Pathrella & Ors. CC No. 260/2019 goes on to show the criminal conspiracy hatched by the accused persons themselves by roping A-1 to cheat OBC, New Friends Colony Branch. The said conspiracy in the end resulted in wrongful loss of Rs 1,58,86,908.60 with the corresponding wrongful gain to the accused persons.

80. It is argued that though the proceedings stand quashed against one of the main accused Joginder Singh Logani by the Hon'ble High Court vide order dated 04.09.2015 on account of settlement affected by him with the bank. However, the said settlement is of no help to the accused persons facing trial as no part of the cheated amount has been paid by them to the bank. Bank never came forward to compound the offence before the court.

80.1 It is further argued that as far as A-1 is concerned, he purchased the said fraudulent cheques and bills in violation of the Circular No. HO/ADV/28/91-92/85 dated 01.07.1991 issued by General Manager (Operation) (Ex. PW2/A). It is further argued that the witnesses PW-51 and PW-53 have deposed about the said illegalities committed by A-1. Therefore, it is argued that all the accused persons are liable to be punished for the charges framed against them.

The written arguments filed by CBI are also on the similar lines.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (VII) Arguments on behalf of Accused Persons

81. Per contra, Sh UK Sharma, Ld. Counsel for accused A- 4,5,A-7 and A-8 argued that they are not disputing the discounting of the bills/cheques by the bank. However, no offence under Section 420 r/w 120B IPC is made out as the entire amount due towards the bank stands paid as reflected in the order of Hon'ble Delhi High Court dated 04.09.2015.

81.1 It is further argued that CBI even preferred SLP against the order of the Hon'ble High Court dated 04.09.2015 before the Hon'ble Supreme Court and the SLP has been dismissed vide order dated 06.01.2017. The No Objection Certificate issued by the bank reflects that the bank has received payment of Rs 1 crore 74 lacs and apart from that interest component of Rs 23,29,000/-. In the said backdrop, there is no question of offence under Section 420 IPC surviving against the accused.

81.2 It is further argued that there was no intention on the part of the accused persons as they have deposited the entire amount with interest to the bank thereby causing no loss to the bank.

Further, it is argued that the principle of Stare Decisis is applicable and in this regard the reliance is placed upon the judgments:

1. Adani Power Ltd. and Anr. vs. Union of India & others, Hon'ble Supreme Court (Arising out of Special CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Leave Petition (Civil) No. 24729/2019, decided on 05.01.2026.

2. Vaddi Ratnam vs. State of Andhra Pradesh, Hon'ble Supreme Court, Cr. Appeal No. 811/2016, decided on September 17, 2015 (Unreported judgment).

3. Harbans Singh vs. State of UP and others decided on 12 February, 1982, AIR 1982 SC 849.

4. Javed Shaukat Ali Qureshi vs. State of Gujarat, 2023 LiveLaw (SC) 782:2023 INSC 829.

5. CBI Vs. M/s Sarvodaya Highways Ltd. and others (Arising out of SLP (Crl.) No(s). 11108 of 2022, 2025 INSC 1359.

82. The principle of parity too applies as A-3 J.S. Logani was similarly situated to the other accused persons and was facing trial for all the offences as the present accused. A-3 has already been awarded relief by the Hon'ble High Court vide order dated 04.09.2015 by quashing the FIR.

82.1 It is further argued that no offence under Section 120B read with Section 13 (2) of PC Act is made out as prosecution has failed to show any disproportionate property being found with A-1. A-1 never forged any document as is admitted by the Investigating Officer in the cross-examination.

82.2 Similarly, the other bank officials who have been examined by the prosecution i.e. PW-31 Balbir Singh, PW39 Vinay Kumar all CBI V. S.K. Pathrella & Ors. CC No. 260/2019 admitted in the cross-examination that A-1 was not duty bound to verify the documents which he allowed for purchase in the above referred accounts. Similarly, PW-42 claimed that he never informed A-1 about the return of unpaid cheques and did not scrutinize or verify the documents of the respective firms.

82.3 Lastly, it is argued that the CFSL report has remained unproved as PW-57 Ms. Alka Gupta merely identified the signature of the author of the report Sh. S.C. Mittal. The CFSL report is also hit by Section 311A of Cr.P.C as no permission of the court was taken before taking specimen signatures. So, it is argued that Investigating Officer never seized the balance sheet of the firms who had issued the cheques/bills in favour of the above referred five account holders and therefore, their averments that cheques or bills were issued without any business transaction is a bald claim.

82.4 It is also argued that Section 13(1)(d) of PC Act is also not made out as there are no allegations of demand or acceptance of bribe or malafide or dishonest intention on the part of A-1 while authorizing the purchase of cheques/bills. Even otherwise, there were several other officials involved in the said entire process and A-1 alone could not have exercised the said powers. Hence, accused persons are liable to be acquitted.

The written arguments too have filed which are also on the similar lines.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (VIII) Rebuttal Arguments of CBI

83. In rebuttal, it is argued that as far as A-1 is concerned, three cases were instituted against him of criminal misconduct and A-1 already stands convicted in one case. As regards the reliance placed on the order of the Hon'ble High Court dated 04.09.2015 regarding the quashing of the case against accused J.S. Logani, it is argued that the Hon'ble Delhi High Court, vide a subsequent order dated 17.01.2019 has already clarified that the case will continue against all the remaining accused. Therefore, no protection can be claimed by the accused facing trial qua the above-referred quashing order. As regards the non-collection of balance sheets of the firms that issued the cheques or bills in favour of the above referred five firms, it is argued that same is inconsequential. The accounts statements of the said firms have been collected and proved on record which reflects no business being done and the said firms having a paltry balance all throughout during the relevant period. As regards the compromise or repayment of the loan is concerned, the reliance is also placed upon the judgment of Hon'ble Supreme Court in CBI Vs. M/s Sarvodaya Highways Ltd. and others (Arising out of SLP (Crl.) No(s). 11108 of 2022, 2025 INSC 1359.

84. Heard both the parties and gone through the entire records.

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(IX) CRIMINAL CONSPIRACY

85. The first and foremost charge (referred as Charge No.1) framed against the all the accused persons is that of Criminal Conspiracy.

85.1 Before delving into the factual matrix of the case, the legal principles governing the offence of criminal conspiracy as defined under Section 120A and punishable under Section 120B IPC needs discussion. It is a well-settled proposition of law that it is a distinct and substantive offence. It is also independently and separately punishable. In case the agreement is for the accomplishment of an act which itself constitutes an offence, then in that event, even no overt act needs to be proved by the prosecution.

86. The foundation of the criminal conspiracy is the 'agreement or meeting of minds' between two or more persons and the object of the meeting of mind is to achieve a common illegal objective. The offences complete as soon as the agreement is made. The ingredients of the criminal conspiracy under Section 120 A IPC can be culled out as under :

(i) an agreement between two or more persons (ii) secondly, the agreement must relate to doing or causing to be done (a) an illegal act or (b) an act which is not illegal in itself, but is done by illegal means.

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86.1 It is also well settled principle of law that the offence of

criminal conspiracy is a continuing offence that begins with formation of the agreement and lasts until the objective is achieved or abandoned due to intervening causes. It is also a well-established fact as pronounced in numerous cases by the constitutional courts, that generally the conspiracy is hatched in secrecy and is also executed in darkness. Therefore, it is difficult to prove by way of direct evidence the said agreement between the parties of criminal conspiracy. The prosecution generally has to rely upon surrounding circumstances or the conduct of the accused persons from which the inference has to be drawn regarding the meeting of mind or agreement between the parties for the objects as referred above.

The said circumstantial evidence though must establish a chain of events that inevitably points towards the criminal conspiracy hatched between the parties. In this regard, the judgment of Hon'ble Supreme Court in *Kehar Singh & Anr. V. State (Delhi Administration)*, AIR 1988 SC 1883 throws light over the same. The relevant paras are reproduced hereunder for the sake of convenience and clarity:

"274. It will be thus seen that the most important ingredient of the offence of conspiracy is the agreement between two or more persons to do an illegal act. The illegal act may or may not be done in pursuance of agreement, but the very agreement is an offence and is punishable. Reference to Sections 120-A and 120-B IPC would make these aspects clear beyond doubt. Entering into an agreement by two or more persons to do an illegal act or legal act by illegal CBI V. S.K. Pathrella & Ors. CC No. 260/2019 means is the very quintessence of the offence of conspiracy.

275. Generally, a conspiracy is hatched in secrecy and it may be difficult to adduce direct evidence of the same. The prosecution will often rely on evidence of acts of various parties to infer that they were done in reference to their common intention. The prosecution will also more often rely upon circumstantial evidence. The conspiracy can be undoubtedly proved by such evidence direct or circumstantial. But the court must enquire whether the two persons are independently pursuing the same end or they have come together in the pursuit of the unlawful object. The former does not render them conspirators, but the latter does. It is, however, essential that the offence of conspiracy requires some kind of physical manifestation of agreement. The express agreement, however, need not be proved. Nor actual meeting of two persons is necessary. Nor it is necessary to prove the actual words of communication. The evidence as to transmission of thoughts sharing the unlawful design may be sufficient. Gerald Orchard of University of Canterbury, New Zealand explains the limited nature of this proposition [1974 Criminal Law Review 297, p. 299] :

'Although it is not in doubt that the offence requires some physical manifestation of agreement, it is important to note the limited nature of this proposition. The law does not require that the act of agreement take any particular form and the fact of agreement may be communicated by words or conduct. Thus, it has been said that it

is unnecessary to prove that the parties "actually came together and agreed in terms" to pursue the unlawful object; there need never have been an express verbal agreement, it being sufficient that there was "a tacit understanding between conspirators as to what should be done".' CBI V. S.K. Pathrella & Ors. CC No. 260/2019

276. I share this opinion, but hasten to add that the relative acts or conduct of the parties must be conscientious and clear to mark their concurrence as to what should be done. The concurrence cannot be inferred by a group of irrelevant facts artfully arranged so as to give an appearance of coherence. The innocuous, innocent or inadvertent events and incidents should not enter the judicial verdict. We must thus be strictly on our guard."

87. In the light of said settled proposition of law concerning the offence of criminal conspiracy, the factual matrix in the present case needs discussion and it has to be seen as to whether the prosecution has been successfully able to prove the existence of agreement between two or more persons and the objective of the same being illegal one.

88. It is the case of the prosecution that the accused persons including A-2 Ghanshyam Kakkar, A-6 Naveen Kakkar (Both declared Proclaimed Offenders vide order dated 17.10.2010) and A-3 Joginder Singh Logani (proceedings quashed vide order dated 04.09.2015 by Hon'ble High Court) were the members of the said criminal conspiracy and they roped in A-1 S.K. Pathrella, who at relevant point of time was the Branch Manager, Oriental Bank of Commerce, New Friends Colony, New Delhi. The private persons namely A-4 HS Dhingra, A-5 Rajesh Batra and A-6 Naveen Kakkar (since Proclaimed Offender) allegedly joined in and current accounts were opened in through their fake firms. A-7 Sanjeev CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Kumar and A-8 Vikram Arora also allegedly became part of the conspiracy as the cheques issued by them against fake transactions also came to be purchased in the account of M/s Red Cat Agency.

(i) CRIMINAL CONSPIRACY VIS-A-VIS THE ALLEGATION AGAINST A- 1 U/S 13 (1) (d) r/w 13 (2) of PC ACT.

89. Though, the trial against A-1 stands suspended in light of his Mental Condition under Section 368 of BNSS 2023 vide order dated 01.03.2025, but as the cumulative charge of criminal conspiracy is framed against the accused persons, therefore the role of A-1 to that extent necessarily has to be considered.

90. It is the case of the prosecution that the private accused persons hatched a criminal conspiracy by roping in A-1 and the object of the said criminal conspiracy was to cheat Oriental Bank of Commerce by utilizing the banking facilities of purchase of cheques /bills in pursuance of the said criminal conspiracy. It is alleged that the following five current accounts were opened :

Sr. No Name of the Firm Current Partner/Proprietor Account No. 1 M/s Red Cat
2607/CC 1724 Partners A-3 J.S Logani and A-

	Agencies		2 Ghanshyam Kakkar
2	M/s Batra Traders	2695	A-5 Rajesh Batra, Proprietor
3	M/s Navyug Traders	2845	Narender Kapoor, Proprietor (Signatures alleged to be forged by A-5)

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4	M/s Pimco Overseas	2783	A-4 Harsimran Singh, Proprietor
5	M/s Agronica Overseas	2846	A-6 Naveen Kakkar, Proprietor

90.1 It is the case of the prosecution that the manner of cheating

in pursuance of the said criminal conspiracy was to open fictitious accounts in the name of dummy firms (hereinafter referred as 'Fictitious Accounts') with other banks at far-off places. The cheques were thereafter issued in favour of the above-referred five firms whose current accounts were opened with OBC, NFC, New Delhi (hereinafter referred to as 'Beneficiary Accounts'). The said cheques or bills were issued from the Fictitious Accounts or Fictitious Firms registered at far-off places. The said bills of exchange or invoices then used to be purchased at OBC, NFC, New Delhi by A-1 being the Branch Manager and the proceeds used to be credited in the 'Beneficiary Accounts'. Later, when the said cheques or invoices which were purchased were sent for clearing in the respective Fictitious Accounts, all of them returned unrealized primarily with remarks 'insufficient funds'. In this manner, OBC, NFC, New Delhi was cheated and there was wrongful loss to the tune of Rs.1,58,86,908.60.

90.2 It is apparent from the said allegations that the entire allegations of fraud revolved around one banking institution i.e OBC, NFC, New Delhi. The Branch Incumbent who was CBI V. S.K. Pathrella & Ors. CC No. 260/2019 authorised to purchase the said cheques or bills presented by Beneficiary Accounts Holders was A-1 S.K. Pathrella. Therefore, in the said backdrop, the first and foremost factual issue to be considered is whether A-1 was part of the said agreement hatched by the Beneficiary Account Holders in pursuance of criminal conspiracy or not, or whether he was merely performing his duty though not very diligently.

90.3 The prosecution to prove the said allegation of A-1 being part of criminal conspiracy has placed reliance upon the documentary as well as ocular evidence. The documentary evidence can be further segregated into two parts, first, being the opening of the Beneficiary Current Accounts by A-1 and second being the purchase of

cheques/invoices presented by Beneficiary Accounts Holders. Though none of the said duties performed by him were disputed during the trial. However, it needs discussion to see whether the act done by A-1 remained in the realm of performance of his official duty or more than that.

91. The first set of documentary evidence against A-1 is the allowing Beneficiary Accounts Holders i.e A-2, A-3, A-4, A-5 and A-6 to open the current accounts during his tenure as Branch Manager at OBC, NFC, New Delhi. It is not in dispute as has been proved through documents i.e. Ex. PW21/G-1 (D383) (M/s Red Cat Agencies), Ex. PW21/D-1 (D272) (M/s Batra Traders), Ex.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 PW21/F1 (D316) (M/s Agronica Overseas), Ex. PW21/E-1 (D279) (M/s Navyug Traders) and Ex. PW1/A (D178) (M/s Pimco Overseas). Current accounts came to be opened during the relevant period with OBC, NFC, New Delhi.

92. A-1 was the Branch Manager at the above-noted branch from 16.04.1994 to 15.11.1995. During the said period only, all the above-referred five Beneficiary Accounts came to be opened by A-2 to A-6. The account opening forms of all the said five Beneficiary Accounts have been proved on record as discussed above and it A- 1 only who allowed the opening of the said accounts.

92.1 But, the issue herein is as to whether the mere fact that A-1 allowed the opening of the current accounts by itself can be said to be incriminating circumstance against him or showing his participation in a criminal conspiracy allegedly hatched by Beneficiary Account Holders.

It is a well-established fact that opening a current bank account is a genuine banking operation. The object of any such financial institution in the business of banking is to provide timely and adequate credit for the trade and industry. By keeping in view the said object of a financial institution, the current accounts of business establishment's are opened by the bank and various facilities, including that of loans and advances, are provided. In return of providing the said facilities to the various business entities, CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the bank earns interest as well as levies various charges. The successful running of a banking institution involves providing facilities to business establishments for establishment or running of their businesses and in return, income is earned by the bank. In this manner, the economy of a nation works, and the banking institutions play a vital part in it.

93. Therefore, in the said backdrop when it is the incumbent obligation on the part of the Bank Manager to open current accounts for firms in trade and other businesses, no inference can be drawn against A-1 for having allowed the opening of the current accounts as referred above except one current account of M/s Navyug Traders, CA No.2845. It is not the case that there was any procedural illegality in opening of current accounts. Hence, the mere opening of the currents accounts by itself cannot be the factor which can be taken against him to be part of the criminal

conspiracy.

94. As far as the opening of current account in the name of M/s Navyug Traders on 06.09.1995 is concerned, it is the case of the prosecution that the said account was also opened by A-1. However, the proprietor of the said firm was allegedly mentioned as Narender Kapoor, but his signatures were forged by A-5 Rajesh Batra.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 94.1 The account opening form of M/s Navyug Trader Ex.PW21/E-1 (D-279) has been proved on record alongwith specimen signature card vide Ex.PW21/E-2 (D-280). It is the case of the prosecution that the said Narender Kapoor never opened the said account, rather his photograph was misused by other accused persons and A-5 Rajesh Batra forged his signatures on the above- referred documents. It is not in dispute that as has been proved through the version of PW-55 Devender Pal Dhingra, the then Manager, Loans, OBC, NFC, New Delhi that A-1 allowed the opening of the account. However, the issue to be seen is as to the exact role played by A-1 in allowing opening of the bank account as reflected from account opening form Ex.PW-21/E-1. His role of allowing came into the picture only after the account holder was introduced by the introducer.

94.2 The introduction to the said account has been done by account holder CA 2546 M/s Best International, though the signatory/ introducer has remained unidentified. A-1 appended his signature at point 'A1' Ex.PW21/E-1 wherein he verified the following fact:

"Introducers signature is verified. I confirm that the Introducer called upon at the bank and has signed in my presence."

95. Thus, it is apparent that based on the introducer's averments and assurance as to the identity of the applicant wishing to open the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 account, A-1 allowed the same. Therefore, the version of the introducer was the most essential one, but he has remained unidentified. Apart from that, the case of the prosecution that signatures of Narender Kapoor were forged by A-5 Rajesh Batra as well as his photograph being mis-utilised also depended entirely upon the version of said Narender Kapoor, alleged to be the proprietor of M/s Navyug Trader. He was named as LW-61. However, the prosecution could not procure his presence as he was found to be not available at the given address. Thus, the most crucial substantive evidence concerning the forgery or the mis- utilization of the photograph of Narender Kapoor or he having not appeared before A-1 or other bank officials for opening the bank account , has not been produced by the prosecution.

95.1 It is also apparent from the said application form Ex.PW- 21/E-1, the alleged forged signatures of Narender Kapoor at point Q-345 and Q-346 were not verified by A-1, and it cannot be assumed that the said alleged impersonator only appeared before A-1 at the time of opening of the bank account. It can also not be believed that the act of opening of the bank account involved the sole participation of A-1 who admittedly at that point of time was Branch Manager. It cannot be assumed that the entire staff working under him played no role in the said act of opening the current account.

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96. Pertinently, the other documents accompanying the said account opening form i.e agreement for cash credit and overdraft Ex.PW21/E-5 (D-283), agreement regarding bill purchase Ex.PW21/E-6 (D-284), agreement of guarantee Ex.PW21/E-7 (D-

285) and another argument of guarantee Ex.PW21/E-8 (D-286) were also executed. The first two documents i.e agreement for cash credit and overdraft and agreement regarding bill purchase were allegedly executed by said N. Kapoor on behalf of M/s Navyug Trader which as per the case of the prosecution is forged. Surprisingly, both the said referred documents were counter-signed on behalf of OBC, NFC, New Delhi, by PW-55 Devender Pal Dhingra. In that scenario, if the allegations of forgery were indeed true, he (Devender Pal PW-55) too should have been named as an accomplice instead of prosecution witness. It is also not the case of the prosecution that PW55 signed the said documents under duress or coercion of A-1. In the said backdrop, the act of allowing the opening of the said current account in the name of M/s Navyug Traders, nothing much can be read against A-1 in light of lack of clear admissible evidence of real Narender Kapoor having never appeared for opening of the bank account or having never filled the said application form Ex.PW21/E-1.

(ii) Discounting of Bills/Cheques by A-1

97. The next set of allegations against A-1 and he being part and parcel of the criminal conspiracy hatched by private individuals, is CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the factum of discounting of cheques and bills by him in their favour. It has already been observed above that A-1 was the Branch Manager w.e.f 16.04.1994 to 15.11.1995 at OBC, NFC, New Delhi and it is he only who was authorised to purchase third party cheques upto Rs. 7.5 lakhs and bills/cheques to the tune of Rs.30 lakhs as per circular Ex.PW2/A(D-3) in the account of allied/sister/ associated concern. A-1 had accordingly purchased total of 27 cheques & 8 bills in the accounts of five beneficiary current accounts which ultimately led to the loss to the tune of Rs. Rs.1,58,86,908.60 to the bank.

98. The case of the prosecution against A-1 is that he abused his position as a Branch Manager/Public Servant and exceeded his discretionary powers. He unauthorisedly purchased cheques more than Rs.7.5 lacs and Rs.30 lacs as mentioned in the above-referred five beneficiary accounts. He also purchased the third-party cheques in the aforesaid beneficiary accounts even though the said accounts were showing outstanding liabilities.

98.1 Before delving into the factual aspects, the said business of discounting or purchase requires consideration. It is well established practice that the purchase of cheques or bills is one of the crucial component of general banking business and through the said business only, the bank earns interest for running its institution. It is also a matter of fact that a hefty interest as well as penal interest CBI V. S.K. Pathrella & Ors. CC No. 260/2019 is charged against the purchase of said bills of exchange or invoices as reflected from the agreements Ex. PW1/4 (D-218) M/s Pimco Overseas, Ex.PW21/D-47 (D-271) M/s Batra Traders, Ex.PW21/E6 (D-284), M/s Navyug Traders, Ex.PW21/G-237 (D-627) and M/s Red Cat Agencies entered between OBC, NFC, New Delhi and the Beneficiary Accounts Holders. The performance of any branch incumbent is rather judged based on his performance by

virtue of which he earns business for the bank, which primarily includes the "interest income".

98.2 The very basis of the establishment of the financial institutions in a thriving economy is to provide the facility of adequate credit for trade and industry. In a way, the said core financial institution's function allows the wheels of national economy to run for the betterment of society at large. Keeping in view the said object and the fact that it is one of the legitimate businesses of the bank, the issue of purchase of bills of exchange and invoices by A-1 requires consideration.

99. The first factual issue to be considered is as to whether the said purchase was as per the banking norms or rules framed thereunder and if not, whether the said action of A-1 was inspired due to extraneous considerations. It is also to be seen whether A-1 was aware of use of said facility for Cheque Kiting.

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100. The prosecution in this regard has placed reliance upon Circular D-3 Ex.PW2/A dated 01.07.1991 which as per them was violated by A-1 while purchasing the bills in the Beneficiary Accounts.

100.1 The object of the said Circular is enumerated in Para-2 of the same wherein it was stipulated that as a step towards decentralization and with a view to provide timely and adequate credit for trade and industry, the existing structure of discretionary powers of loans and advances was being revised. As per the discretionary powers are concerned, Part-B of the same enumerated the discretionary powers to be Rs.7.5 lacs qua the purchase of third party cheques and maximum exposure per borrower to be Rs.30 lacs for the Large Branches. The branch incharge was authorized to purchase the same. The said discretionary powers were to be further exercised subject to the conditions as enumerated in Para-3 and 4 of the said Circular. The earlier Circular on the guidelines/process notes/ register/reporting etc dated 20.12.1988 was also ordered to be adhered. Apart from that, the Branch Incumbent was duty-bound to report the said powers utilized by them to the Regional Offices or Head Offices as per the system prevalent.

101. The limit for purchase of third party cheques was brazenly breached qua all the five Beneficiary Accounts Holders CBI V. S.K. Pathrella & Ors. CC No. 260/2019 when seen from the record proved by the prosecution. It is also matter of record that the CC limit facility was accorded to only one of the Beneficiary Account firm i.e M/s Red Cat Agencies which was earlier Rs.15 lacs, but later on, enhanced to Rs.65 lacs as reflected from letter Ex.PW53/B dated 29.09.1995 of A-1 (D-695) without approval of the higher authorities .All the said facts are neither disputed on behalf of any of the accused nor challenged during the trial. However the issue in hand is if mere violation of said limit by A-1 itself can be the reason for assuming his involvement in the conspiracy.

102. Though it is proved that there was indeed a violation of the said norms as prescribed by Circular Ex.PW2/A dated 01.07.1991 (Part of D-3) by A-1. The issue herein is whether the norms set in the Circular provided any leeway to the Branch Incumbent or not, and if answer is in affirmative then how, it was to be used.

102.1 The answer to the said issue has been provided by the other colleagues of A-1 who have been examined as PW-37 Balbir Singh Godara, who was at the relevant point of time was Head (Bills Department) of the Branch and PW-55 Devender Pal Dhingra, Manager (Loans Department) in the very same branch. As far as the purchase of the bills and cheques in the Beneficiary Accounts is concerned, both PW-37 and PW-55 deposed that the sole authority CBI V. S.K. Pathrella & Ors. CC No. 260/2019 for the same lay with A-1 and only after the approval of A-1, they used to do the remaining procedure of ensuring debit and credit entries in the concerned documents.

102.2 As regards the issue of purchase of cheques and bills beyond the powers of the Branch Head, PW-37 deposed as under:

"Q: What is the procedure adopted within the branch if a cheque/bill is beyond the power of the Branch Head ?

Ans. There is no procedure within the branch and the branch head is supposed to send it to the Regional Office or he has to take instructions from the Senior posted at Regional Office."

102.3 Similarly, PW-55 too addressed the said issue by deposing as under :

"The STM 41 is the monthly statement sent by the Branch Manager regarding the bill/cheque purchase or authorities used for overdraft and the same is sent for reporting to the Higher Authorities of the Bank. In case of bill/cheque purchase or overdraft being within the sanctioned limit, no report is sent to the Higher Authorities.

STM 41 is in two parts i.e STM 41 A is concerning the authorities used by the Branch Manager for bill/cheque purchase or overdraft within its power and STM 41 B is concerning the authorities used by the Manager beyond his powers for bill/cheque purchase for confirmation of his actions. The utilization of powers for bill/cheque purchase in case of adhoc or temporary limits, the said transactions are reflected in STM 41- A. In case of verbal sanctions obtained by Branch Manager from the Higher Authorities, the said transactions are reflected in STM 41B. The verbal sanctions are obtained from the Regional Manager of the Bank. The said statements 41A and 41B are CBI V. S.K. Pathrella & Ors. CC No. 260/2019 prepared by the Loan Department and are then submitted to the Higher Authorities through the Branch Manager. The STM 41A is for reporting purpose and STM 41B is for confirmation of the action of the Branch Manager regarding allowing of the bill/cheque purchase beyond the limits."

103. Thus, it is apparent that in case of exercise of the authorities regarding advances or purchase of bills by the Branch Manager beyond his powers, the confirmation in this regard has to be sought from the Regional Manager by submitting a specific document i.e STM 41B. No such document has been proved on record. PW-49, Investigating Officer (IO) too was cross-examined with respect to the said statement STM 41B wherein he admitted to the fact that every branch has to send the same

to the Regional Office every month regarding purchase of cheques and bills beyond the discretionary powers. He expressed his ignorance as to whether STM 41 submitted in the present case had any remarks by the Regional Manager pointing towards irregular exercise of the discretionary power by A-1.

103.1 The said registers were seized during investigation vide seizure memo Ex.PW49/30 (D697) from PW21 JK Saxena Manager Loan, OBC, New Friends Colony, New Delhi. The said registers i.e STM 41A and registers containing confirmation for the temporary advances were referred by the IO PW49 as Ex. PW49/32 and PW49/33 respectively. However the author the said registers was neither identified nor examined by the prosecution. Even the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 provider of the said records PW21 JK Saxena was never examined as to the contents of the said registers. It is also not clear as to whether the said second Registers are STM41B or not. In these circumstances, the mere referring of the records by the PW49/IO does not prove the document. In this regard, the court is guided by the judgment of the Hon'ble Delhi High Court in case titled as Ramnish Geer vs CBI 22/DHC/004775 which held as under :-

"Thus, it is a settled law that admission or exhibiting of documents in evidence and proving the same before the court are two different processes. Contents of the document cannot be proved by mere filing the document in a court. Under the law of evidence, it is necessary that contents of documents are required to be proved either by primary or by secondary evidence. Mere marking a document as an exhibit will not absolve the duty to prove the documents in accordance with the provisions of law."

103.2 That vide seizure memo Ex.PW49/31 (D-678), the STM Registers of Regional Office were also seized, but they have also not been proved on record for reasons unknown. In the absence of the said crucial documents i.e STM41B and the action taken by the concerned Regional Head of OBC, no assumption can be drawn regarding the illegality or irregularity of the action of A-1. It cannot be assumed that the action of A-1 in breaching the limit for purchase of third-party cheques or bills was not confirmed by the Competent Authority or that he was refrained in this regard.

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104. The prosecution has also examined two witnesses from the Regional Office i.e PW-51 Pradeep Kumar Malhan, Sr. Manager, Regional Office, Karol Bagh, OBC, Delhi and PW-53 Surender Kumar Lakhina, Regional Head of New Delhi Branches during the year 1991 to 1995, who also throw light over the said issue.

104.1 PW-53 deposed that A-1 was heading the OBC, NFC Branch during the relevant time and the said branch was also under him, being part of 80 branches under him as 'Regional Head'. Though he deposed about the communications exchanged by him with A-1 concerning exercise of powers beyond the powers conferred upon him, but surprisingly, his version is also silent as to whether the said contemporaneous reports STM 41A and B were submitted by A-1 every month or not and if yes, action taken by them.

104.2 Similarly, the version of PW-51, the other official from the Regional Office too is silent in this regard. Rather, he in the cross- examination expressed his inability to disclose whether the daily information of STM 41 was sent by A-1 to Mr. Lakhina (PW-53). He also expressed his inability to disclose as to whether if any letter was issued to OBC, NFC Branch as STM 41B being not received by their office. He also declined the opportunity to refresh his memory for seeing the documents in this regard. Thus, in the said backdrop, it has to be held against the prosecution for not proving CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the most essential document concerning the allegations of the purchase of cheques or advances beyond the discretionary powers of A-1.

105. In the said backdrop, it has to be concluded that though certain limits were put with respect to the discretionary powers upon the Branch Managers in terms of Circular Ex.PW2/A dated 01.07.1991 (Part of D-3) for extending cash credit limits or purchase of cheques and bills of exchange which were breached by A-1. It is also a matter of record that in case the said limit was breached, the necessary approval had to be sought from the higher authorities, which in the present case was the Regional Office, OBC, Karol Bagh, New Delhi. The prosecution has placed reliance on the fact that the documents and letters in the Control File (D-

694) and file of M/s Red Cat Agencies of (D-695) goes on to show that higher authorities never approved the acts of A-1.

105.1 The version of PW-51 Pradeep Kumar Malhan, Sr. Manager at Regional office, OBC, Karol Bagh, New Delhi and the Regional Head PW-53 Surinder Kumar Lakhina, requires consideration over the said issue. However, before delving into their version , the documents/letters which are part of D-694 and D-695 requires appreciation.

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105.2 The first letter in this regard was written on 19.04.1995

vide Ex.PW51/1 (D695) and was addressed by A-1 to DGM, Regional Office, New Delhi (ie PW53) and the subject of the same is "Working Capital Facilities-Red Cat Agencies" . Thus, the approval was sought by A-1 concerning the Working Capital Facilities extended to one of the Beneficiary Account Holders from the Head office even though the proposed Working Capital Facility was well within the discretionary powers of A-1. The amount of cash credit facility sought to be approved from the Regional Office was Rs.16 lacs only. The contents of the said letter which is relied upon by the prosecution, rather put a question mark over the allegations of abuse of office by A-1, thereby making him liable for the offence punishable under Section 13 (1) (d) (ii) of PC Act 1988.

105.3 As per the contents of said letter, M/s Red Cat Agencies which is a partnership firm of A-3 Joginder Singh Logani (Proceedings qua accused quashed by the Hon'ble High Court) and A-2 Ghanshyam Kakkar (Declared P.O vide order dt. 17.04.2010) had already availed the facility of bill purchase and outstanding as on date of letter was Rs.21,72,200/- and cheque of Rs.3,49,250/- on M/s Sun Exports, Amritsar. It further enumerates that the said partners are also maintaining another current account in the name of M/s Angad Exports where bills to the tune of Rs.30.66 lacs

were purchased and accordingly, approval for grant of cash credit limit for an amount of Rs. 16 lacs was sought. Further, as per the contents CBI V. S.K. Pathrella & Ors. CC No. 260/2019 of the said letter, cash credit limit had already been released on 31.03.1995 after taking permission from the DGM. Thus, in a way, 'post facto' approval was sought from the Regional Office and the said post facto approval is also envisaged in Circular Ex.PW2/A dated 01.07.1991 (Part of D-3).

105.4 The stipulation 31 of the said Circular is reproduced hereunder for the sake of convenience:

31. No telephonic /Verbal sanction will be given by any delegate except in very exceptional cases for which the following procedure will be strictly adhered to: -

a. Immediately by return of post, confirmation is to be sought by the branch or Regional Office, as the case may be, from concerned delegate who has conveyed the telephonic sanction.

b. Sanctioning authority will also simultaneously issue a confirmatory letter on the same date.

c. In case of violation of these provisions, the limits so sanctioned will be considered unauthorised.

d. All telephonic/Verbal sanctions shall be entered in the Adhoc sanction register in the Regional Office/Head Office.

105.5 The response to the said was issued on 25.05.1995 vide Ex.PW51/2 (D695) under the signature of PW-53 S.K. Lakhina. In the said response, the denial was made of any such verbal permission granted to A-1 and he was asked to get the account of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 above party adjusted immediately. Further details were sought of the facilities allowed to M/s Red Cat Agencies and its sister/associate concerns, collateral securities and reasons for extending the limits to the sum of Rs.16 lacs, and reasons for releasing credit facility beyond the discretionary powers. There is no response in the said file (D-695) of A-1 and it is not clear whether any response was sent or not. PW-51 expressed his inability to disclose about the said letter in his cross-examination.

105.6 On the other hand, PW-53 claimed that the letter Ex.PW51/2 dated 25.05.1995 was issued by him and the explanation was sought from A-1. He further claimed that no verbal permission to A-1 was granted for sanctioning the said loan. He went on to claim that there is no provision for verbal permission, as there are four levels in the Regional Office. The file used to come to him only after crossing first three levels. Surprisingly, he remained silent as to whether any response was received from A-1 to the said letter dated 25.05.1995 and if indeed, no response was received as to the action taken by him in recommending appropriate departmental action against A-1. It is also not clear what action was taken by A-1 consequent thereto or by the

Regional Officer in case of non-compliance.

105.7 As far as his version of there being no question of verbal permission being given by the Regional Head, it is rebutted CBI V. S.K. Pathrella & Ors. CC No. 260/2019 by the Circular Ex.PW2/A dated 01.07.1991 (Part of D-3). The said Circular leaves the scope for the said practice of telephonic or verbal sanction, though in exceptional cases and thereafter regularizing it terms of the conditions as reproduced above vide Stipulation No.31.

105.8 The conduct of PW-53 also appears to be in dock. He in the cross-examination admitted to the fact that a CBI case was registered against him and claimed that he was acquitted. He further claimed that the Court found that he had issued the circulars discouraging the verbal permission and had written to Head Office regarding the conduct of A-1. But when he was asked to produce the documents concerning the charge-sheet received from the bank regarding the disciplinary proceedings, he claimed that he cannot produce the said documents as he had already been exonerated. The said reasons given by him, on the face of it, appear to be an attempt to hide the facts regarding his culpability. It cannot be assumed that the mere fact that an employee who has been exonerated is left with no relevant documents, including the chargesheet served by the department. Thus, the documents, which are part of D-695 are not of much help to the case of the prosecution regarding abuse of position by A-1. The complete communication or the action taken consequent thereto is not proved on record.

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106. Apart from the two above-said letters, the next set of letters also concerns M/s Red Cat Agencies current account. The first such letter is dated 13.09.1995 Ex.PW53/A (part of D695). It is a letter written by A-1 to DGM, Regional Office, OBC, New Delhi, thereby seeking approval to allow cash credit limits to Rs. 65 lacs for a period of one month. The said letter was written about 4 months after the letter dated 25.05.95 Ex. PW51/2 whereby the earlier request was declined. The action, if any or communication consequent thereto is missing.

107. Be that as it may be, the next letter is Ex.PW-53/B dated 29.09.1995 is again request letter of A-1 in continuation to the abovesaid letter wherein the position of account of M/s Red Cat Agencies was updated to the Regional Office. The response to the said letter was ultimately sent by PW-53 S.K. Lakhina, DGM, on 09.10.1995 vide Ex.PW-51/2. A-1 was advised to stop the practice of permitting credit facilities and was further directed to get the account regularised. The response to the said letter was written by A-1 on 16.10.1995 wherein he claimed that he alongwith partners of M/s Red Cat Agencies had held meeting with PW-53 S.K. Lakhina, the then DGM ,who permitted the release of facility.

107.1 In response to the said letter, Assistant General Manager (AGM) wrote a letter dated 26.10.1995 Ex.PW53/C (part of D694) to DGM/ PW-53 seeking confirmation as to whether A-1's claim of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 having allowed ad-hoc facility over and above sanctioned limits was done after prior approval of the DGM was correct or not. PW-53 responded to the said letter on 01.11.1995 vide Ex.PW-51/4 (part of D694)) denying the claim of A-1.

107.2 As far as the said letter Ex.PW-53/C is concerned, the author of the said letter is not identified and as such has remained unproved. It is also not clear as to whether the said AGM was working under PW53, the then DGM , Regional Office, Karol Bagh, New Delhi or not. Thus no assumption can be drawn qua the veracity of the claim of A-1 vis-a-vis the role of PW53/DGM.

107.3 It is also apparent from the said series of communications that the claim of A-1 that he was sanctioning the limits or purchasing the instruments of various parties including Beneficiary Accounts Holders under the verbal instructions of DGM was never enquired into by any independent authority who was not part of the office of DGM, Regional Officer, OBC , New Delhi. The truth of the claim of A-1 was never inquired into by the Bank nor any investigation was conducted by CBI in this regard. There was no basis for the Investigating Authority to believe the words of PW-53 against the words of A-1, since such practice was prevalent and allowed vide Circular Ex.PW2/A dated 01.07.1991 (Part of D-3) though under certain stipulations. They should have investigated the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 said claim of A-1, by examining the other officials under A-1 or PW53. But no such exercise was conducted.

107.4 PW-55 D.P Dhingra, the then Manager (Loans), OBC, NFC, New Delhi, also clarified the said fact that in case the Branch Managers obtain the verbal sanctions from the higher authorities, the said transactions are reflected in STM 41B. The verbal sanctions are obtained from the Regional Manager of the bank. The said version of PW55 never came to be disputed or challenged by the prosecution .Thus, his version also rebuts the claim of PW-53 regarding there being no procedure of seeking verbal sanction by the Branch Incumbents for the grant of limits over and above their discretionary authority . Secondly it proves the fact that all such transactions are made part of STM 41 B and thereafter sent to Regional Office for approval. It has already been observed above that the said document has neither been seized nor proved during trial for the reasons best known to the prosecution, even though the STM41A registers were seized .The confirmatory registers were never put before the concerned bank witnesses, and thus the crucial documents have remained unproved.

108. In light of the said evidence produced against A-1 which is a sketchy piece of evidence regarding sanction of limits beyond his discretionary powers, the issue to be seen as whether the said material is sufficient for holding him (A-1) to be part of criminal CBI V. S.K. Pathrella & Ors. CC No. 260/2019 conspiracy or being liable for abuse of his position under Section 13 (1) (d) (ii) of PC Act 1988.

109. The legal position as to the interpretation of the said offence and whether the mere violation of rules or regulations can be said to be sufficient/enough for the prosecution of a public servant. The Hon'ble Supreme Court in C.K. Jaffar Sharif V. CBI, 2013 (1) SCC 205 addresses the said question of

criminal liability in Para-17 which is reproduced hereunder for the sake of convenience and clarity:

"17. It has already been noticed that the appellant besides working as the Minister of Railways was the Head of the two Public Sector Undertakings in question at the relevant time. It also appears from the materials on record that the four persons while in London had assisted the appellant in performing certain tasks connected with the discharge of duties as a Minister. It is difficult to visualise as to how in the light of the above facts, demonstrated by the materials revealed in the course of investigation, the appellant can be construed to have adopted corrupt or illegal means or to have abused his position as a public servant to obtain any valuable thing or pecuniary advantage either for himself or for any of the aforesaid four persons. If the statements of the witnesses examined under Section 161 show that the aforesaid four persons had performed certain tasks to assist the Minister in the discharge of his public duties, however insignificant such tasks may have been, no question of obtaining any pecuniary advantage by any corrupt or illegal means or by abuse of the position of the appellant as a public servant can arise. As a Minister it was for the appellant to decide on the number and identity of the officials and supporting staff who should accompany him to London if it was anticipated that he would be required to perform his official duties CBI V. S.K. Pathrella & Ors. CC No. 260/2019 while in London. If in the process, the Rules or Norms applicable were violated or the decision taken shows an extravagant display of redundancy it is the conduct and action of the appellant which may have been improper or contrary to departmental norms. But to say that the same was actuated by a dishonest intention to obtain an undue pecuniary advantage will not be correct. That dishonest intention is the gist of the offence under section 13(1)(d) is implicit in the words used i.e. corrupt or illegal means and abuse of position as a public servant. A similar view has also been expressed by this Court in M. Narayanan Nambiar vs. State of Kerala[1] while considering the provisions of section 5 of Act of 1947. If the totality of the materials on record indicate the above position, we do not find any reason to allow the prosecution to continue against the appellant. Such continuance, in our view, would be an abuse of the process of court and therefore it will be the plain duty of the court to interdict the same."

110. It is thus, apparent that the prosecution apart from proving the fact of violation of rules and norms by the public servant the prosecution has to show that the same was inspired by the 'dishonest intention' to obtain pecuniary advantage. The dishonest intention is the crux of the offence under Section 13 (1) (d) of PC Act and mere conduct of the accused contrary to the stipulations governing the public servant by itself would not amount to criminal misconduct which appears to be the case herein.

111. The Hon'ble Delhi High Court too explained the scope of Section 13 (1) (d) (ii) of PC Act in case titled Madhu Koda V. State through CBI, 2020 (DEL) 764 and the relevant para 37, 38 and 39 are reproduced hereunder for the sake of convenience:

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 "37. Having stated the above, it is also necessary to observe that mere arbitrary or unreasonable exercise of official power to confer any benefit or pecuniary advantage to an unconnected party, may be not be sufficient to impute that the exercise of such power is culpable misconduct under sub-clause (ii) of clause (d) of sub-section (1) of Section 13 of the PC Act. First of all, it would be necessary for the prosecution to establish that the public servant had abused his official position; that is, used it for wrongdoing and for a purpose he ought not to have. Secondly, the same was for securing a valuable thing or pecuniary advantage for himself or for any other person, without any public interest. Obviously, if the third person, who has acquired a valuable thing or pecuniary advantage, is unconnected with the public servant, it would be difficult to accept that the conduct of the public servant is culpable in terms of Sub-clause (ii) of clause (d) of Sub-section (1) of Section 13 of the PC Act.

38. The legislative intent is not to punish a public servant for any erroneous decision; but to punish him for corruption. The preamble of the PC Act indicates that it was enacted "to consolidate and amend the law relating to the prevention of corruption and for matters connected therewith." Thus, to fall within the four corners of Sub-clause (ii) of clause (d) of Sub-section (1) of Section 13 of the PC Act, the decision/conduct of the public servant must be dishonest amounting to corruption.

Transparency International defines corruption as "the abuse of entrusted power for private gain".

39. Mens rea, the intention and/or knowledge of wrongdoing, is an essential condition of the offence of criminal misconduct under Section 13(1)(d)(ii) of the PC Act. Section 20 of the PC Act does not apply to offences under Section 13(1)(d) of the PC Act and therefore, mens rea cannot be presumed. It is, thus, necessary for the prosecution to establish the same."

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112. In the present case in hand, no assumption can be drawn that the said act of A-1 in advancing cash credit limits to M/s Red Cat Agencies beyond his discretionary powers or purchase of third party cheques in the five current account of Beneficiary Accounts Holders, was inspired due to dishonesty amounting to corruption. The record about the irregularities in the functioning of A-1, as recorded in note Ex.PW51/3 dated 16.01.1996 (part of D694) i.e after the relieving of A-1 reflects that it is not the mere five Beneficiary Accounts Holders who were given the said facilities, but rather many such account holders were availing the same. Again, letter dated 01.11.1995 Ex.PW51/5(colly) too records such instances and the names of account holders i.e M/s True Fab Pvt Ltd, M/s Moonlight Engineers, M/s Steel Samrat Pvt Ltd, M/s Star Light Pvt Ltd, M/s SNG Engineers Pvt Ltd and M/s Baba Wood Pvt Ltd. The annexure to the said letter records the instances of said purchase of bill of exchange or other facilities being granted irregularly to other parties apart from the Beneficiary Accounts Holders involved in the present case. Admittedly, it is not the case of the prosecution that the grant of the said facilities to other parties by A-1 during his tenure was on account of abuse of position to gain pecuniary advantage or any valuable thing. Rather the said conduct of A-1 in advancing multiple facilities to various parties by going beyond his discretionary powers as stipulated in Circular Ex.PW2/A dated 01.07.1991 (Part of D-3) appears to be inspired by targets set CBI V. S.K. Pathrella & Ors. CC No. 260/2019 for the Branch Managers of ensuring

robust banking business so that the bank earns income/profit from the said account holders.

113. Apart from the said material, the testimonies of bank witnesses posted under A-1 at the relevant time also throw light on the series of events and the role of A-1 qua the facility extended to five beneficiary account holders.

113.1 The first such witness is PW37 Balbir Singh Godara, Incharge bill Section, OBC,NFC, New Delhi during the relevant period. It was during his tenure only that the bills came to be purchased in the above-referred five beneficiary accounts though the authority to purchase was with A-1. In the cross-examination, he expressed ignorance about the duty to recover the unpaid amount in case of return of unpaid cheques/bills. He further expressed his inability to disclose as to whose duty was to check discrepancies in the bills/cheques.

113.2 The other witness in the Bills Section, working under PW37 was PW39 Vinay Kumar. His cross-examination too throws light over the working of Bills Section. He admitted to the fact that he never verified or scrutinised any of the documents of the parties whose bills /cheques were purchased and entered in the register by him. He further admitted to the fact that all the bills /cheques involved in the present case were processed without any influence CBI V. S.K. Pathrella & Ors. CC No. 260/2019 or pressure in due course of business. Thus, his version clearly dents the claim of prosecution regarding undue influence being used by A-1 in purchase of the bills/cheques in the account of five beneficiary accounts. It is also not clear from the testimonies of the said two witnesses from Bills Department as to whose duty was to check the discrepancies or irregularities in the documents submitted alongwith the bill for purchase.

113.3 The next witness qua the said purchase of instruments by OBC is PW40 Ashok Kumar Khanna, who too was working in Bills Department during the relevant period. He in the cross-examination admitted to the fact that he never informed A-1 regarding return of cheques unpaid for want of fund as required through Authority Register. He further admitted to the fact that it was his duty to bring to the notice of Chief Manager/A-1 before purchase of new cheque of a party that the previous purchased cheque had come back dishonoured for want of funds. He admitted to the fact that he never brought to the notice of his senior P/w37 Balbir Singh and Mr. Raheja that the bills of the parties have returned unpaid. He also admitted to the fact that all the bills and cheques in the present case were processed by him without any influence or pressure. Thus, his version also puts a question mark over the claim of prosecution regarding A-1 mis-utilised/abused his power for purchase of bills/cheques and having influenced his juniors in this regard.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Rather the testimonies of PW-39 and PW-40 who played crucial role in the process denied any such influence.

113.4 The next witness who throws light over the said issue is PW-5 Vijay Kumar Sehgal who too was posted with OBC, NFC, New Delhi. He too admitted to the fact that he passed all the negotiable instruments being authorized by A-1 in due business course and there was nothing extra-ordinary about the presentation of the negotiable instruments.

113.5 The last witness who nails the case of the prosecution against A-1 is D.P Dhingra, PW-55, Manager, Loans Department during the relevant period. He too expressed the ignorance qua relationship between A-1 and M/s Red Cats Agencies who were the prime beneficiaries of the proceeds of cheating herein. Thus, the version of all the bank officials, in a way, exonerates A-1 qua the purchase of bills/cheques by claiming it to be done in the normal course of banking business. The said versions and conduct of A-1 does not in any manner leads to a conclusion of he having acted in a dishonest manner amounting to corruption as required under Section 13 (1) (d) of PC Act.

114. The case of the prosecution also falters as there is no iota of evidence as to quid pro quo exchanged between A-1 and holders of five beneficiaries of current accounts on account of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 purchase of cheque/bills in their accounts. In this regard, the judgment of Hon'ble Supreme Court in case titled A. Sivaprakash V. State of Kerala in Crl. Appeal No. 131/07 is relevant wherein it is held as under:

"17: Section 13 (1) (d) of the PC Act, reads as under:

13. Criminal misconduct by a public servant pecuniary advantage thereby. It was the obligation of the prosecution to satisfy the aforesaid mandatory ingredients which could implicate the appellant under the provisions of Section 13 (1) (d) (ii). The attempt of the prosecution was to bring the cases within the fold of clause (ii) alleging that he misused his official position in issuing the certificate utterly falls as it is not even alleged in the charge sheet and not even iota of evidence is led as to what kind of pecuniary advantage was obtained by the appellant in issuing the said letter"

115. In the said backdrop, it has to be concluded that the prosecution has failed to proved on the standard of beyond reasonable doubt of showing the involvement of A-1 being the conspirator alongwith other private persons in cheating the bank in pursuance of the criminal conspiracy or he having abused his position making him liable under Section 13 (1) (d) r/w 13(2) of Prevention of Corruption Act 1988.

(iii) Criminal Conspiracy vis-a-vis the Offence of Cheating and Forgery under IPC

116. The primary charges { (ie Charge No.1, Charge No. 4, Charge No.5, Charge No.7 & Charge No.8 against A-5, A-7)} and CBI V. S.K. Pathrella & Ors. CC No. 260/2019 cumulative charge against A-4 levelled against all the accused persons who are now facing trial i.e A-4, A-5, A-7 and A-8 concern hatching of criminal conspiracy among themselves and the object of the same being to cheat the OBC, NFC, New Delhi, by presenting fictitious/forged cheques or bills of exchange for purchase.

116.1 It is the case of the prosecution that since the very first day of presentation of the instruments, the accused persons were well aware of the fact that the said instruments were presented only with the sole object of cheating the bank by ensuring purchase of the said forged/fictitious instruments. They were aware of the fact the instruments were never issued against any genuine business transaction. The accused persons, though, have claimed in the arguments that the said instruments were for genuine business transactions. However, no such evidence has been brought by them on

record despite the onus being upon them under section 106 of Evidence Act.

116.2 The crux of their arguments is that all the dues of OBC, NFC, New Delhi, standing against five Beneficiary Accounts stand cleared on account of the OTS. Therefore, they also deserve to be acquitted for the offence of cheating on the principles of parity, considering order of the Hon'ble High Court in favour of main accused namely A-3 Joginder Singh Logani. The proceedings against A-3 stands quashed vide order dated 04.09.2015 of Hon'ble CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Delhi High Court. It is also the argument of the accused that the Principle of Stare Decisis too is applicable herein and litigation should come to an end after the quashing of the FIR against prime accused JS Logani.

116.3 On the issue of parity and stare decisis, Ld. Counsel for the accused has placed reliance on the judgments viz; Vaddi Ratnam V. State of A.P. Criminal Appeal No. 811/2016 dated 17.09.2025, Harbans Sing V. State of U.P & Ors, 1982 AIR 849, Javed Shaukat Ali Qureshi V. State of Gujarat 2023 INSC 829 and Adani Power Ltd & Anr. V. UOI 2026, INSC 1.

117. Before discussing the merits of the allegations of criminal conspiracy vis -a vis offence under Section 420 IPC, the primary legal objections raised on behalf of the accused persons by placing reliance upon the order of Hon'ble Delhi High Court dated 04.09.2015 in quashing petition requires discussion.

117.1 It is a matter of record that one of the main accused namely A-3 J.S Logani, Partner of M/s Red Cat Agencies, one of the primary beneficiary account holder during the course of trial approached the Hon'ble High Court seeking quashing of the FIR. It was also sought on account of the settlement effected by him with the Bank.

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117.2 The order of the Hon'ble High Court dated 04.09.2015 is

perused which, on the face of it, reflects that a petition under Section 482 Cr.P.C seeking quashing of the proceedings was moved by (A-3) J.S Logani and the sole basis of the same was the no objection certificate dated 27.09.2007 (Annexure-B) of the complainant bank (Oriental Bank of Commerce). The relevant extract of the said order is reproduced hereunder for the sake of convenience:

"In the instant case, on a bare perusal of the charge- sheet filed and charge framed, it cannot be made out that on what basis it can be said that petitioner had conspired with his co-accused in defrauding the complainant-bank to the tune of Rupees One Crore Fifty Eight Lacs odd. In this background, 'No Objection Certificate of 27th September. 2007 (Annexure-B), evidencing payment of Rupees One Crore Seventy Four Lacs odd with interest of Rupees Twenty Six Lacs Odd, persuades this Court to bring an end to the criminal proceedings qua petitioner. On a careful consideration of the facts of the instant case, it can be unhesitatingly concluded that substratum of the

charges framed against petitioner are of simplicitor cheating with the aid of Section 120-B of IPC for which he can be prosecuted in the instant case. In the considered option of this Court, in view of 'No Objection Certificate of 27th September, 2007 (Annexure-B), continuance of proceedings arising out of RC No.1(E)/1997-SIU(X)/CBI/New Delhi qua petitioner is unwarranted.

Hence, this petition is allowed, and RC No.1(E)/1997-SIU(X)/CBI/New Delhi, under Sections 420/467/468/471 of IPC r/w Section 120-B IPC and Section 13(2) r/w Section (1) (d) of The Prevention of Corruption Act, 1988 and proceedings emanating therefrom are quashed.

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118. It is, thus, apparent that the proceedings came to be quashed against the said A-3 J.S Logani and the basis of the same was No Objection Certificate dated 27.09.2007 (Annexure-B). The said order attained finality after the dismissal of SLP by Hon'ble Supreme Court.

118.1 It is also matter of record that consequent thereto, the proceedings against all the accused persons came to be dropped vide order dated 07.01.2016 of the Ld. Predecessor. However, the CBI thereafter again approached the Hon'ble High Court by moving Criminal M.C No. 1578/2016. The Hon'ble High Court vide its order dated 17.01.2019 clarified that the order dated 04.09.2015 needs no clarification as the quashing of the said case was only qua the petitioner Joginder Singh Logani. It further added that the proceedings shall continue against the co-accused persons. Accordingly, the proceedings were revived by the order dated 30.05.2019 and the matter was again put on trial.

119. In the said backdrop, when it has already been clarified that the order of quashing only confined to the petitioner i.e Joginder Singh Logani, the other accused persons cannot take refuge on the ground of parity. The judgments relied upon by Ld. Counsel for the accused persons in this regard are also not applicable in the present case being distinguishable on facts.

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120. The second limb of the arguments advanced on behalf of the accused persons is that it is matter of record that already OBC, NFC, New Delhi, has been made good of their losses and they have been paid Rs.1,74,000,00/- (One Crore Seventy Four Lacs) and interest component to the tune of Rs.26,29,000/-. Thus as per the accused no offence u/s 420 IPC survive against them. The said argument, on the face of it, is liable to be rejected in light of provision of compounding of the offence u/s 320 CrPC .The mere settlement by the parties itself will not result in culmination of the proceedings. The call in respect of the compounding of the offence has to be taken by complainant bank who never approached the court seeking compounding of the offence nor any of the accused sought their stand in this regard. Rather, the documents reflect it otherwise.

121. The contents of the said NOC Ex.A-1 dated 27.09.2007 issued by Oriental Bank of Commerce concerning the five Beneficiary Account Holders itself clarifies that the full and final settlement was towards suit/settled amount. The CBI in reply to the application moved on behalf of A-4 under Section 294 Cr.P.C at the stage of defence evidence placed reliance upon certain documents of the bank concerning the settlement effected by the bank qua the above-referred five beneficiary account holders. None of the said documents are disputed by the parties.

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121.1 The first is the letter of OBC dated 01.09.2015 addressed

to the Superintendent of Police clarifying that the NCB approval dated 22.03.2004 given by the bank in respect of the settlement accepting amount of Rs.127.51 lacs was against total liability of Rs.323.53 lacs as on 31.12.2003. Thus, it is not as if the entire dues of the bank have been cleared.

121.2 Another letter dated 15.04.2004 is addressed by the Assistant General Manager (R&L), OBC, to the General Manager, Regional Office, New Delhi, intimating the said fact of settlement offer being accepted by the Competent Authority with respect to the five-account holder. It was further intimated that the terms of settlement be got recorded with Hon'ble DRT where the proceedings were pending between the parties. As regards the present proceedings, a clear stipulation was made which is reproduced hereunder for the sake of clarity:

"As regards to the criminal proceedings initiated by CBI against the obligants in the group accounts, law shall take its own course."

122. It is thus, apparent from the contents of the letter that the settlement confined to the proceedings initiated by the bank against the obligants of the account holders before the DRT. One of the crucial condition of the settlement which has been accepted by the account holder is that the criminal proceedings initiated by the CBI CBI V. S.K. Pathrella & Ors. CC No. 260/2019 in the present case that the law shall take its own course. Therefore, in the said backdrop when the beneficiary account holders have themselves accepted the said condition of the settlement of the bank, the reliance placed by them on the NOC Ex.A-1 dated 27.09.2007 is apparently misplaced and has no relevance at this stage while finding out the liability of the accused persons. Even otherwise, out of the Court Settlement till the offence is compounded by the victim under Section 320 of Cr.P.C is not relevant. Though the said fact might be relevant while considering conduct of the accused persons during the trial at the stage of sentence. Accordingly, the argument of the accused against the continuation of proceedings and specifically the offence u/s 420 IPC is rejected.

123. Now coming to the factual matrix of the present case and as to whether the said factual matrix discloses the offences under Section 420 IPC or not and whether there was any criminal conspiracy amongst the private individuals or not.

124. The factual matrix of the case concerns the purchase of cheques and invoices by the bank, and subsequently the instruments getting dishonoured when sent for clearance by the Bank.

125. It is also well settled preposition of law that mere dishonour of the cheque or bills of exchange by itself does not CBI V. S.K. Pathrella & Ors. CC No. 260/2019 disclose the offence of cheating unless and until it is shown that right at the time of issuance of cheque, the drawer had a fraudulent or dishonest intention of making not good of the promise of clearance of the cheque/bill of exchange. The mere subsequent failure due to intervening circumstances cannot be the ground to believe that there was culpable dishonest intention at the time of issuance of the cheque or purchase of the cheque by the bank. The said dishonest intention since inception when the instruments were firstly drawn and then presented for purchase, will make the account holders liable for the offence of cheating. In this regard, the judgment of Hon'ble Supreme Court in case titled Inder Mohan Goswami vs. State of Uttaranchal, (200) 12 SCC 1 deals with the said issue and the relevant part is reproduced hereunder for the sake of convenience and clarity:

"42. On a reading of the aforesaid section, it is manifest that in the definition there are two separate classes of acts which the person deceived may be induced to do. In the first class of acts he may be induced fraudulently or dishonestly to deliver property to any person. The second class of acts is the doing or omitting to do anything which the person deceived would not do or omit to do if he were not so deceived. In the first class of cases, the inducement must be fraudulent or dishonest. In the second class of acts, the inducing must be intentional but need not be fraudulent or dishonest. Therefore, it is the intention which is the gist of the offence. To hold a person guilty of cheating it is necessary to show that he had a fraudulent or dishonest intention at the time of making the promise. From his mere failure to subsequently keep a promise, one cannot presume that he all CBI V. S.K. Pathrella & Ors. CC No. 260/2019 along had a culpable intention to break the promise from the beginning."

(X) Role of Individual Accused

126. Now, coming to the roles of private individuals involved criminal conspiracy in question. The larger conspiracy, as per the allegations for which charge no.1 was framed was hatched around October 1994. It is during this period that the private individuals i.e account holders of five beneficiary accounts and the holders of fictitious accounts entered into the criminal conspiracy and the object of the same was to cheat OBC, NFC, New Delhi, by making them purchase the cheques and bills of exchange knowing well that there would be returned unpaid. Thus, causing wrongful loss to the bank and wrongful gain to the private individuals. As has already been discussed above, the purchase of cheques and bills of exchange, is one of the crucial business functions of a financial institution through which it earns income/profit as well as provides necessary credit to the trade and industry.

127. The moot question herein is not that the bills of exchange or the cheques were presented by the Beneficiary Account Holders to OBC Bank for purchase, however it is the alleged intent behind

drawing of such instruments. The intent behind its issuance was not backed by any genuine business transactions. But rather the sole object and intent was to gain wrongfully by mis-utilising the banking facilities and deceiving the bank. As far as the said aspect CBI V. S.K. Pathrella & Ors. CC No. 260/2019 of misuse of discounting facility is concerned , there is no question mark raised on behalf of private accused persons during the entire course of the trial. However, their role in the conspiracy in question and how they were interconnected to each other in said siphoning off the funds and cheated the OBC , New Friends colony Branch is discussed below by individually taking each of the five beneficiary accounts.

The Role of A-7 Sanjeev Arora, Proprietor of M/s Ashoka Enterprises & A-8 Vikram Arora, Proprietor of M/s Ganpati Enterprises and M/s Carda India Electronics & Its Connection with Primary Beneficiary Account Holder M/s Red Cat Agencies

128. Both the aforesaid accused persons are the fictitious account holders who as per the case of the prosecution, provided fictitious cheques in favour of one of the beneficiary account holder i.e M/s Red Cat Agencies, Current Account No. 2607. As far as the said beneficiary account is concerned, it was opened in name of partnership firm with partners namely A-3 Joginder Singh Logani and A-2 Ghanshyam Kakkar. Their individual role requires no discussion as the proceedings stand quashed against A-3 vide order dated 04.09.2015 by Hon'ble High Court on account of him entering one time settlement with OBC Bank. The other partner namely A-2 Ghanshyam Kakkar is Proclaimed Offender since the beginning of the trial. The discussion about the Role of Beneficiary CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Account of M/s Red Cat Agencies is confined qua the accused facing trial.

129. The case of the prosecution vis-à-vis the role of the individuals in the alleged conspiracy and cheating the bank requires discussion on five aspects i.e.

- (a) opening and identification of the account of the accused
- (b) drawing/issuance of cheques or bill of exchange in favour of Beneficiary Account Holders,
- (c) presentation and purchase of said cheque or bill of exchange by OBC,
- (d) dishonour of the said cheques or bill of exchange and
- (e) The fact of issuance of said cheques as only a paper transaction without any real business.

130. A-8 Vikram Arora is alleged to be the proprietor of two fictitious firm M/s Ganpati Enterprises and M/s Carda India Electronics. He got the accounts opened during the relevant period. A-8 opened the said account in the name of M/s Ganpati Enterprises with State Bank of Patiala, Hapur, U.P vide account opening form Ex.PW23/A1 (D-58) on 16.09.1994. The specimen signature card of the said account has been proven on record as Ex.PW23/A-2 (D-

58). The cheque book clearance register Ex.PW23/B1 (D-60) too prove the fact of issuance of cheque book to A8 with Serial No. 253426-450. A-8 never disputed the said fact of opening of the account in the name of firm either during the version of PW23 or during his statement u/s 313 CrPC.

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130.1

The Cheque No. 253428 for Rs.6.60 lacs issued in

favour of M/s Red Cat Agencies was purchased by OBC, NFC, New Delhi on 31.10.1994. It is also proved by the admitted bank records that the cheque issued by him in favour of M/s Red Cat Agencies which were purchased by OBC, got dishonoured on 07.11.1994 as per the cheque referred and return register Ex.PW23/D63 on account of 'insufficient funds'. It is also proved on record that at the time of presentation of the said cheque in the account of A-8, the balance was Rs. 41,000/- only.

130.2 The fact of purchase of said cheque is also recorded in bill purchase discount register Ex.PW-20/A-8 (D-11). The said cheque/draft purchase register of Original Bank of Commerce which clearly reflects that the purchase of said cheque/bill vide entry No. 457. It also records the non-realization of the said cheque when sent for collection by OBC to banker of A-8. The date of return is recorded as 03.12.1994. None of the said documents or facts are disputed on behalf of A-8 and the defence of A-8 revolves around the fact that the cheque was issued against a genuine business transaction. Further it is his defence that it was purchased by OBC without their knowledge and consent.

131. In the said backdrop, the first material disputed question is as to whether the said cheque was issued against genuine business transaction between M/s Red Cat Agency and M/s Ganpati CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Enterprises or not. The accused in his statement under Section 313 Cr.P.C claimed that the same was issued for a genuine business transaction; however, due to subsequent events as the material was not sent, the cheque was not honoured.

132. The prosecution rebuts the said fact by claiming that from the beginning, the balance in the account of M/s Ganpati Enterprises was never more than one lakh rupees. The statement of account of M/s Ganpati Enterprises Ex.PW23/C (D59) is perused, which reflects that right from the opening of the account till the presentation of the said cheque or even thereafter, the balance in the account was never more than Rs.2 lacs. Despite that, the cheque to the tune of Rs. 6.60 lacs was issued.

132.1 The Investigating Officer (PW-49) was also cross- examined on the said aspect by A-8 wherein PW49 claimed that during the investigation, he found no business was being conducted by A-7 or A-8. The suggestion was given to him that A-7 & A-8, both are brothers and have been falsely implicated by the Investigating Officer without conducting any investigation from them with respect to the business transactions with M/s Red Cat Agencies. The suggestion came to be denied by PW49. The contours of the said suggestion itself reflects it to be a hollow claim only. No details of business transacted between the parties were put CBI V. S.K. Pathrella & Ors. CC No. 260/2019 to witness or disclosed during the recording of the statement u/s 313 CrPC.

132.2 As observed above, the accounts statement of M/s Ganpati Enterprises Ex.PW23/C also does not in any manner probalise the defence of genuine business transactions between A-8 and M/s Red Cat Agencies either at the time when the cheque in question was issued or presented for encashment.

132.3 The account opening form Ex.PW23/A-1 itself put a question mark over the said defence of A-8. The column 'Nature of Business' was left vacant despite the opening of the account in the name of a private firm. If indeed, A-8 was running a flourishing business in the name of M/s Ganpati Enterprises, the nature of business should have been disclosed but was not done so for the reasons best known to him.

In the said scenario, when there was no material available with the Investigating Authority in this regard , the onus shifted upon the accused to disclose the facts regarding running of his business during the investigation or proving the said fact during the trial which he has failed to do so. If indeed, the said cheque in question was issued against genuine business transaction, the requisite documents should have been brought on record . But, no CBI V. S.K. Pathrella & Ors. CC No. 260/2019 such record has been proved or were ever put to I.O in the cross- examination.

132.4 The falsity of the defence is also proved vide letter dated 16.10.95 Ex. PW28/A-1 addressed by the SBP , Hapur to A-8 expressing their anguish over repeated dishonour of cheques on account of insufficient funds and terms of the current account being violated. The other limb of his defence regarding purchase of cheque by OBC without their consent is liable to be rejected being against the very nature of business of purchase of cheques by banks. No such consent of drawer is required while purchasing the instrument on being presented by Payee. In the said backdrop, the defence of A-8 on the said aspect is liable to be rejected and it has to be concluded that the Cheque No. 253428 was issued under conspiracy with the partners of M/s Red Cat Agencies and the object of the same was only to cheat and gain wrongfully by ensuring the purchase of the same by OBC, NFC, New Delhi . The bank was deceived through said act of drawing of cheque and under deception only they purchased the same.

133. The second fictitious account, which concerns A-8 is that of M/s Carda (India) Electronics. The allegations concerns the issuance of cheque No. 171005 for Rs.3.70 lacs in favour of Red Cat Agencies. The said cheque came to be purchased on 06.10.1994 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 vide Bill No. 362 by OBC, NFC, New Delhi and money was credited in the account of Red Cat Agencies.

134. The prosecution in this regard has placed reliance upon the current account opening form of M/s Carda (India Electronics) Ex.PW25/A. The said account was opened on 17.08.1994. The proprietor of the said account is Accused-8 Vikram Arora. The second document in this regard is cheque book issuance register Ex.PW5/A (D-28) which reflects that on 17.08.1994, the cheque book with serial no.171001 to 171100 came to be issued to accused herein. Out of said cheque book, the cheque in question bearing No. 171005 came to be issued in favour of Red Cat Agencies and the same was purchased by OBC, NFC, New Delhi vide Ex.PW20/A-8 (D-11)vide bill No. 362 on 06.10.1994. It also records the return of cheque on 29.10.1994. The credit voucher for the purchase

of said cheque is Ex.PW21/G-14.

134.1 The identity of the said account, its opening as well as statement of account has been proved by PW-25 B.S Saini, the then Manager, OBC, NIT, Faridabad, Haryana. Though the objection was taken on behalf of accused as to the mode of proof of the said document by the witness, but without clarifying as to how he was not competent to prove it. He identified the signatures on the account opening form of the concerned Managers being posted and having worked under them at the relevant point in time. Therefore, CBI V. S.K. Pathrella & Ors. CC No. 260/2019 the objection as to mode of proof only appears to be an objection taken without any legal basis. PW-25 also proved the statement of account as Ex.PW-25/B (D-29) which too has been objected to on similar ground of mode of proof. The said objection is also liable to be rejected in view of the Certificate given qua the said statement of account under Section 2A of Bankers Book Evidence Act, by the then Chief Manager . The signature of the author was proved by his colleague PW-25. He further clarified that as per the statement of account, the balance in the account was Rs.3554/- as on 06.10.1994 when the cheque purchased in question was issued. Thus, the said statement of account which is unrebutted and unchallenged proves the factum of fraudulent and dishonest intention at the time of issuance of the cheque in favour of M/s Red Cat Agencies and it being not backed by any genuine business transaction.

134.2 The version of PW-26 Sandeep Gupta, who is the Introducer of the said account too corroborates the claim of the prosecution regarding the account of M/s Carda (India Electronics) of A-8 being only a fictitious account and it being opened with the intention to cheat. PW-26 claimed that he had met A-8 and A-7 at OBC,NFC Branch, after being introduced to him by the Manager(A-1). Accordingly, they approached him to get the account opened in Faridabad .As he was having account in OBC, NIT, Faridabad, he introduced for the account of A-8 in the said Branch. Even the address i.e B-282, Nehru Ground Faridabad CBI V. S.K. Pathrella & Ors. CC No. 260/2019 provided for opening of the said account was that of PW-26 . He deposed that he allowed the use of said address in good faith as they had requested, they would require the said address only for correspondence. His testimony too is unrebutted and unchallenged on behalf of the accused, which goes to prove the fact that the account was opened in the name of a firm that existed only on paper.

134.3 The round tripping of the amount qua the aforesaid purchased cheque in the account of Red Cat Agency further corroborates the claim of the prosecution and rebuts the defence of A-8.

134.4 The transfer payment order Ex.PW21/G-160 dated 24.08.1995 reflect that an amount of Rs.4 lacs was transferred in the account of M/s Carda (India Electronics) by M/s Red Cat Agencies. No explanation is furnished by A-8 in the statement under Section 313 Cr.P.C explaining the purpose of the afore-referred to transfer in his account and that too after purchase of cheque.

135. The next account concerning the cheques purchased in the account of Red Cat Agency is that of M/s Ashoka Industries, whose proprietor is A-7 Sanjeev Arora.

It is the case of the prosecution that he too acted in conspiracy with other accused persons, including the partners of CBI V. S.K. Pathrella & Ors. CC No. 260/2019 M/s Red Cat Agencies. In

pursuance of the said criminal conspiracy, A-7 issued a cheque of Rs.3.60 lacs (no. 149775) from his firm's account at Syndicate Bank, Dutai Branch, Garh Mukteshwar, District Ghaziabad, U.P which came to be purchased by OBC, NFC, New Delhi. It came to be presented by M/s Red Cat Agencies under the dishonest and fraudulent inducement of being issued against a genuine business transaction.

136. The first aspect in this regard is the identity of the said bank account of M/s Ashoka Industries. In this regard, the version of PW-27 Chander Mohan Kapoor, the then Manager, Syndicate Bank, Dutai Branch, Ghaziabad and PW-30 Jagdish Singh, also the then Manager with the concerned bank, is the most relevant.

136.1 PW-27 had provided the documents during the investigation concerning the said current account which were seized vide seizure memo Ex.PW-27/A (D37) dated 27.01.1998 and Ex.PW28/B dated 09.01.1998 (D42) respectively. He proved the account opening form of M/s Ashoka Industries with Current Account No.13 as Ex.PW27/B-1(D43/1). The said account was opened by PW-30 Jagdish Singh, who identified his signature as an authorised officer on the account opening form. A-7 Sanjeev Arora, being the proprietor of the said firm and account holder , is not disputed as is apparent from the cross-examination of both PW-27 and PW-30.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 136.2 PW-27 and PW-30 also proved the specimen signature card having the signatures of A-7 as Ex.PW27/A-1(D-38). The statement of account from the period September 1994 till 09.02.1996 when it was closed has been proved as Ex. PW-27/B-3 (D44) . There is no question mark over the admissibility of the said document being the certified by PW27 under the Banker's Book Evidence Act.

136.3 The stark facts which emerge from the reading of the said statement of account reflect that it was opened with an initial deposit of Rs.1000/- in September 1994. Thereafter, all the debit entries till its closure are on account of not maintaining a minimum balance or on account of dishonour of four cheques.

136.4 A-7 out of the said account, had issued cheque (bearing no.149775) in favour of M/s Red Cat Agencies .It was purchased by the OBC, NFC Branch vide Cheque/Draft Register Ex.PW20/A- 8 (D-11) vide Entry No. 363 on 06.10.1994 in the Current Account No.2607 of M/s Red Cat Agencies The said cheque was deposited with OBC, NFC, New Delhi,vide cheque deposit slip Ex.PW-21/G-

15. The subsequent act of return of the cheque when sent for collection is proved by letter Ex.PW-27/B-5 dated 17.10.1994 of PW-30 and identified /proved by PW27 Chander Mohan Kapoor, the then Manager Syndicate Bank. The contents of the said letter are neither challenged nor disputed in the cross-examination. The letter CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Ex. PW27/B-5 thus goes on to prove the fact that during the period of operation of the account (around 6 months) three cheques bearing No. 149172, 149779 and 149775 were issued by A-7 from his account of M/s Ashoka Industries including the cheque in question bearing No. 149775 for Rs.3.60 lacs. All got dishonoured on account of non-maintenance of adequate balance. The bank thus was forced to write a letter to A-7 and it also directed A-7, proprietor of M/s Ashoka Industries to return

the cheque book issued to him in view of his conduct or otherwise they will be forced to take legal action.

136.5 Another letter Ex.PW27/A-2 dated 08.12.1995 (D39) also came to be addressed to A-7, which is in continuation of earlier request. It was further informed to him that till date the account holder has neither returned the cheque book nor closed the account. Accordingly, the bank was forced to again send the letter seeking return of the cheque book as well as intimating closure of the account as the account holder was not maintaining the minimum balance. All the said documents are neither challenged nor disputed on behalf of A-7 Sanjeev Arora and other accused persons and hence, have to be read against him. Rather, inaction on the part of A-7 to the said letters and closure of his account shows his culpability.

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136.6 The onus, then, shifted upon the accused to explain the

nature of his transaction and to prove that the cheque in question for Rs.3.60 lacs in favour of M/S Red Cat Agencies was issued against genuine business transaction. During the cross-examination, IO/PW-49 S. C. Dandriyal claimed that during investigation, he found no business being conducted by A-7 and A-8. Apart from this, no document of forgery came on record. He denied the suggestion of A-7 and A-8 of falsely implication without any investigation with respect to their transactions M/s Red Cat Agencies.

137. Thus, in the said backdrop, a specific defence was put by A-7 and A-8 to PW49 that the cheques which were issued by them in favour of M/s Red Cat Agencies were issued against the genuine business transactions. Further A-7 in his statement recorded under Section 313 Cr.P.C again reiterated the said defence by claiming that he had issued the said cheque as advance payment . However, A-2 Ghanshyam Kakkar (since P.O) failed to supply goods to them despite many remainders. Accordingly, they instructed their bank for stoppage of payment. They were not aware of the fact that A-2 has got the said cheque purchased from the bank.

137.1 Thus, a specific defence has been put that the said cheques were issued to M/s Red Cat Agencies as an advance for supply of goods which they failed to do so. The said fact being within the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 special knowledge of A-7 and A-8, the onus was upon them to produce the relevant record either during the investigation or during the trial. No such record has been produced for the reasons best known to them. The falsity of the said defence is also reflected from the scrutiny of their bank account statements including that of M/s Ashoka Industries Ex.PW-27/B-3.

137.2 In case, he indeed was running a genuine business through firm M/s Ashoka Industries, the said business should be reflected in the account statement. The account statement starting from the opening of the account in September 1994 till its closure on 09.02.1996 reflects a solitary deposit of Rs.1000/- at the time of opening and remaining all withdrawals to be on account of dishonour of cheques or non-maintenance of minimum balance. The said statement as well as the letters issued

by the Bank Ex.PW27/B-5 and Ex.PW27/A-2 further falsifies the defence of the accused that they had given instructions to the bank for stoppage of payment against the cheque. The reasons for dishonour of the cheques including the cheque in question of Rs.3.60 lacs was on account of deficient funds and not due to the stoppage of payment instructions.

138. His other limb of the defense that cheque was purchased without his consent by OBC is a matter of fact. No such consent of the drawer is required to be taken by Bank before purchasing the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 instrument. The criminality lies in the fact that the said bill of exchange came to be issued without being backed by any genuine business transaction.

138.1 The said overwhelming documentary evidence and the versions given by PW-27, PW-30 and Investigating Officer PW-49 goes on to prove the fact that A-7 too was the part of criminal conspiracy hatched by the accused persons including the partners of M/s Red Cat Agencies in whose favour, the cheques were issued which were subsequently purchased by OBC, NFC, New Delhi by claiming it to be against genuine business transactions. The said act of deception and dishonest intention led to wrongful loss to the bank and corresponding wrongful gain to the accused persons.

The Role of A-4 Harsimran Singh, Proprietor of M/s Gold Exports , M/s Sun Exports M/s Pimco Overseas & Its Connection with Primary Account Holder M/s Red Cat Agencies

139. The next accused facing trial, who is connected to the purchase of cheques in favour M/s Red Cat Agencies is A-4 Harsimran Dhir. He is alleged to have issued cheques in the name of his fake firms M/s Gold Exports, Amritsar, and M/s Sun Exports. He is also proprietor of the beneficiary account of firm M/s Pimco Overseas, CA No.2783 which was opened with OBC, NFC, New Delhi and utilised for purchase of fake cheques. The said part CBI V. S.K. Pathrella & Ors. CC No. 260/2019 of the allegations concerning M/s Pimco Overseas is discussed in the later part of the judgment.

140. The first aspect concerning the liability of A-4 is the factum of account being opened by him in the name of fake firm M/s Gold Exports, with Central Bank of India, Majith Mandi, Amritsar and thereafter mis-utilization of the cheques.

141. In this regard, the prosecution has placed reliance upon the documents seized vide seizure memo Ex.PW-49/4 (D-103). The account opening form alongwith the statement of account as well as the cheque book issuance register, were seized vide said seizure memo. However, only the specimen signature card filled at the time of opening of account on 31.1.1995 with Central Bank of India , Majith Mandi , Amritsar has been proved on record as Ex.PW-43/1 (D-104). The prosecution witness PW-43 Virender Singh who is the childhood friend of accused being the resident of same locality was confronted with his photographs on three bank accounts allegedly connected to A-4 opened with Punjab & Sind Bank, Lajpat Nagar, Amritsar, Central Bank of India, Guru Bazar, Amritsar and lastly with Central Bank of India, Majith Mandi, Amritsar. He identified the photograph on the account opening/ specimen card Ex.PW43/1 as that of A-4 . The said account was opened by him as proprietor of M/s Gold Exports, Amritsar with Central bank of India , Amritsar.

141.1 PW-43 further went on to claim that the accused used to

reside with his maternal uncle in Delhi and used to occasionally visit his parents at Amritsar. He further went on to claim that he had never seen any firm in the name of M/s Sun Exports or M/s Gold Exports running in the neighborhood for which the accounts were got opened by A-4 with Central Bank of India and Punjab & Sind Bank.

141.2 As far as his identification and proving of the account opening/signature card Ex.PW43/1 is concerned, no question mark was raised in the cross-examination on behalf of A-4.

141.3 The cross-examination confines only to the aspect of running the business in the name of M/s Sun Exports or M/s Gold Exports. PW-43 claimed that his version with respect to the non- running of the said firms was on the ground that he was residing in the neighbourhood and therefore, it is natural for a person to have a little bit of knowledge about the profession of his neighbours. He denied the suggestion that he was not aware about the business of the accused or his statement being mere hearsay or a rumour.

141.4 There is no reason to discard or disbelieve the version of PW-43 on the aspect of running of the firms by A-4. His claim when seen in the light of the fact that basis of his knowledge was on account of he being the childhood friend and residing in the same CBI V. S.K. Pathrella & Ors. CC No. 260/2019 locality. It is not unusual for a person residing in a small city to have knowledge about the profession of their neighbours.

141.5 The defence of A-4 that version of PW-43 is false, being given at the instance of CBI or being motivated, is a bald claim only. No reason is cited in the entire cross-examination or in the statement of the accused as to the reasons for his being a motivated witness or having acted maliciously under the directions of CBI. In a surprising turn of events, A-4 in the statement under Section 313 Cr.P.C took a U-turn, and the entire version of PW-43 is admitted as a matter of record.

142. The next aspect to be considered is the issuance of cheques bearing No.357729 dated 15.04.1995 for a sum of Rs.3,68,641/- (D-504) Ex. PW21/G119, No.35727 dated 08.04.1995 of Rs.3,85,250/-(D-505) Ex. PW21/G120, No.357728 dated 10.04.1995 of Rs.3,76,186/- (D-506) Ex. PW21/G121, No. 035740 dated 20.09.1995 of Rs.5,65,989/- Ex.PW21/G-193 (D578), No.035741 dated 20.09.1995 of Rs.5,53,857/- Ex.PW-21/G-206 (D-

592), by A-4 Harsimran Dhingra, proprietor M/s Gold Exports in favour of M/s Red Cat Agency . The cheque no. 035735 dated 21.08.1995 of Rs.1,65,754/-issued was got deposited vide voucher dated 21.08.1995 of OBC, NFC, New Delhi Ex.PW21/G-151 (D-

536) in the account of Red Cat Agency.

142.1 The issuance of aforesaid cheques is not disputed by A-4.

No question mark was raised on his behalf in the entire cross- examination of concerned witness PW-21 Jagdish Kumar Saxena.

142.2 The aforesaid said cheques came to be purchased after being presented with OBC, NFC, New Delhi on behalf of M/s Red Cat Agencies by claiming to be issued against genuine business transactions vide cheque purchase register Ex.PW20/A-9 (D-11) vide DD/Entries No.84,85,86 and 762, 1059 and 1060 respectively. The said fact of purchase of the cheques in the account of Red Cat Agency too is not disputed by A-4.

142.3 The next step is dishonour of the said cheques which is also proved by admitted record including the above referred bill purchase register Ex.PW-20/A-9 (D-11). The cheques bearing No. 035727, 035728 and 035729 came to be returned unrealized as per the bill purchase register on 15.05.1995 vide entry DD-86, 85 and 84 respectively. The cheque bearing No. 035735 Ex.PW20/A-9 (D-

11) was returned unrealized vide entry DD No.762 dated 25.09.1995 (Ex.PW20/A-9).

142.4 As far as the remaining two cheques purchased vide entry no. DD No. 1059 and 1060 are concerned, as per the said register, both the instruments never came to be realized through date of return is missing. The dishonour of the said two cheques bearing CBI V. S.K. Pathrella & Ors. CC No. 260/2019 No. 035740 and 035741 purchased vide DD No. 1059 and 1060 stands proved by cheque return memos Ex.PW-21/G-228(D-618) & PW-21/G-229 dated 07.10.1995(D619). The reasons for dishonour of the same is "Refer to Drawer". Further, the above-referred three cheques 035727, 035728 and 035729 are concerned, the cheque return memo shows the dishonour being on account of "Funds Insufficient" vide memo Ex.PW-21/G-231(D621). All the said bank documents are neither challenged nor questioned by A-4 which goes on to prove the factum of dishonour of the said cheques issued by A-4 on behalf of his firm M/s Gold Exports in favour of M/s Red Cat Agencies.

143. However, the crux of the issue lies as to whether the said cheques were issued against a genuine business or not and if the answer lies in negative, then from the very said fact, the dishonest intention to cheat the OBC in conspiracy with partners of Red Cat Agency right since beginning can be imputed upon A-4.

144. The first limb of the incriminating evidence against A- 4 in this regard is version of PW-43 Virender Singh, his neighbour at Amritsar, who denied the fact that any such firm M/s Sun Exports or M/s Gold Exports was running his neighbourhood at Amritsar. He further went on to claim that A-4 used to reside with his maternal uncle in Delhi and only used to occasionally visit his parents at Amritsar. It has already been observed above that the said CBI V. S.K. Pathrella & Ors. CC No. 260/2019 incriminating evidence has been admitted by A-4 in his statement under Section 313 Cr.P.C to be the matter of record. As far as the claim of PW43 that A-4 used to reside with his uncle in Delhi and occasionally used to visit his parents at Amritsar is concerned, not a single question

was put to the witness in the cross-examination to dispute it. His version of the said aspect too has to be read against A-4. No explanation is furnished by the accused as to why he got the firms registered at Amritsar and got the account opened in Amritsar only, even though he was residing in Delhi and visiting occasionally over there.

144.1 The said version of PW-43 is also corroborated by another independent bank witness PW-6 Jagjit Singh Dang. He was posted as Manager in December 1994 to January 1996 in Punjab & Sind Bank, Lajpat Nagar, Jalandhar where a separate current account was opened by A-4 in the name of M/s Sun Exports during the same period. He further went on to claim that he knew A-4, being the nephew of his younger brother's brother-in-law, namely Joginder Singh Logani. The said Joginder Singh Logani is one of the partners of M/s Red Cat Agencies with whom he was stated to be residing at that point of time in Delhi as has been deposed by PW-43. Again no explanation is furnished as to the reasons for opening of the account in the name of the firm in Jalandhar, even though accused was residing and working with his relative Joginder Singh Logani in Delhi. Even the Investigating Officer PW49 was never questioned CBI V. S.K. Pathrella & Ors. CC No. 260/2019 as to the existence and running of the said firms at Amritsar/Jalandhar. Pertinently, no document has been produced by A-4 during the entire trial to show the running of the firms at Amritsar or Jalandhar despite the fact within his special knowledge and control.

144.2 The said circumstantial evidence coupled with the versions of PW-43, PW-6 & PW49 goes on to prove the fact that the fictitious firms were opened by A-4 in connivance with his relative/ partner of M/s Red Cat Agencies and the sole object of the same was to get the cheque books issued from the bank situated at far off places from Delhi. Thereafter the cheques were issued in favour of M/s Red Cat Agencies. The said cheques were issued without being backed by any genuine business transactions and the same came to be presented for purchase by the partners of M/s Red Cat Agencies with OBC, NFC, New Delhi which included the above- referred five cheques of A-4. All the said cheques got dishonored on accounts of insufficient funds.

145. Another cheque issued by A-4 in favour of M/s Red Cat Agencies is from the bank account of 'M/s Sun Exports, Jalandhar'. The identity of the said account and it being in the name of A-4 is proved by witness PW-6 Jagjit Singh Dang, the then Manager ,Punjab and Sindh Bank ,Lajpat Nagar , Jalandhar . He proved the opening of the said account by A-4 in the name of M/s CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Sun Exports vide account opening form Ex.PW-6/A-1 (D-93). The address provided by the A-4 with the bank was B-242, Lower Ground, Chitranjan Park, New Delhi and local address being EO-80 Saidan Gate, Jalandhar. The said account came to be opened on 02.02.1995. The said account was introduced by PW-6 only being the distant relative of A-4.

145.1 Out of the said account only, the cheque bearing No. 714208 dated 19.09.1995 of Rs.1,22,836 Ex.PW-6/O (D-586) was issued by A-4 in favour of Red Cat Agencies. The purchase of the said cheque is also stamped on its backside by OBC ,NFC, New Delhi. The cheque purchase register is Ex.PW-20/A-9 (D-11) too proves the fact of purchase of said cheque vide DD/Entry No.1061 on 19.09.1995. The dishonour of the said cheque is proved by cheque returning memo Ex.PW-6/N-1 with the reasons for dishonour being "Insufficient Funds" (D616).

145.2 The ledger account Ex.PW6/K (D98) of Punjab And Sindh Bank , Jalandhar throws light over the fact that the said cheque of Rs.14208 Ex.PW6/O was never issued against any genuine business transaction. It reflects that the only entry of credit during the entire period of operation is of Rs.1500/- at the time of opening of the account. Thereafter, the entries concern debit or cheque return charges only.

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145.3 The communication exchanged by Punjab & Sind Bank,
with OBC, NFC, New Delhi as well as A-4 vide Ex.

PW6/S,PW7/G-9, PW6/R,PW6/Q,PW7/G5,PW7/G1,PW6/P,PW6/U & PW6/T(all part of D-101) right after the opening of the said account till its forced closure on 19.12.1995 also prove the dishonest intention since the very opening the account as well as thereafter repeatedly mis-utilising cheques in question. All the said correspondence is proved by PW-6 Jagjit Singh Dang and PW-7 Avtar Singh Narang. Their version too has gone unrebutted and unchallenged qua the contents of the above-referred documents. The said communication also proves the fact of the said cheques were misused in conspiracy with the partners of Red Cat Agencies and they repeatedly got dishonoured due to want of sufficient funds.

145.4 A separate letter was also written by the Chief Manager, Punjab & Sind Bank, Jalandhar on 18.10.1995 Ex.PW-6/S (Part of D-101) to A-4 for ensuring keeping of sufficient balance in his current account. There were 12 instances of cheque dishonour in the period of five months which were reproduced in the letter and he was asked to ensure sufficient balance.

145.5 Another letter was written to Branch Manager, OBC, NFC, New Delhi on 19.10.1995 by Punjab & Sind Bank, Ex.PW- 7/G-9 (Part of D-101) informing about misuse of cheques and repeated dishonour of the same from the account of M/s Sun CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Exports of A-4. The contents of the said also establish the connect between various firms of the accused involved in the present case . It also establishes the criminal conspiracy hatched by them and the object was to cheat the banks where the fictitious current accounts were opened.

145.6 The letter issued at the local address of A-4 came to be undelivered for the reasons "no such person" as is reflected from Ex.PW-7/G-6 (Part of D-101) vide report dated 21.10.1995. Subsequently, again a letter was addressed to Manager, OBC, NFC, New Delhi vide Ex.PW6/R dated 03.11.1995 intimating about the drawee i.e A-4 being not available at the given address. Lastly, the letter Ex.PW-6/T (Part of D-101) dated 19.12.1995 came to be addressed by Chief Manager, Punjab & Sind Bank, Lajpat Nagar, Jalandhar to A-4 of M/s Sun Exports addressed at his Delhi address by referring to earlier letters dated 18.10.1995 and 04.11.1995. He was asked to be careful in the drawing of the cheques and ensuring sufficient balance. As no compliance was received and there being only Rs.300 in his account on 19.12.1995, his account was forced to be closed by the bank. He was further asked to return the unused/remaining cheques, or else he will be held responsible for the fraud with respect to the same.

The issuance of the said letters or their receipt is neither challenged nor rebutted in the cross-examination of PW-6 and PW-7 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 by A-4 and accordingly has to be read against him. Rather the accused in his statement under Section 313 Cr.P.C claimed that the said bank documents, including the letters to be matter of record. His sole defence qua the issuance of cheques in favour of JS Logani (Partner of M/s Red Cat Agencies), being post-dated or goods not being supplied by A-3 to A-4 has remained unproven. No such defence was ever put to the IO/PW49 nor any documents concerning the said business dealings have been produced on record. Accordingly, the same is liable to be rejected

146. All the above-said facts goes on to prove that the cheques in question were never issued for any genuine business transactions and they were issued in pursuance of the criminal conspiracy hatched by partners of Red Cat Agencies and the object of the same was to cheat the OBC, New Friends Colony, New Delhi .

The Act Of Cheating through Current Account of M/s Pimco Overseas and Role of A-4 and others.

147. The role of A-4 is also alleged specifically in context of one of the beneficiary account of M/s Pimco Overseas . It is the case of the prosecution that the said account was opened on 30.09.1995 by A-4 vide CA No. 2783 with OBC, New Friends Colony, New Delhi and it was in reference to the larger conspiracy hatched by the partners of M/s Red Cat Agencies. In the said CBI V. S.K. Pathrella & Ors. CC No. 260/2019 account total of three cheques and two bills were purchased during the alleged period of 1994-1995, which all got dishonoured resulting in total loss to the bank to the tune of Rs.25,92,502/- .

148. The first aspect to be considered is the identification and opening of the said beneficiary current account of M/s Pimco Overseas. PW-1 K.D Grover, who was posted as Manager with OBC, NFC, New Delhi at the relevant time, proved the documents with respect to the opening of the said account. The account opening form in the name of M/s Pimco Overseas is Ex.PW-1/A (D-178) and the person authorised to operate the same is Harsimran Singh i.e A-4. The said account opening form itself reflects that it being introduced by A-2 Ghanshyam Kakkar (since P.O), partner of M/s Red Cat Agencies. As far as the opening of the said account is concerned by A-4, there is no question mark raised on his behalf. Rather, a positive suggestion has been given to PW1 as under:

"It is correct that the current account of M/s. Pimco Overseas bearing account no. 2783 was opened after following all the rules, regulations and procedures for opening a bank account."

148.1 The accused, however, raised an objection concerning the documents exhibited by the said witness to be inadmissible on the ground that the same are not authenticated under the Banking Regulation Act 1949. No argument has been advanced on the said aspect and it is unexplained as to how said authentication was to be CBI V. S.K. Pathrella & Ors. CC No. 260/2019 done. There is no question of the authentication of the said original account opening form Ex.PW1/A of M/s Pimco Overseas. The question of authentication under Banker's Book Evidence Act only concerns the copies of the banking ledger documents or account books. As far as the statement of account of M/s

Pimco Overseas is concerned, it is proved by PW-21 Jagdish Kumar Saxena as Ex.PW21/C-1 (D-180). The copy of the said statement of account is certified in terms of the requirements under Section 2A of Banker's Book Evidence Act.

148.2 PW21 also proved the sole proprietorship letter furnished by A-4 at the time of opening of said bank account vide Ex.PW- 21/C-8 (D-211) claiming to be the sole proprietor of M/s Pimco Overseas. He had also entered into agreement with Bank qua the bill purchase or bill discounting and advances against bills issued in course of business vide Ex.PW1/V (D-212).

148.3 The OBC, NFC, New Delhi agreed to provide advances against bills of exchange, inland or foreign bills etc. to the limit of Rs.15 lacs against stipulation of interest on overdue charges at the rate 8% per annum over and above the rate of RBI. The guarantee for the said facility given to M/s Pimco Overseas came to be furnished by A-2 G.D Kakkar (since P.O), partner of M/s Red Cat Agencies vide Agreement to Guarantee Ex.PW-1/W (D-213).

Another Guarantee Agreement was executed by one Saibal

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Banerjee vide Ex.PW-1/X who also furnished the lease deed of his immovable property Ex.PW-21/C-10, as a kind of security document. The execution of none of the above-referred documents executed at the time of opening of the current account of M/s Pimco Overseas & bank having agreed to provide him with the facilities of bill purchase or advances against bills of exchange are disputed. 148.4 In the said current account of A-4, three cheques and two bills came to be purchased by OBC, NFC. Two of the said cheques were issued from the account of M/s Sun Exports, Amritsar and bills were also drawn upon the Firms of A-4 i.e M/s Sun Exports, Amritsar and M/s Gold Exports, Amritsar.

149. The next aspect in this regard to be considered is identification of the account of M/s Sun Exports, Amritsar, with Central Bank of India, Guru Bazar, Amritsar whose two cheques/bills of exchange and 01 bill bearing No. 193 and 199 were purchased in the account of M/s Pimco Overseas by OBC, NFC, New Delhi. The documents in this regard are proved by the officials from Central Bank of India i.e PW-14 Anil Mehra and PW-19 S.S. Kataria, the then Assistant Banker, Central Bank of India. PW19 identified his signature on the specimen card of current account no.1398 M/s Sun Exports, Proprietor H.S Dhingra vide Ex.PW14/B (D-112). The current opening form was submitted by A-4 being the proprietor of M/s Sun Exports vide Ex.PW-14/A (D-

115). It was introduced by another account holder M/s Kamboj CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Duptta House. The account statement of the said account M/s Sun Exports for the period 30.01.1994 to 21.03.1996 is also proved by PW-19 as Ex.PW-19/B (D-144). He further deposed that the account was opened with the credit of Rs.500/- and at the time of when the account was closed

on 21.03.1996, there was debit of Rs.10 as incidental charges and no balance was in the account. Further, there is no question mark over the admissibility of the said document being certified by the concerned Assistant Branch Manager Sh. S.P Sagwan, whose signature has been identified by PW-19. The statement of account is certified under Section 2A Banker's Book Evidence Act.

149.1 The reading of said account statement of M/s Sun Exports, Central Bank of India, Guru Bazar, Amritsar reflects that after the initial credit of Rs.500/- at the time of opening of the account in January 1995, there was not a single credit entry. All the remaining debit entries concerns the charges levelled for return or other incidental charges. Thus, the said unrebutted and unchallenged documents proved by PW-14 and PW-19 goes on to establish the opening of the said account of M/s Sun Exports by A-4 with Central Bank of India, Guru Bazar, Amritsar. It also establishes the fact that the sole object behind opening of the said account in Amritsar , was get hold of the cheque book , which was later on mis-utilised by issuing cheques in favour of Pimco Overseas and CBI V. S.K. Pathrella & Ors. CC No. 260/2019 other dubious firms, which came to be purchased by OBC, NFC, New Delhi.

149.2 The next aspect in this regard is the purchase of two cheques No. 49013 dated 01.06.1995 for a sum of Rs. 3,68,188/- and No. 49014 dated 01.06.1995 for a sum of Rs.3,73,062/-. The first set of documents in this regard is the cheque/draft discount/purchase register for the period w.e.f 06.01.1995 to 10.01.1996 Ex.PW20/A-10 (D13) vide DD entry no. 277 and 278 . The said two cheques were purchased by OBC, NFC, New Delhi, against the account of M/s Pimco Overseas, CA NO.2785 vide DD Purchase No. 277 and 278 on 01.06.1995. The amount of said cheque came to be credited in the account of M/s Pimco Overseas The said register further reflects the return of said cheque when sent for realization to Central Bank of India, Guru Bazar, Amritsar. Both came to be returned on 19th October 1995 after a lapse of 141 days from the purchase.

The debit voucher issued on account of dishonour of the said cheque as well as interest for overdue on account of dishonour for the period from June till 19.10.1995 was passed vide Ex.PW-1/R dated 19.10.1995 (D-200) in the account of Pimco Overseas. It includes the interest component on account of non-payment of said cheques purchased to be Rs.54406/-. The credit vouchers are Ex.PW1/S and PW1/T both dated 19.10.1995. (D-201 and D-202 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 respectively). Thus, the said set of documents which includes the Bills Purchase Register as well above-referred credit & debit vouchers proves the factum of dishonour of above-referred two purchase cheques & that too after period of 141 days from the date of purchase.

150. The next issue to be considered in view of said factual situation is whether the said cheques were issued by M/s Sun Exports in favour of M/s Pimco Overseas against genuine business transactions or not. In case the answer is positive, the mere dishonour of the cheque would not amount to the offence of cheating. The light is thrown over the said issue by PW-43 Virender Singh, neighbour of A-4 at Amritsar. He firstly identified the photograph of the accused on the account opening forms of M/S Gold Exports and M/S Sun Exports at Central Bank of India, Guru Bazar, and Central Bank of India, Majith Mandi, Amritsar as already discussed. He went ahead to claim that A-4 used to reside with his maternal uncle in Delhi and only used to visit his parents occasionally at Amritsar. He further went on to claim that there was no firm in the name of M/s Sun Exports or M/s

Gold Exports in his neighbour-hood. The said aspect is already discussed while dealing with the account of M/s Red Cat Agencies account in whose favour cheques were issued by A-4 from his account M/s Gold Exports maintained with Central Bank of India, Majith Mandi, Amritsar.

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150.1 Another connected document that throws light on the
issue and the cheques being never issued against any genuine

business transactions is the account statement of M/s Sun Exports. If indeed, the bill of exchange /cheques were issued against genuine business trading between the said two firms, it should reflect in the account statement of M/s Sun Exports.

150.2 The account statement Ex.PW-19/B (D144) is for the entire period from 30.01.1995 till its closure on 21.03.1996. The scrutiny of the same reflects that there is a solitary credit of Rs.500/- at the time of opening of the account and all remaining entries in the year 1995 till its closure on 21.03.1996 are debit entries on account of charges being levelled by the bank towards return of cheques or bills etc. Thus, the said account statement goes on to prove the fact of account being opened only for the fraudulent purpose by A-4 at far off place in Amritsar, despite he being residing and working in Delhi . It also goes on to prove the fact that said two accounts were opened in connivance with the partners of M/s Red Cat Agencies who were already mis-utilizing the said discounting facility from OBC. They further, in order to cheat the bank, got created the said two fake entities through A-4 who was the close relative of one of the partners of M/s Red Cat Agencies and was residing with him as already discussed.

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151. Apart from the said two cheques, one bill/invoice No.92 dated 30.05.1995 (D-186) of M/s Pimco Overseas drawn on M/s Gold Exports, Amritsar Ex.PW1/H & Ex.PW-1/F (D-184 & D-186) of Rs. 7,68,200/- came to be purchased vide entry no. BP No. 15 dated 01.06.1995. The invoice Ex. PW1/H and BOE Ex. PW1/F both record the factum of purchase by OBC, NFC , New Delhi and amount being credited to Pimco Overseas. The purchase of above said bill drawn on Gold Export and its purchase is also proved by Bill Purchase Register Ex.PW20/A-4 vide entry no. 15/95. The second invoice No. 193 dated 13.05.1995 of Rs.7,37,080/- drawn on M/s Sun Exports came to be purchased on 01.06.1995 as reflected vide document Ex.PW21/A-4(D8) vide entry BP 14/95. The said Bill Purchase Register further proves the fact that the BP No. 14/95 was sent for collection to Central Bank of India, Guru Bazar, Amritsar where the account of M/s Sun Exports was maintained by A-4 only and second bill 15/95 was sent to Central bank of India , Majith Mandi, Amritsar where account M/s Gold Export was maintained by A-4. Both the bills never came to be realized.

152. The prosecution in this regard has also placed reliance upon the letter Ex. PW21/C3 (D188) and Ex. PW21/C2 (D187) of concerned Branch Manager at Central Bank of India, Majith Mandi , Amritsar, intimating the fact of return of said bill purchased being unpaid due to the reason "the parties not available at their CBI V. S.K. Pathrella & Ors. CC No. 260/2019 end". The intimation was

sent to Chief Manager, OBC, New Friends Colony , New Delhi on 25.11.1995 i.e after about 4 months of the purchase. The second bill No. 193 BP No.14/95 of Rs.737080/- came to be returned as reflected vide letter of Manager, Central Bank of India, Guru Bazar, Amritsar, dated 11.11.1995 Ex.PW21/C-4 (D-189). The said letter was addressed to Chief Manager, Oriental Bank of Commerce, NFC. The noting on the said letter itself records the debit being ordered by OBC in the account of M/s Pimco Overseas on 20.11.1995 Rs,7,37,080/- and interest being Rs.72941/-. None of the said documents are challenged or rebutted on behalf of A-4 either in the cross- examination of PW21 or PW-1. Thus, the fact of drawing of bills, purchase and dishonour stands proved.

152.1 The circular nature of the transactions effected from the account of M/s Pimco Overseas by A-4 also point towards the dishonest intention of the parties. It is reflected from the cheques issued during the same period when B.P No. 14 and 15 dated 01.06.1995 and 02.06.1995 were purchased and credited in the account of M/s Pimco Overseas. On the same day i.e 01.06.1995, four account payee cheques i.e. Ex.PW-45/1(D-207), Ex.PW- 45/2(/d-208) Ex.PW45/3(D-209) and Ex.PW-45/4 (D-210) were issued from account of M/s Pimco Overseas by A-4 in the favour of M/s Red Cat Agencies (vide CC No. 1724).

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152.2 Apart from that, immediately after the purchase of B.P

No. 14 & 15 as referred above, a self drawn cheque Ex.PW-1/J (D-

191)dated 03.06.1995 for Rs.7,35,000/- came to be issued and the amount was withdrawn in cash. Interestingly, the recipient of the said amount was A-5 Rajesh Batra who had no official connection with A-4 except the fact that they all were acting in pursuance of the criminal conspiracy hatched by the partners of M/s Red Cat Agencies.

152.3 On 02.06.1995, again a self cheque for withdrawing Rs.40,000/- vide Ex.PW1/K(D-192) was drawn by A-4 and the recipient of the said amount was again surprisingly A-5 Rajesh Batra. The signatures on all the said instruments, including the above-referred cheques vide which the amount was withdrawn from the account of M/s Pimco Overseas is also corroborated through CFSL report Ex. PW57/3(D-654).

152.4 All the said circular nature of the transactions effected between M/s Pimco Overseas and M/s Red Cat Agencies during the same period when the above-referred fraudulent bills were purchased vide B.P No.14 & 15 or the purchased cheques as discussed- above. There was transfer of money in the account of M/s Red Cat Agencies at whose instance, the account of M/s Pimco Overseas was opened by A-4 apart from the huge cash withdrwals. The cash amount was withdrawn and the said transactions itself CBI V. S.K. Pathrella & Ors. CC No. 260/2019 reflect the dishonest intention right since the beginning when the above referred cheques and two bills came to be drawn by A-4 in favour of M/s Pimco Overseas. Thereafter, deception was played upon OBC, NFC, New Delhi by claiming it to be drawn/issued against genuine business transactions as was the mandate under the agreement Ex.PW1/V (D-222). On account of the said dishonest mis-representation, the bank came

to purchase the said five instruments which all ultimately got dishonoured.

152.5 The defence of A-4 is that the cheques issued were post dated and the goods were not supplied to him. He also in the cross- examination of PW43 disputed the claim of the witness that he was not running his business in the name of M/s Sun Exports or M/s Gold Exports, Amritsar. The onus thus was upon him to prove the genuineness of his business enterprises i.e M/s Pimco Overseas, M/s Sun Exports or M/s Gold Exports Amritsar by producing the relevant business records be it the balance sheets, sales record, records concerning the places where these establishments were running, income-tax or sales-tax returns etc as well as his business with M/s Red Cat Agencies. However, no such record was either produced during the investigation as is apparent from the cross- examination of PW-49/IO or during the trial of the present case. Accordingly, an adverse inference has to be drawn against A-4 and his defence is accordingly liable to be rejected being a bald claim only.

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153. All the above-said facts go on to prove that the cheques and bills of exchange in question were never issued for any genuine business transactions. They were issued by A-4 in order to cheat the bank. The said transactions came to be effected by A-4 in pursuance of the criminal conspiracy hatched amongst the accused wherein the partners of M/s Red Cat Agencies were leading them.

Role of A-5 Rajesh Batra vis-a-vis Current Account of M/s Batra Traders CA No. 2695

154. It is the case of the prosecution that the Current Account No. 2695 was opened by A-5 Rajesh Batra on 01.02.1995 by claiming himself to be proprietor of M/s Batra Traders. It is further alleged that the said accused Rajesh Batra was the employee of M/s Red Cat Agencies and used to visit frequently OBC, NFC, New Delhi, in connection with their banking transactions. It is further alleged that he too was roped in the alleged conspiracy hatched by the partners of M/s Red Cat Agencies in order to cheat OBC by mis-utilising their bill discounting facility.

154.1 It is further alleged that in pursuance of the said conspiracy, a separate current account in the name of M/s Batra Traders was got opened by A-5. In the said backdrop, the first and foremost issue is the identification of the said account and its opening.

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155. The prosecution in this regard has placed reliance upon the documents seized vide seizure memo Ex.PW21/D dated 14.08.1997 (D-221). The account opening form alongwith the specimen card are proved vide Ex.PW21/D-1(D-222) and Ex.PW21/D2 (D-223) respectively by PW21. He further identified the signatures of A-1 on the account opening form being the concerned Branch Manager who allowed the opening of the said account. The introducer to the said account, as per the form, is one R.P Bhargava though in the Column. Name of the Introducer, the name of J.S Logani too finds mention which appears to have been subsequently deleted/cut.

155.1 The said introducer has been examined as PW-44 who identified his signatures on account opening form Ex.PW21/D-1. He further claimed that he had introduced the said account at the request of the then Chief Manager namely S.K. Pathrella. As far as the said introduction aspect is concerned, there is no question mark raised on behalf of A-5 in the cross-examination. Similarly, the said fact is not disputed in the cross-examination of concerned bank official PW-21 J.K. Saxena who also proved the said account opening form as well as specimen card. Thus, as far as the aspect of current account being opened by A-5 in the name of M/s Batra Traders with OBC, NFC, New Delhi is concerned, the same is proved by the un rebutted and unchallenged documents as discussed above as well as the testimony of two witnesses. Apart from that CBI V. S.K. Pathrella & Ors. CC No. 260/2019 CFSL report Ex.PW-57/3(D-654) also corroborates the fact of opening of the said account by A-5.

155.2 All the accused have questioned the admissibility of CFSL report on account of non-examination of author. The said objection is liable to be rejected in the light of fact that presence of author Dr. S.C Mittal could not be got secured as he expired during course of trial. PW-5 Ms Alka Gupta, his colleague, entered the witness box on his behalf and identified his signature on report Ex.PW57/1, Ex.PW57/2 and Ex.PW57/3. She also proved the contents of the same by deposing about entire procedure.

156. In the said backdrop, the next issue to be considered is the purchase of seven cheques and two bills during the alleged period of criminal conspiracy in the said current account. A-5 while opening the said current account was also provided with the facility of bill purchase/bill discounted advances vide agreement Ex.PW21/D-47 (D-271) executed on 02.03.1995. The agreement of guarantee was executed by A-2 G.D Kakkar (since P.O), partner of M/s Red Cat Agencies vide document Ex.PW-21/D-48(D-272). The security documents i.e perpetual lease deed in favour of one Manjari Gupta Ex.PW21/D-50 (D-274) came to be deposited alongwith some other some property documents i.e Ex.PW21/D-52 (D-276) and Ex.PW21/D-53 (D-277). Both the said agreements regarding bill purchase as well as the guarantee agreement were CBI V. S.K. Pathrella & Ors. CC No. 260/2019 executed on behalf of OBC, NFC, New Delhi, by PW-55 Devender Pal Dhingra, the then Manager, Loans Department. He also proved the execution of said documents. The said un rebutted and unchallenged documents prove the factum of extension of facility to A-5 proprietor/account holder of M/s Batra Traders for availing the credit facilities against bills, cheques etc. 156.1 In pursuance to the said facility, seven cheques and two bills were discounted in the said account. All the said instruments came to be dishonoured during the relevant period.

156.2 The first Cheque No. 714002 for amount of Rs.3,86,196 /- dated 24.02.1995 was purchased on 24.02.1995 vide DD No. 969 as reflected in the DD/Cheque Purchase Register Ex.PW-20/A-8 (D-

11). The entries in the said register itself shows that the said cheque when sent for collection to the concerned branch never came to be realized. The ledger account statement of M/s Batra Traders proved by PW-21 J.K. Saxena vide Ex. PW21/D-3 (D-224) also records the said transaction. The purchase of the said cheque is reflected against voucher No. 280295 for an amount of Rs. 3,85,221/- being credited and remaining amount being charged as VPL charges by the bank.

156.3 The said cheque in question was issued from the account of A-4 in the name of M/s Sun Exports at Punjab & Sind Bank, CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Jalandhar. The dishonour of the said cheque is also corroborated by statement of account of M/s Sun Exports vide Ex.PW-6/K (D-

98). It also records that cheque bearing No. 714001 to 714050 being issued to the proprietor A-4 H.S Dhingra. Apart from the initial deposit of Rs.1500/-, there is no other credit entry, which goes on to prove the fact that the said account was opened with the intention of defrauding and mis-utilising the facility of purchase of cheque extended by OBC, NFC, New Delhi.

156.4 The cheque no. 20009 and cheque no 20024, both dated 21.08.1995 for an amount of Rs. 2,96,985 and 2,89,489/- were got issued from the account of M/s Gold Exports, Faridabad which was opened by J.S Logani (proceedings quashed against him by Hon'ble High Court vide order dated 04.09.2015). Both the said cheques were purchased on 21.08.1995 and the credit vouchers in this regard are Ex.PW21/D-26 (D-250) and Ex.PW21/D-27 (D-

251). The DD/ Cheque Purchase Register Ex.PW-20/A-9 (D-12) too records the entry qua the said purchase vide entry no. 765/95 and 766/95. Further the record against the said entries also reflect that the said cheques were sent to the concerned branches through OBC, NIT, Faridabad for collection, but never came to be realized.

156.5 The fourth cheque bearing No.49036 for an amount of Rs.3,18,764/- dated 21.08.1995 drawn by A-4 on behalf of M/s Sun Exports, Amritsar, in favour of M/s Batra Traders which was CBI V. S.K. Pathrella & Ors. CC No. 260/2019 purchased on 21.08.1995. The credit voucher is Ex.PW21/D-28 (D-252) . The DD/Cheque Purchase Register Ex.PW-20/A-9 (D-

12) records the entry qua purchase vide entry no.767/95. It further records the factum of the said cheque being sent to concerned branch at Amritsar and it being never realized. As regards the account of A-4 in the name of M/s Sun Exports Amritsar, with Central Bank of India, Amritsar, the nature and use of the said account is already discussed while discussing the role of A-4 qua current account of M/s Pimco Overseas.

156.6 The fifth cheque bearing No.154528 issued from the account of M/s Sun Glow Travels & Tours Operator, Alakhnanda is not discussed herein being connected to J.S Logani against whom proceedings already stands quashed vide order of Hon'ble High Court dated 04.09.2015.

156.7 The sixth and seventh cheques purchased bearing No. 049004 and 049003, both dated 06.04.1995 were issued from the account of M/s Sun Exports, Amritsar belonging to A-4 in favour of M/s Batra Traders. Both the said cheques were got purchased as reflected vide the cheques Ex.PW19/O-2 and Ex.PW19/O-3 (D-238 and D-239 respectively). The purchase of the said cheques is also recorded on the back of the said cheques under the signature of Senior Manager, OBC, NFC, New Delhi. The dishonour of the said cheques stands proved vide cheque return memo Ex.PW19/O-1 CBI V. S.K. Pathrella & Ors. CC No. 260/2019 (D-237) dated 18.04.1995 and received by OBC, NFC, New Delhi through intimation letter Ex.PW21/D15 (D-236) dated 18.04.1995.

157. Now, coming to the two invoices/bills, both numbered as 009 dated 01.02.1995, purportedly issued upon M/s Gold Exports, Amritsar by A-4 came to be purchased in the account of M/s Batra Traders vide B.P No. 57/95 and 58/95. The credit transfer voucher qua the said purchase is Ex.PW21/D-5 (D-226) and the commission voucher charged by the bank in this regard is Ex.PW21/D-6 (D-227). The transfer voucher in this regard is Ex.PW21/D-7 thereby transferring cumulative amount against both the said bills Rs.14,82,550/- in current account of A-5.

157.1 The dishonour of the said two bills when sent by the OBC for collection in the account of M/s Gold Exports, Amritsar at Central Bank of India, Majith Mandi, Amritsar is also reflected from the Bill Purchase Register Ex.PW-20/A-6 (D-7). The said bills never came to be realized and the only amount received by the bank is the commission charged at the time of purchase.

157.2 The dishonour of the said bills is further proved by statement of account of M/s Batra Traders Ex.PW21/D-3 (D-224) which records reversal entry vide voucher dated 16.02.1996 i.e after more than one year of the purchase of said two bills.

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158. In the said backdrop, the most crucial issue which requires consideration is as to whether the said two bills/invoices were issued against genuine business transactions or not. No such defence is pleaded on behalf of the accused either in the cross- examination of prosecution witnesses including Investigating Officer PW-49 as well as in his statement under Section 313 Cr.P.C. The defence pleaded by A-5 in response to Question No. 1084 is reproduced hereunder for the sake of convenience:

"Q-1084 Do you want to say anything else ?

Ans. I am innocent. I have deposited all the amount which was due towards me. Due to loss in business, I could not deposit/return the money to the bank in time but later on I deposited the amount with interest to the bank which they accepted. I had no intention to cheat the bank nor I had fabricated or prepared a false document with a view to cause loss to the bank and to gain for myself. I have clean record and has never come to the adverse notice of any law executing authority."

158.1 It is thus apparent that only defence pleaded by A-5 that he was not able to return the amount to the bank in time due to loss in business. However, no such defence was either put to the I.O/PW49 nor any document has been produced by the accused in defence showing the running of the business or the loss suffered by him during the relevant period of purchase of instruments in his account. The onus was upon the accused being the special fact within his knowledge to bring it on record either during investigation or during the trial. The obligation was upon him to firstly to show that the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 above-referred two invoices as well as the seven cheques purchased in his account were issued against genuine business transactions as warranted vide agreement with Bank. He was also under the obligation to show that only on account of supervening circumstances, the instruments could not be got honoured. No such evidence has come on record or was put to the Investigating Officer.

158.2 On the contrary, the statement of account of M/s Batra Traders as well as the utilization of the cheques issued by OBC, NFC, New Delhi reflects the dishonest intention to cheat the bank right since the inception. A-5 acted in conspiracy with other accused persons including the partners of M/s Red Cat Agencies as well as A-4, the proprietor of M/s Gold Exports and M/s Sun Exports respectively.

158.3 The cheques Ex.PW21/D-4(D225), Ex.PW21/D-8 (D-

229), Ex.PW21/D-9(D230), Ex.PW21/D-10(D231), Ex.PW21/D- 17(D241), Ex.PW21/D-19(D243), Ex.PW21/D-31(D255), Ex.PW21/D-32(D256), Ex.PW21/D-35(D259), Ex.PW21/D- 36(D260) and Ex.PW21/D-45(D269) are all self-drawn cheques for various amounts issued during the said period only by A-5. The scrutiny of these said cheques reflects a withdrawal of a hefty amount in cash .It also reflect to be in close conjunction with credit of the amounts qua purchase of fake instruments be it cheques or invoices by OBC, NFC, New Delhi.

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158.4 Another cheque Ex.PW-21/D30 (D254) dated 18.5.95 also

raises a finger of suspicion over the conduct of A5. He issued the same from the current account of M/s Batra Traders for an amount of Rs.4,95,000/- in favour of A-2 Ghanshyam Kakkar (since PO) who had introduced the said account of M/s Batra Traders. No purpose of said transfer is explained.

159. All the said circular transactions and diversion of money as well as the circumstances discussed herein further goes on to prove the factum of conspiracy hatched by accused persons amongst themselves and the intention being to cheat OBC, NFC, New Delhi, who had extended the said facility with the condition as stipulated in agreement Ex.PW-21/D-47 (D271) Clause No. '23'.

"We hereby declare that the bills and documents that will be presented to you shall be genuine and in order in all respect and the same and good"s covered thereby shall be free from ant charge ,lien or encumbrance whatsoever and that no other person will have any right over the same."

159.1 The said condition was there for all the five beneficiary accounts discussed including that of A-5 . The bank was under

obligation to discount the bills/bill of exchange presented by the beneficiary account holders provided the instruments were genuine. The said condition came to be blatantly violated by A-5 and all other holders of the beneficiary accounts in connivance with others who opened fictitious accounts with others banks. Accordingly the CBI V. S.K. Pathrella & Ors. CC No. 260/2019 fraud was played upon the bank causing wrongful loss and corresponding wrongful gain for themselves.

The Role of A-5 Rajesh Batra vis-a-vis Current Account No. 2845 of M/s Navyug Traders.

160. It is the case of the prosecution that the said current account was opened on 06.09.1995 allegedly by one Narender Kapoor as a proprietor. However, the investigation revealed that A-5 Rajesh Batra impersonated himself as Narender Kapoor in conspiracy with partners of M/s Red Cat Agencies. It is the further the case of the prosecution that object behind the opening of the Current Account was to mis-utilize the facility of discounting of bills provided by the bank. The two bills for an approximate amount of Rs.14 lacs were issued upon M/s Sun Exports, Jalandhar of A-4, which were purchased in the account of Navyug Traders by OBC, NFC, New Delhi.

161. The first aspect in this regard is the opening of the account of M/s Navyug Traders and the crucial aspect being the 'identity of the account holder'. The prosecution has placed reliance upon the account opening form of M/s Navyug Traders Ex.PW21/E-1 (D-279) & specimen signature card Ex.PW21/E-2 (D-280). The proprietor of the said account as per the said account opening form is Narender Kapoor, r/o House no.1253, Sector -17, Faridabad, Haryana. The photograph affixed on the said application CBI V. S.K. Pathrella & Ors. CC No. 260/2019 form of M/s Navyug Traders is apparently is not that of A-5, nor it is alleged by the prosecution. The allegations are that A-5 forged the signatures of Narender Kapoor, proprietor of M/s Navyug Traders while opening the said bank account in connivance with the Branch Manager, S.K. Pathrella (A-1).

161.1 As far as the opening of the said account is concerned, PW-21 J.K. Saxena, the then Manager, OBC, NFC, New Delhi, provided the relevant documents including the above-referred documents concerning M/s Navyug Traders to CBI vide seizure memo Ex. PW21/E (D278) and proved the same during trial . He identified the signatures of A-1 on the account opening form Ex.PW-21/E-1 and on the specimen signature card Ex.PW-21/E-2.

161.2 In the said backdrop, the issue to be seen is whether the said original Narender Kapoor appeared before the Branch Manager/A-1 at the time of opening of the said account or not and the specific role of A-1 in this regard. The account opening form itself reflects and defines the role of A-1. The account has been opened consequent to the introduction by account holder M/s Best(not legible) C.A No. 2546. The signature of introducer was verified by A-1 with pre-printed noting "Introducer's signature verified, I confirmed that Introducer called on the bank and has signed in my presence." Thus, it is apparent that the role of A-1 in allowing opening of bank account of M/s Navyug Traders was CBI V. S.K. Pathrella & Ors. CC No. 260/2019 based on the introduction provided by the earlier account holder CA No.2546. The purpose of the introduction and the duty of the Introducer is to vouch for the identity of the person seeking the opening of a fresh account as well as his credit-worthiness. In the said backdrop, the most crucial witness for proving the aspect of cheating by impersonation by A-5 was the Introducer i.e Account Holder of CA No. 2546. But no such witness has been produced by the prosecution for the reason best known to them.

161.3 Apart from the said account opening form, the said, proprietor of M/s Navyug Traders also executed the sole proprietorship letter Ex.PW21/E-4 (D-282), agreement for cash credit/overdraft Ex.PW21/E-5 (D-283) and agreement regarding bill purchase/bill discounted as Ex.PW21/E-6

(D-284). The agreements Ex.PW21/E-5 and Ex.PW21/E-6 executed between the account holder /borrower and the bank ,also carries the signatures of PW-55 Devender Pal Dhingra, the then Manager (Loans Department), OBC, NFC, New Delhi at point "A". He has remained silent regarding the said aspect of cheating by impersonation. Rather, if the prosecution's allegations of impersonation were indeed true, his role too should have been investigated, having vouched for the identity of the said Narender Kapoor while executing the above- referred agreements on behalf of the Bank.

161.4 The said Narender Kapoor was claimed to be employed as 'Peon' with M/s Red Cat Agencies in April 1994 and accordingly, it CBI V. S.K. Pathrella & Ors. CC No. 260/2019 is the case of the prosecution that his photographs were collected by the employer and later, misused. The said Narender Kapoor joined the investigation and his statement under Section 161 Cr.P.C was recorded. However, his presence could not be secured during trial being not available at the address provided by the prosecution. In these circumstances, no assumption can be drawn with respect to the allegations of forgery and cheating by impersonation while opening the bank account by A-5 Rajesh Batra in the name of M/s Navyug Traders.

162. The prosecution in this regard has also placed reliance upon the CFSL report Ex.PW57/1 (colly)(D637) dated 03.11.1999 and Ex.PW57/2 (colly) dated 31.01.2000 (D 653). No doubt, the handwriting expert has given a positive opinion with respect to the said forgery of signatures of said Narender Kapoor . As per the CFSL report it is connected to A-5, but the legal issue herein is whether the said sole piece of expert opinion can be the basis for holding A-5 guilty for the offence of forgery. The said aspect has to be seen in the light of the fact that the crucial substantive evidence, be it the version of real Narender Kapoor or the alleged introducer of the said account having not come on record.

162.1 It is well settled proposition of law that before acting upon such expert opinion, the Court has to ensure that the said evidence is corroborated by other evidence, be it direct evidence or CBI V. S.K. Pathrella & Ors. CC No. 260/2019 circumstantial one. The said issue is discussed by Hon'ble Supreme Court in Padum Kumar V. State of U.P, (2020) 3 SCC 35 .The Para- 15 and Para-16 is reproduced hereunder for the sake of convenience and clarity:

"15. Of course, it is not safe to base the conviction solely on the evidence of the handwriting expert. As held by the Supreme Court in Magan Bihari Lal v. State of Punjab that: (SCC p. 213, para 7) "7.... expert opinion must always be received with great caution it is unsafe to base a conviction solely on expert opinion without substantial corroboration. This rule has been universally acted upon and it has almost become a rule of law."

16. It is fairly well settled that before acting upon the opinion of the handwriting expert, prudence requires that the court must see that such evidence is corroborated by other evidence either direct or circumstantial evidence. In Murari Lal v. State of M.P., the Supreme Court held as under: (SCC pp. 708-09, paras 4 and 6) "4. True, it has occasionally been said on very high authority that it would be hazardous to base a conviction solely on the opinion of a handwriting expert. But, the hazard in

accepting the opinion of any expert, handwriting expert or any other kind of expert, is not because experts, in general, are unreliable witnesses the quality of credibility or incredibility being one which an expert shares with all other witnesses but because all human judgment is fallible and an expert may go wrong because of some defect of observation, some error of premises or honest mistake of conclusion. The more developed and the more perfect a science, the less the chance of an incorrect opinion and the converse if the science is less developed and imperfect. The science of identification of fingerprints has attained near perfection and the risk of an incorrect opinion is practically non-existent. On the other hand, the science of handwriting is not CBI V. S.K. Pathrella & Ors. CC No. 260/2019 nearly so perfect and the risk is, therefore, higher. But that is a far cry from doubting the opinion of a handwriting expert as an invariable rule and insisting upon substantial corroboration in every case, howsoever the opinion may be backed by the soundest of reasons. It is hardly fair to an expert to view his opinion with an initial suspicion and to treat him as an inferior sort of witness. His opinion has to be tested by the acceptability of the reasons given by him. An expert deposes and not decides. His duty "is to furnish the Judge with the necessary scientific criteria for testing the accuracy of his conclusion, so as to enable the Judge to form his own independent judgment by the application of these criteria to the facts proved in evidence.

5. * * * *

6. Expert testimony is made relevant by Section 45 of the Evidence Act and where the Court has to form an opinion upon a point as to identity of handwriting, the opinion of a person "specially skilled" "in questions as to identity of handwriting" is expressly made a relevant fact. So, corroboration may not invariably be insisted upon before acting on the opinion of an handwriting expert and there need be no initial suspicion. But, on the facts of a particular case, a court may require corroboration of a varying degree. There can be no hard-and-fast rule, but nothing will justify the rejection of the opinion of an expert supported by unchallenged reasons on the sole ground that it is not corroborated. The approach of a court while dealing with the opinion of a handwriting expert should be to proceed cautiously, probe the reasons for the opinion, consider all other relevant evidence and decide finally to accept or reject it."

163. In the said backdrop, the uncorroborated expert opinion report Ex. PW57/1 and Exp.PW57/2 concerning the forgery of signatures in the account opening of M/s Navyug Traders cannot be acted upon.

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163.1 Even the authenticity of the said report becomes doubtful

when seen in light of the fact that the sole independent witness in whose presence the specimen handwriting of the original Narender Kapoor was taken ,remained silent . The specimen handwriting of original Narender Kapoor is Ex.PW49/29 {(colly) (D-652) } being taken on 27.09.1999 by Investigating Officer PW-49 S.C Dandriyal. The said specimen handwriting is the sole

basis of CFSL report Ex.PW-57/1 (colly). However, the sole independent witness who could have vouched for truthfulness of the said proceedings and the Narender Kapoor having appeared and provided his specimen handwriting or his signatures was P.K.Malhan , Sr. Manager, OBC, Connaught Place, Delhi. Surprisingly, the said witness examined as PW-51, remained completely silent in this regard.

164. In the said backdrop, the charge of forgery cannot said to be proved against A-5 Rajesh Batra on the standard of 'beyond reasonable doubt'.

165. Though the identity of the account is in dock, however the second limb of the allegation regarding purchase of bills in the said account needs discussion. One cheque and two bills in the said Current Account of M/s Navyug Traders were purchased after being presented by account holder to OBC, NFC, New Delhi. As far as the cheque no. 140444 dated 13.10.1995 is concerned, the same has CBI V. S.K. Pathrella & Ors. CC No. 260/2019 no relevance qua the accused persons facing trial as purportedly it was issued by the wife of A-2 Ghanshyam Kakkar (since Proclaimed Offender).

165.1 The two bills /invoice no. 001 and 002, both dated 06.09.1995 were purchased in the said account by OBC, NFC, New Delhi. The said bills were drawn on M/s Sun Exports, Jalandhar, the firm owned by A-4 Harsimran Dhingra, having its bank account with Punjab and Sindh Bank, Jalandhar. The purchase of the said two invoices in the said account is proved by unrebutted and unchallenged document i.e PW-20/A-5(D-9) Bill Purchase Register of OBC, NFC, New Delhi. The said two invoices came to be purchased on 25.09.1995 vide entry BP No. 62/95 and 63/95 respectively. The said register also proves the fact of dishonour of the said two bills when sent for collection to the concerned bank i.e Punjab & Sind Bank, Jalandhar. The intimation in this regard was received by OBC , NFC on 20.11.1995.

165.2 The bill purchase documents are also proved by PW-21 J.K. Saxena, Manager vide credit vouchers Ex.PW21/E-20 (D-

298), Ex.PW21/E-19 (D-297) and Ex.PW21/E21(D299). The authorization was also drawn by Navyug Traders on its letterhead vide Ex.PW39/4 (D-304) and the rear of the same carries the purchase noting of OBC, New Friends Colony. The transport bill Ex.PW39/5 (D-307) dated 24.09.1995 too was issued. The CBI V. S.K. Pathrella & Ors. CC No. 260/2019 authorization is purportedly under the signatures one authorised signatory for M/s Navyug Traders requesting the M/s Sun Exports and its banker Punjab & Sind Bank, Lajpat Nagar, Jalandhar to pay the amount for the bill purchased to their banker OBC, NFC, New Delhi. The author of request letter to Manager OBC on behalf of Navjug Ex. PW21/E27 dated 21.09.1995 (D314) for purchase has remained unidentified. No CFSL opinion has been furnished qua the author of the said documents.

165.3 As far as the identity of the account M/s Sun Exports, Jalandhar, CA No. 2099, Punjab & Sind Bank, Lajpat Nagar, Jalandhar is concerned, the issue has already been discussed while dealing with other beneficiary accounts i.e M/s Red Cat Agencies, M/s Batra Traders and M/s Pimco Overseas. The identity of the said account CA No.2099 has been proved by concerned Branch Manager namely PW-6 Jagjit Singh Dang, account opening form Ex.PW6/A-1. He himself had introduced the account

being known to A-4. The fate of the said account and how the same was used only for fraudulent purposes is reflected from the Ledger Account Ex.PW6/K. It records a solitary credit entry of Rs.1500/- at the time of opening of the account on 02.02.1995 and the remaining debit entries being on account levied by the bank for return of cheques or other instruments. The correspondence exchanged between the account holder i.e A-4 and Punjab & Sind Bank Ex.PW-6/S (D-

101) also proves the intent of A-4 while operating the said account.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 The only intent was to misutilize the cheques or bill discounting facility in furtherance of the criminal conspiracy hatched by the accused in connivance with the partners of Red Cat Agencies.

165.4 The reasons for dishonour of the said bills when sent for collection is reflected in the letter Ex.PW6/Q dated 03.11.1995 as well as Ex.PW-6/R (part of D 101). The drawee i.e A-4 was never available at the address provided while opening the bank account. The other letters in this regard proved on record are Ex.PW7/G-4 and Ex.PW7/G-6 (part of D-101). The said un rebutted documents, which are not challenged on behalf of A-4, prove the factum of dishonest intention since the inception while drawing of the bills No.001 and 002, both dated 06.09.1995 on the firm of A-4. The objective of availing the said facility since the very inception was to cheat the bank under the garb of it being issued against genuine business transactions.

The said of cheating and money laundering of the amount credited is also proved by the withdrawal cheques Ex. PW PW21/E23 & PW21/E24 (D310 to 311). The entire amount was withdrawn through self-cheques. The drawer of the cheques as per CFSL report Ex. PW57/2 is A-5. However for want of any corroborating evidence no finding can be given against him. However, the fact remains that the money from the two bills discounted was withdrawn immediately. It also establishes the role of A-4 upon whom the said two bills were drawn. The onus shifted CBI V. S.K. Pathrella & Ors. CC No. 260/2019 upon him to explain his connection with Navyug Traders if any. However he has remained silent in this regard and thus an adverse inference has to be drawn against him of being part of the conspiracy with the account holder of Navyug Traders and beneficiary of wrongful gain on account of fake bills purchased.

Current Account No. 2846 of M/s Agronica Overseas and Role of the Accused Persons Facing Trial

166. The last beneficiary account is that of M/s Agronica Overseas. It was allegedly opened by the proprietor Naveen Kakkar (A-6) resident of I-1623, Chitranjan Park, New Delhi. The said main accused/beneficiary of the said account is proclaimed offender and the discussion herein only concerns the role of the other accused persons i.e. A-4 Harsimran Dhingra and A-5 Rajesh Batra.

166.1 The said account was opened on 06.09.1995. The account opening form, specimen signature card and statement of account have been proved by PW-21 Jagdish Kumar Saxena , Manager OBC, New Friends Colony who provided the said documents as well as the remaining credit and debit vouchers to the Investigating Officer on 13.08.1997 vide seizure memo Ex. PW-21/F (D-315). The said account was opened under the authority of Branch Manager (A-1) in routine as deposed by

PW-21. The basis of the said account opening as reflected from the form Ex. PW-21/F1 (D

316) is the introduction of the account holder by A-5 Rajesh Batra CBI V. S.K. Pathrella & Ors. CC No. 260/2019 Proprietor of Batra Traders A/c No. 2695. The said fact of introduction for ensuring the opening of the said account of M/s Agronica Overseas is neither disputed nor challenged by A-5.

166.2 It is also matter of record as proved by PW-21 and other witnesses of Oriental Bank of Commerce New Friends Colony, the two cheques and two bills came to be purchased in the said account during the period relevant i.e September 1995 to October 1995. The statement of account Ex. PW-21/F3 (D-318) reflects the credit entry of the purchase of two bills on 28th of September 1995 and 29th of September 1995 vide BP No. 64 & 72. Both the said invoices were drawn on M/s Sun Exports, Jalandhar (of A-4) and were dishonoured when sent for collection to the banker of A-4 i.e. Punjab and Sindh Bank Jalandhar. The bill purchase register Ex. PW-20/A5 (D-9) reflects the purchase of a bill (001) drawn on M/s Sun Export Jalandhar vide entry BP no. 65/1995 on 28.08.1995 and it being returned unrealized on 20.11.95 when sent for collection. Similar is the fate of the second bill (002) purchased vide bill purchase register entry no. 73/1995 on 29.08.1995 drawn on Sun Exports, Jalandhar (Ex. PW21/A-5). It too returned unrealised when sent for collection at Jalandhar on 20.11.1995. The return of both the said bills is also proved by PW6, the bank official from Punjab and Sindh Bank, Jalandhar, where the account of Sun Exports (of A-4) was maintained.

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166.3 Apart from the said two bills drawn on the account of

M/s Sun Export, A-4, also issued cheques bearing no. 714019 for Rs 743950/- in favour of M/s Agronica Overseas vide Ex. PW-6/N (D-

357). The said cheque came to be purchased on 10.10.1995 and the amount was credited in the account of M/s Agronica Overseas as reflected in statement of account Ex.PW-21/F3 (D318). The purchase of the said cheque by M/s Agronica Overseas is also proved by DD Register Ex. PW20/A10 (D-11). The dishonour of the said cheque when sent for collection by OBC is proved by dishonour memo Ex. PW-6/N1 dated 14.10.1995 (D360). As far as the other cheque no. 140445 from the said account issued from the firm M/s Jimmy Crown Enterprises owned by wife of A-6 Naveen Kakkar is not discussed as A-6 is already PO.

167. The issue herein as to whether the said cheque and two bills which were purchased by Oriental Bank of Commerce after being presented by A-6 were the instruments issued against genuine business transaction or not. In case the said cheques/bills being not issued against any genuine business transaction, then certainly a case of deception and dishonest intention is made out against the account holder and all others involved with him including accused no. 4 Harsimran Dhingra.

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167.1 The genuineness of the alleged claim of business being

run by firm M/s Agronica Overseas is busted by its statement of account Ex. PW-21/F3 for the period 06.09.1995 till its closure on 30.12.1995 with outstanding balance of Rs 26,54,646/-. All the credit entries in the said account during the above said period concerns the purchased cheques and two bills, except one pay order cancellation of Rs 5 lacs on 14.10.1995. Thus, it is apparent from the reading of the said account the primary object behind opening the current account and thereafter utilising the discounting facility was to deceive the bank by pretending to be running a genuine business.

167.2 As far as the genuineness of the business of A-4 or his form M/s Sun Export, Jalandhar is concerned, it is already been discussed while discussing the other four fraudulent/beneficiary accounts. The banker of A-4 i.e Punjab and Sindh Bank Jalandhar, was forced to close the account due to the conduct of A-4 in issuing the cheques for huge amount without ensuring sufficient balance.

168. In the end, the sum and substance of the discussion qua the manner in which above said five beneficiary account holders through the fictitious accounts cheated the Oriental Bank of Commerce, New Friends Colony, New Delhi can be summarized through a pictorial diagram as shown herein on the next page :

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CC N

Beneficiary Accounts

M/s Red Cat
Agencies, Pimco Overseas
Batra Traders, Agronica overseas
& Navyug Traders

r
Presented fo
purchase

Oriental Bank of Commerce
New Friends Colony

Invoices/Cheques Issued

New Delhi

Sent Instruments/
Bill of Exchange

beneficiary
Credited in

accounts

For encashment/

Money

Collection
(All got dishonoured)

M/s Red Cat Agencies,
Pimco Overseas
Batra Traders,
Agronica overseas
& Navyug Traders
Credited with
Account

Cash

withdrawal

Withdrawal by

Transferring to

Private Accounts of
Accused Involved

M/s Sa
& Pack
Trave
M/s B

Indust

Crown

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169. The common defence on behalf of the accused persons that the cheques and bills of exchange were issued for genuine business purposes has remained unsubstantiated. No evidence has been produced by them despite the onus being upon them to establish the fact within their special knowledge that the cheques or bills were for genuine business transactions. No such plea or material came to be furnished by them even during the investigation, as has been deposed by IO/ PW49. Rather, the accounts statements of fictitious account holders reflect that during the entire relevant period of conspiracy, the balance in the said accounts remained 'paltry'.

(XI) CONCLUSION

170. In the light of above-said reasons, it is concluded that the prosecution has been able to successfully prove their case on the standard of beyond reasonable doubts against A-4 Harsimran Dhingra, A-5 Rajesh Batra, A-7 Sanjeev Arora and A-8 Vikram Arora for the offence under Section 120B read with Section 420 IPC. The said accused persons are also held guilty for the substantive offence under Section 420 IPC/120B IPC.

The accused persons A-4, A-5, A-7 and A-8 are acquitted for the offence under Section 120B read with Section 467/468/471 IPC and Section 13 (2) read with Section 13 (1) (d) of PC Act.

CBI V. S.K. Pathrella & Ors. CC No. 260/2019 A-5 is also acquitted for the substantive charge u/s 467 IPC.

A-1 S.K. Pathrella against whom the trial stands suspended in terms of Section under Section 368 of BNSS 2023 is also acquitted only for the substantive charge no.3 under Section 13 (2) read with Section 13 (1) (d) of PC Act. No finding is given qua the remaining charges levelled against A-1 on account of suspension of his trial under Section 368 of BNSS 2023 on account of his Mental Condition. GAGANDEEP GAGANDEEP SINGH SINGH Date: 2026.04.27 02:56:37 +0530 Announced in the Open Court (GAGANDEEP SINGH) on 27 April 2026 th Special Judge, PC Act, CBI-04 Rouse Avenue District Courts, New Delhi